

## THE HINDU MARRIAGE ACT, 1955

(Act 25 of 1955)[18th May, 1955]

An Act to amend and codify the law relating to marriage among Hindus.

### Preliminary

**1. Short title and extent.**-(1) This Act may be called the Hindu Marriage Act, 1955.

(2) It extends to the whole of India except the State of Jammu and Kashmir, and applies also to Hindus domiciled in the territories to which this Act extends who are outside the said territories.

**2. Application of Act.**-(1) This Act applies,-

(a) to any person who is a Hindu by religion in any of its forms or developments, including a Virashaiva, a Lingayat or a follower of the Brahmo, Prarthana or Arya Samaj;

(b) to any person who is a Buddhist, Jaina or Sikh by religion, and

(c) to any other person domiciled in the territories to which this Act extends who is not a Muslim, Christian, Parsi or Jew by religion, unless it is proved that any such person would not have been governed by the Hindu law or by any custom or usage as part of that law in respect of any of the matters dealt with herein if this Act had not been passed.

Explanation.- The following persons are Hindus, Buddhists, Jainas or Sikhs by religion, as the case may be,-

(a) any child, legitimate or illegitimate, both of whose parents are Hindus, Buddhists, Jainas or Sikhs by religion;

(b) any child, legitimate or illegitimate, one of whose parents is a Hindu, Buddhist, Jaina or Sikh by religion and who is brought up as a member of tribe, community, group or family to which such parents belongs or belonged; and

(c) any person who is a convert or re-convert to the Hindu, Buddhist, Jaina or Sikh religion.

(2) Notwithstanding anything contained in sub-section (1), nothing contained in this Act shall apply to the members of any Scheduled Tribe within the meaning of clause (25) of Article 366 of the Constitution unless the Central Government, by notification in the Official Gazette, otherwise directs.

(3) The expression "Hindus" in any portion of this Act shall be construed as if it included a person who, though not a Hindu by religion is, nevertheless, a person whom this Act applies by virtue of the provisions contained in this section.

**3. Definitions.**- In this Act, unless the context otherwise requires,-

(a) the expression "custom" and "usage" signify any rule which, having been continuously and uniformly observed for a long time, has obtained the force of law among Hindus in any local area, tribe, community, group or family:

Provided that the rule is certain and not unreasonable or opposed to public policy;  
and

Provided further that in the case of a rule applicable only to a family it has not been discontinued by the family;

(b) "District Court" means, in any area for which there is a City Civil Court, that Court, and in any other area the principal Civil Court of original jurisdiction, and includes any other civil court which may be specified by the State Government, by notification in the Official Gazette, as having jurisdiction in respect of matters dealt with in this Act;

(c)"full blood"and "half blood"- two persons are said to be related to each other by full blood when they are descended from a common ancestor by the same wife and by half blood when they are descended from a common ancestor but by different wives;

(d)"uterine blood" - two persons are said to be related to each other by uterine blood when they are descended from a common ancestor but by different husbands.

Explanation.- In Clauses (c) and (d) "ancestor" includes the father and "ancestress" the mother;

(e)"prescribed" means prescribed by rules made under this Act;

(f)(i)"Sapinda relationship" with reference to any person extends as far as the third generation(inclusive) in the line of ascent through the mother, and the fifth (inclusive) in the line of ascent through the father, the line being traced upwards in each case from the person concerned, who is to be counted as the first generation;

(ii) two persons are said to be "sapinda" of each other if one is a lineal ascendant of the other within the limits of sapinda relationship, or if they have a common lineal ascendant who is within the limits of sapinda relationship with reference to each of them;

(g)"degrees of prohibited relationship " - two persons are said to be within the "degrees of prohibited relationship"-

(I) if one is a lineal ascendant of the other; or

(ii) if one was the wife or husband of a lineal ascendant or descendant of the other; or

(iii)if one was the wife of the brother or of the father's or mother's brother or of the grandfather's or grandmother's brother or the other; or

(iv)if the two are brother and sister, uncle and niece, aunt and nephew, or children of brother and sister or of two brothers or of two sisters.

Explanation.- for the purposes of clauses (f) and (g) relationship includes-

(I) relationship by half or uterine blood as well as by full blood;

(ii) illegitimate blood relationship as well as legitimate;

(iii) relationship by adoption as well as by blood; and all terms of relationship in those clauses shall be construed accordingly.

**4. Overriding effect of Act.-** Save as otherwise expressly provided in this Act.-

(a) any text,rule or interpretation of Hindu Law or any custom or usage as part of that law in force immediately before the commencement of this Act shall cease to have effect with respect to any matter for which provision is made in this Act;

(b) any other law in force immediately before the commencement of this Act shall cease to have effect in so far as it is inconsistent with any of the provisions contained in this Act.

## **Hindu Marriages**

**5. Condition for a Hindu Marriage.-** A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party,-

(a) is incapable of giving a valid consent of it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity or epilepsy;

(iii) the bridegroom has completed the age of twenty one years and the bride the age of eighteen years at the time of the marriage;

- (iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;
- (v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;
- (vi) (Omitted)

**6. Guardianship in Marriage.-** (Omitted by Marriage Laws (Amendment) Act, 1976.

**7. Ceremonies for a Hindu marriage.-**(1) A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto.

(2) Where such rites and ceremonies include the saptapadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken.

**8. Registration of Hindu Marriages.-**(1) For the purpose of facilitating the proof of Hindu marriages, the State Government may make rules providing that the parties to any such marriage may have the particulars relating to their marriage entered in such manner and subject to such condition as may be prescribed in a Hindu Marriage Register kept for the purpose.

(2) Notwithstanding anything contained in sub-section (1), the State Government may, if it is of opinion that it is necessary or expedient so to do, provide that the entering of the particulars referred to in sub-section (1) shall be compulsory in the State or in any part thereof, whether in all cases or in such cases as may be specified and where any such direction has been issued, and person contravening any rule made in this behalf shall be punishable with fine which may extend to twenty-five rupees.

(3) All rules made under this section shall be laid before the State Legislature, as soon as may be, after they are made.

(4) The Hindu Marriage Register shall at all reasonable times be open for inspection, and shall be admissible as evidence of the statements therein contained and certified extracts therefrom shall, on application, be given by the Registrar on payment to him of the prescribed fee.

(5) Notwithstanding anything contained in this section, the validity of any Hindu marriage shall in no way be affected by the omission to make the entry.

### **Restitution of Conjugal rights and judicial separation**

**9. Restitution of conjugal rights.-** When either the husband or the wife has, without reasonable excuse, withdrawn from the society of the other, the aggrieved party may apply, by petition to the district court, for restitution of conjugal rights and the court, on being satisfied of the truth of the statements made in such petition and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly.

Explanation- Where a question arises whether there has been reasonable excuse for withdrawal from the society, the burden of proving reasonable excuse shall be on the person who has withdrawn from the society.

**10. Judicial separation.-** (1) Either party to a marriage, whether solemnized before or after the commencement of this Act, may present a petition praying for a decree for judicial separation on any of the grounds specified in sub-section (1) of Section 13, and in the case of a wife also on any of the grounds might have been presented.

(2) Where a decree for judicial separation has been passed, it shall no longer be obligatory for the petitioner to cohabit with the respondent, but the court may, on the application by petition of either

party and on being satisfied of the truth of the statement made in such petition, rescind the decree if it considers it just and reasonable to do so.

### **Nullity of Marriage and Divorce**

**11. Nullity of marriage and divorce- Void marriages.-** Any marriage solemnized after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto, against the other party be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses

(i), (iv) and (v), Section 5.

**12. Voidable Marriages.-**(1) Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely:-

- (a) that the marriage has not been consummated owing to the impotency of the respondent; or
- (b) that the marriage is in contravention of the condition specified in clause (ii) of Section 5; or
- (c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner was required under Section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978, the consent of such guardian was obtained by force or by fraud as to the nature of the ceremony or as to any material fact or circumstance concerning the respondent; or
- (d) that the respondent was at the time of the marriage pregnant by some person other than the petitioner.

2) Notwithstanding anything contained in sub-section (1), no petition for annulling a marriage (a) on the ground specified in clause (c) of sub-section (1) shall be entertained if- (i) the petition is presented more than one year after the force had ceased to operate or, as the case may be, the fraud had been discovered ; or (ii) the petitioner has, with his or her full consent, lived with the other party to the marriage as husband or wife after the force had ceased to operate or, as the case may be, the fraud had been discovered;

- (b) on the ground specified in clause (d) of sub-section (1) shall be entertained unless the court is satisfied- (i) that the petitioner was at the time of the marriage ignorant of the facts alleged;
- (ii) that proceedings have been instituted in the case of a marriage solemnized before the commencement of this Act within one year of such commencement and in the case of marriages solemnized after such commencement within one year from the date of the marriage; and
- (iii) that marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of the existence of the said ground.

**13. Divorce-** (1) Any marriage solemnized, whether before or after the commencement of the Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

- (i) has, after the solemnization of the marriage had voluntary sexual intercourse with any person other than his or her spouse; or
- (ia) has, after the solemnization of the marriage, treated the petitioner with cruelty; or
- (ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition; or
- (ii) has ceased to be a Hindu by conversion to another religion ; or



(iii) has been incurably of unsound mind, or has suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

Explanation- In this clause-

(a) the expression "mental disorder" means mental illness, arrested or incomplete development of mind, psychopathic disorder or any other disorder or disability of mind and include schizophrenia;

(b) the expression "psychopathic disorder" means a persistent disorder or disability of mind (whether or not including sub-normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the other party and whether or not it requires or is susceptible to medical treatment; or

(iv) has been suffering from a virulent and incurable form of leprosy; or

(v) has been suffering from venereal disease in a communicable form; or

(vi) has renounced the world by entering any religious order; or

(vii) has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of it, had that party been alive;

Explanation.- In this sub-section, the expression "desertion" means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or against the wish of such party, and includes the wilful neglect of the petitioner by the other party to the marriage, and its grammatical variations and cognate expression shall be construed accordingly.

(1-A) Either party to a marriage, whether solemnized before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground-

(i) that there has been no resumption of cohabitation as between the parties to the marriage for a period of one year or upwards after the passing of a decree for judicial separation in a proceeding to which they were parties; or (ii) that there has been no restitution of conjugal rights as between the parties to the marriage for a period of one year or upward after the passing of a decree of restitution of conjugal rights in a proceeding to which they were parties.

(2) A wife may also present a petition for the dissolution of her marriage by a decree of divorce on the ground-

(i) in the case of any marriage solemnized before the commencement of this Act, that the husband had married again before the commencement or that any other wife of the husband married before such commencement was alive at the time of the solemnization of the marriage of the petitioner:

Provided that in either case the other wife is alive at the time of the presentation of the petition;

(ii) that the husband has, since the solemnization of the marriage, been guilty of rape, sodomy or bestiality; or

(iii) that in a suit under Section 18 of the Hindu Adoptions and Maintenance Act, (78 of 1956), or in a proceeding under Section 125 of the Code of Criminal Procedure, 1973, (Act 2 of 1974) or under corresponding Section 488 of the Code of Criminal Procedure, (5 of 1898), a decree or order, as the case may be, has been passed against the husband awarding maintenance to the wife notwithstanding that she was living apart and that since the passing of such decree or order, cohabitation between the parties has not been resumed for one year or upwards; or

(iv) that her marriage (whether consummated or not) was solemnized before she

attained the age of fifteen years and she has repudiated the marriage after attaining that age but before attaining the age of eighteen years.

Explanation.- This clause applies whether the marriage was solemnized before or after the commencement of the Marriage Law (Amendment) Act, 1976.

**13-A. Alternate Relief in Divorce Proceedings.-** If any proceeding under this Act, on a petition for dissolution of marriage by a decree of divorce, except in so far as the petition is founded on the grounds mentioned in clauses (ii), (vi) and (vii) of sub-section (1) of Section 13, the court may, if it considers it just so to do having regard to the circumstances of the case, pass instead a decree for judicial separation.

**13-B. Divorce by mutual consent.-**(1) Subject to the provisions of this Act a petition for dissolution of marriage by a decree of divorce may be presented to the District Court by both the parties to a marriage together, whether such marriage was solemnized before or after the commencement of the Marriage Laws (Amendment) Act, 1976, on the ground that they have been living separately for a period of one year or more, that they have not been able to live together and that they have mutually agreed that the marriage should be dissolved.

(2) On the motion of both the parties made earlier than six months after the date of the presentation of the petition referred to in sub-section (1) and not later than eighteen months after the said date, if the petition is not withdrawn in the mean time, the Court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnized and that the averments in the petition are true, pass a decree of divorce declaring the marriage to be dissolved with effect from the date of the decree.

**14. No petition for divorce to be presented within one year of marriage.-**

(1) Notwithstanding anything contained in this Act, it shall not be competent for any Court to entertain any petition for dissolution of marriage by a decree of divorce, unless at the date of the presentation of the petition one year has elapsed since the date of the marriage:

Provided that the court may, upon application made to it in accordance with such rules as may be made by the High Court in that behalf, allow a petition to be presented before one year has elapsed since the date of the marriage on the ground that the case is one of exceptional hardship to the petitioner or of exceptional depravity on the part of the respondent, but, if it appears to the court at the hearing of the petition that petitioner obtained leave to present the petition by any mis-representation or concealment of the nature of the case, the court may, if it pronounces a decree, do so subject to the condition that the decree shall not have effect until after the expiry of one year from the date of the marriage or may dismiss the petition without prejudice to any petition which may be brought after the expiration of the said one year upon the same or substantially the same facts as those alleged in support of the petition so dismissed.

(2) In disposing of any application under this section for leave to present a petition for divorce before the expiration of one year from the date of the marriage, the court shall have regard to the interests of any children of the marriage and to the question whether there is a reasonable probability of a reconciliation between the parties before the expiration of the said one year.

**15. Divorced persons. When may marry again.-** When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again.

**16. Legitimacy of children of void and voidable marriages.-**

(1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such a child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976, and whether or not a decree of nullity is granted in respect of the marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case, where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents.

**17. Punishment of Bigamy.-** Any marriage between two Hindus solemnized after the commencement of this Act is void if at the date of such marriage either party had a husband or wife living; and the provisions of Sections 494 and 495 of the Indian Penal Code (45 of 1860) shall apply accordingly.

**18. Punishment for contravention of certain other conditions for a Hindu marriage.-** Every person who procures a marriage of himself or herself or to be solemnized under this Act in contravention of the conditions specified in clauses (iii), (iv), and (v) of Section 5 shall be punishable-

(a) in the case of a contravention of the condition specified in clause (iii) of Section 5, with simple imprisonment which may extend to fifteen days, or with fine which may extend to one thousand rupees, or with both;

(b) in the case of a contravention of the condition specified in clause (iv) or clause (v) of Section 5, with simple imprisonment which may extend to one month, or with fine which may extend to one thousand rupees, or with both;

(c) Clause (c) omitted by Act 2 of 1978.

**Jurisdiction and Procedure**

**19. Court to which petition shall be presented-**

Every petition under this Act shall be presented to the District Court within the local limits of whose ordinary original civil jurisdiction:

(i) the marriage was solemnized, or

(ii) the respondent, at the time of the presentation of the petition, resides, or

(iii) the parties to the marriage last resided together, or

(iv) the petitioner is residing at the time of the presentation of the petition, in a

case where the respondent is at that time, residing outside the territories to which this Act extends, or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive.

**20. Contents and verification of Petitions.**-(1) Every petition presented under this Act shall state as distinctly as the nature of the case permits the facts on which the claims to relief is founded and, except in a petition under Section 11, shall also state that there is no collusion between the petitioner and the other party to the marriage.

(2) The statements contained in every petition under this Act shall be verified by the petitioner or some other competent person in the manner required by law for the verification of plaints, and may, at the hearing, be referred to as evidence.

**21. Application of Act 5 of 1908.**- Subject to the other provisions contained in this Act and to such rules as the High Court may make in this behalf all proceedings under this Act shall be regulated, as far as may be, by the Code of Civil Procedure, 1908.

**21-A. Power to transfer petitions in certain cases.**-(1)Where-

(a) a petition under this Act has been presented to a District Court having jurisdiction by a party to marriage praying for a decree for a judicial separation under Section 10 or of a decree of divorce under Section 13; and

(b) another petition under this Act has been presented thereafter by the other party to the marriage praying for a decree for judicial separation under Section 10 or for a decree of divorce under Section 13 on any ground, whether in the same District Court or in a different District Court, in the same State or in a different State,

the petitions shall be dealt with as specified in sub-section (2).

(2) In a case where sub-section (1) applies,-

(a) if the petitions are presented to the same District Court, both the petitions shall be tried and heard together by that District Court;

(b) if the petition are presented to different District Courts, the petition presented later shall be transferred to the District Court in which the earlier petition was presented and both the petitions shall be heard and disposed of together by the district court in which the earlier petition was presented.

(3) In a case where clause (b) of sub-section (2) applies, the court or the Government, as the case may be, competent under the Code of Civil Procedure, 5 of 1908 to transfer any suit or proceeding from this District Court in which the later petition has been presented to the district court in which the earlier petition is pending, shall exercise its powers to transfer such later petition as if it had been empowered so to do under the said Code.

**21-B. Special provision relating to trial and disposal of petitions under the Act.**-(1) The trial of a petition under this Act, shall, so far as is practicable

consistently with the interests of justice in respect of the trial, be continued from day to day until its conclusion unless the Court finds the adjournment of the trial beyond the following day to be necessary for reasons to be recorded.

(2) Every petition under this Act shall be tried as expeditiously as possible, and endeavour shall be made to conclude the trial within six months from the date of

service of notice of the petition on the respondent.

(3) Every appeal under this Act shall be heard as expeditiously as possible, and endeavour shall be made to conclude the hearing within three months from the date of service of notice of appeal on the respondent.

**21.-C. Documentary evidence.-** Notwithstanding anything in any enactment to the contrary, no document shall be inadmissible in evidence in any proceeding at the trial of a petition under this Act on the ground that it is not duly stamped or registered.

**22. Proceedings to be in camera and may not be printed or published.-(1)**

Every proceedings under this Act shall be conducted in camera and it shall not be lawful for any person to print or publish any matter in relation to any such proceeding except a judgment of the High Court or of the Supreme Court printed or published with the previous permission of the Court.

(2) If any person prints or publishes any matter in contravention of the provisions contained in sub-section (1), he shall be punishable with fine which may extend to one thousand rupees.

**23. Decree in proceedings.-(1)** In any proceeding under this Act, whether defended or not, if the Court is satisfied that-

(a) any of the grounds for granting relief exists and the petitioner except in cases where the relief is sought by him on the grounds specified in sub-clause (a), subclause

(b) and sub-clause (c) of clause (ii) of Section 5 is not any way taking advantage of his or her own wrong or disability for the purpose of such relief, and (b) where the ground of the petition is the ground specified in clause (i) of subsection (1) of Section 13, the petitioner has not in any manner been accessory to or connived at or condoned the act or acts complained of, or where the ground or the petition is cruelty the petitioner has not in any manner condoned the cruelty, and

(bb) when a divorce is sought on the ground of mutual consent, such consent has not been obtained by force, fraud or undue influence, and

(c) the petition not being a petition presented under section 11 is not presented or prosecuted in collusion with the respondent, and

(d) there has not been any unnecessary or improper delay in instituting the proceeding, and

(e) there is no other legal ground why relief should not be granted, then, and in such a case, but not otherwise, the court shall decree such relief accordingly.

(2) Before proceeding to grant any relief under this Act, it shall be the duty of the Court in the first instance, in every case where it is possible so to do consistently with the nature and circumstances of the case, to make every endeavour to bring about a reconciliation between the parties:

Provided that nothing contained in this sub-section shall apply to any proceeding wherein relief is sought on any of the grounds specified in clause (ii), clause (iii), clause (iv), clause (v), clause (vi) or clause (vii), of sub-section (1) of Section 13.

(3) For the purpose of aiding the Court in bringing about such reconciliation, the court may, if the parties so desire or if the Court thinks it just and proper so to do adjourn the proceedings for a reasonable period not exceeding fifteen days and refer the matter to any person named by the parties in this behalf or to any person

nominated by the Court if the parties fail to name any person, with directions to report to the Court as to whether reconciliation can be and has been effected and the court shall in disposing of the proceeding have due regard to the report.

(4) In every case where a marriage is dissolved by a decree of divorce, the court passing the decree shall give a copy thereof free of cost to each of the parties.

**23-A. Relief for respondent in divorce and other proceedings.-** In any proceedings for divorce or judicial separation or restitution of conjugal rights, the respondent may not only oppose the relief sought on the ground of petitioner's adultery, cruelty or desertion, but also make a counter-claim for any relief under this Act on that ground; and if the petitioner's adultery, cruelty or desertion is proved, the Court may give to the respondent any relief under this Act to which he or she would have been entitled if he or she had presented a petition seeking such relief on that ground.

**24. Maintenance pendente lite and expenses of proceedings.-**

Where in any proceeding under this Act it appears to the Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay the petitioner the expenses of the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the Court to be reasonable.

**25. Permanent alimony and maintenance.-**(1) Any court exercising jurisdiction under this Act may, at the time of passing any decree or at any time subsequent thereto, on application made to it for the purposes by either the wife or the husband, as the case may be, order that the respondent shall pay to the applicant for her or his maintenance and support such gross sum or such monthly or periodical sum for a term not exceeding the life of the applicant as, having regard to the respondent's own income and other property of the applicant, the conduct of the parties and other circumstances of the case, it may seem to the Court to be just, and any such payment may be secured, if necessary, by a charge on the immoveable property of the respondent.

(2) If the Court is satisfied that there is a change in the circumstances of either party at any time after it has made an order under sub-section (1), it may at the instance of either party, vary, modify or rescind any such order in such manner as the court may deem just.

(3) If the Court is satisfied that the party in whose favour an order has been made under this Section has re-married or, if such party is the wife, that she has not remained chaste or if such party is the husband, that he has had sexual intercourse with any woman outside wedlock, it may at the instance of the other party vary, modify or rescind any such order in such manner as the court may deem just.

**26. Custody of children.-** In any proceeding under this Act, the Court may, from time to time, pass such interim orders and make such provisions in the decree as it may deem just and proper with respect to the custody, maintenance and education of minor children, consistently with their wishes, wherever possible, and may, after the decree, upon application by petition for the purpose, make from time to time, all such orders and provisions with respect to the custody, maintenance and

education of such children as might have been made by such decree or interim orders in case the proceedings for obtaining such decree were still pending, and the Court may also from time to time revoke, suspend or vary any such orders and provisions previously made.

**27. Disposal of property.**—In any proceeding under this Act, the Court may make such provisions in the decree as it deems just and proper with respect to any property presented at or about the time of marriage, which may belong jointly to both the husband and the wife.

**28. Appeals from decrees and orders.**—(1) All decrees made by Court in any proceeding under this Act shall, subject to the provisions of sub-section (3), be appealable as decrees of the Court made in the exercise of its original civil jurisdiction and every such appeal shall lie to the Court to which appeals ordinarily lie from the decisions of the Court given in the exercise of its original civil jurisdiction.

(2) Orders made by the Court in any proceedings under this Act, under Section 25 or Section 26 shall, subject to the provisions of sub-section (3), be appealable if they are not interim orders and every such appeal shall lie to the Court to which appeals ordinarily lie from the decisions of the Court given in exercise of its original civil jurisdiction.

(3) There shall be no appeal under this section on subject of costs only.

(4) Every appeal under this section shall be preferred within a period of thirty days from the date of the decree or order.

**28(A) Enforcement of decrees and orders.**— All decrees and orders made by the Court in any proceeding under this Act, shall be enforced in the like manner as the decrees and orders of the Court made in the exercise of its original civil jurisdiction for the time being enforced.

**29. Savings.**—(1) A marriage solemnized between Hindus before the commencement of this Act, which is otherwise valid, shall not be deemed to be invalid or ever to have been invalid by reason only of the fact that the parties thereto belonged to the same gotra or pravara or belonged to different religion, castes or sub-divisions of the same caste.

(2) Nothing contained in this Act shall be deemed to affect any right recognised by custom or conferred by any special enactment to obtain the dissolution of a Hindu Marriage, whether solemnized before or after the commencement of this Act.

(3) Nothing contained in this Act shall affect any proceeding under any law for the time being in force for declaring any marriage to be null and void or for annulling or dissolving any marriage or for judicial, separation pending at the commencement of this Act, and any such proceeding may be continued and determined as if this Act had not been passed.

(4) Nothing contained in this Act shall be deemed to effect the provisions contained in the Special Marriage Act, 1954 (43 of 1954), with respect to marriages between Hindus solemnized under that Act, whether before or after the commencement of this Act.

**30. Repeals.**— (Repealed by the Repealing and Amendment Act, 1960 (58 of 1960), Sec. 2 and the First Schedule.)



✓  
No. WB(Part-I)/2010/SAR-4

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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

**GOVERNMENT OF WEST BENGAL**  
**JUDICIAL DEPARTMENT**

**NOTIFICATION**

No. 488-JL.—the 2nd August, 2010.—In exercise of the power conferred by sub-rule (3) of Rule 1 of the West Bengal Hindu Marriage Registration Rules, 2010, published with this Department notification No. 432-JL., dated the 2nd July, 2010, in the *Kolkata Gazette, Extraordinary*, Part I, dated the 14th July, 2010 (hereinafter referred to as the said rules), the Governor is pleased hereby to specify the 2nd day of August, 2010, as the date on which the said rules shall come into force.

By order of the Governor,

**K. Y. S. MANHAS,**  
Principal Secretary to the Govt. of West Bengal.

no 1025/18  
date 10.08.10 all  
pp forwarded to all  
for information  
compliance  
Charanabala  
District Registrar  
Purba Medinipur  
Tumak  
10-08-10





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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

**GOVERNMENT OF WEST BENGAL**  
**JUDICIAL DEPARTMENT**

**The West Bengal Hindu Marriage Registration Rules, 2010.**

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## NOTIFICATION

No. 432-JL - 2nd July, 2010. - In exercise of the power conferred by section 8 of the Hindu Marriage Act, 1955 (25 of 1955) and in supersession of the notification No. 806-Regn., dated the 19th September, 1958, the Governor is pleased hereby to make the following rules, namely:-

### Rules

## CHAPTER I Preliminaries

1. **Short title, extent and commencement.** - (1) These rules may be called the West Bengal Hindu Marriage Registration Rules, 2010.

(2) These rules shall extend to the whole of the State of West Bengal.

(3) These rules shall come into force from such date as the State Government may, by notification, specify.

2. **Definitions.** - (1) In these rules, unless the context otherwise requires, -

(a) "Act" means the Hindu Marriage Act, 1955 (25 of 1955);

(b) "actual place" means complete postal address with the name of police station and postal code;

(c) "Appointing authority" means an officer not below the rank of Deputy Secretary to the Government of West Bengal, Judicial Department;



- (d) "Appellate Authority" means an officer not below the rank of Joint Secretary to the Government of West Bengal, Judicial Department;
- (e) "authentication" means authenticating by way of marking of page No. of any blank Book or Register by the Registrar General or by an officer authorised by him in this behalf by putting his dated signature and seal thereon before bringing the same for use by a Hindu Marriage Registrar;
- (f) "certified copy" means a copy made from the original and is certified to be a true copy of the original, by the Registrar General or an officer authorised in this behalf by him, or by any of the Hindu Marriage Registrars, as the case may be;
- (g) "Hindu Marriage Registrar" includes an *ex officio* Hindu Marriage Registrar and a non-official Hindu Marriage Registrar;
- (h) "notification" means notification published in *Official Gazette*;
- (i) "Party" means a husband or a wife;
- (j) "parties" mean husband and wife;
- (k) "Quarterly report" means a report to be submitted by the Hindu Marriage Registrar to the Registrar General for the period January to March, April to June, July to September and October to December of a year;
- (l) "Registrar General" means the Registrar General of Marriages, West Bengal, appointed by the State Government;
- (m) "Schedule" means a Schedule to these rules;
- (n) "section" means a section of the Act;
- (o) "State Government" means the Government of West Bengal in the Judicial Department;
- (p) "week" means a period of seven days starting from Sunday to next Saturday;
- (2) Words and expressions used and not defined in these rules but defined in the Act, shall have the same meanings as respectively assigned to them in the Act.

## CHAPTER II

### *Hindu Marriage Registrar*

**3. Appointment of Hindu Marriage Registrars.** – (1) All *ex-officio* Marriage Officer appointed under the Special Marriage Act will act as *ex officio* Hindu Marriage Registrar by virtue of their substantive place of posting in respect of their jurisdiction from amongst its employees as also from the employees of the local self Government.

(2) The non-official Hindu Marriage Registrars shall, on the recommendation of the Registrar General, be appointed by the State Government from amongst the non-official Marriage Officers, appointed by the State Government under the Special Marriage Act, 1954 and the rules made thereunder, with satisfactory performance of at least one year having adequate knowledge of rites, rituals, customs, usage, ceremonies relation to a Hindu marriage and having ideas of prohibited and *Sapinda* relationship.

**4. Jurisdiction of Hindu Marriage Registrar.** – (1) Every Hindu Marriage Registrar shall have jurisdiction within the area for which he is appointed or authorised.

(2) No Hindu Marriage Registrar shall function beyond his jurisdiction.



**Office of Hindu Marriage Registrar.**— (1) The office of the *ex officio* Hindu Marriage Registrar shall be situated in the place wherefrom he is discharging his functions in office.

(2) The office of the non-official Hindu Marriage Registrar shall be situated within the same office wherefrom he functions as non-official Marriage Officer and the same shall not be changed without the approval of the Registrar General.

(3) No non-official Hindu Marriage Registrar shall open any branch office within or outside his jurisdiction or act through or by an agent.

(4) The non-official Hindu Marriage Registrar shall write his name, designation, jurisdiction, address, working days and working-hours in English, Bengali or in local language and shall prominently display the same in a conspicuous place outside his office.

(5) The working days of a non-official Hindu Marriage Registrar shall not be less than five days in a week.

(6) The working hours of a non-official Hindu Marriage Registrar shall be fixed by him subject to a condition that at least two consecutive working hours shall be within 10 a.m. to 5.30 p.m., every working day.

**6. Office seal and designation seal of Hindu Marriage Registrar.**— (1) Every non-official Hindu Marriage Registrar shall make North-South extended oval shaped office seal, duly approved by the Registrar General, depicting therein the words "Office of .....(name), Hindu Marriage Registrar appointed under Act 25 of 1955", with the national emblem set in the middle of the seal.

(2) Every non-official Hindu Marriage Registrar shall make a designation seal, depicting his full name, designation, jurisdiction by depicting the words ".....(jurisdiction) area" and actual place of office address with the mention of police station including the words "West Bengal, India" and shall affix the designation seal wherever he is required to sign as a Hindu Marriage Registrar under the Act and the rules made thereunder.

(3) Every non-official Hindu Marriage Registrar shall affix his office seal vertically in the Hindu Marriage Register at the time of registration of marriage and shall also affix his office seal, in the aforesaid manner, on the original copy of Certificate of registration of marriage, certified copy of the Certificate of registration of Marriage and on the certified copy of any other document which he is competent to issue under the Act and the rules made thereunder.

(4) Every *ex officio* Hindu Marriage Registrar shall make a round shaped office seal depicting the words "Office of *ex officio* Hindu Marriage Registrar under Act 25 of 1955", with the national emblem set in the middle of the seal.

(5) Every *ex officio* Hindu Marriage Registrar shall indicate his substantive status with office address in the designation seal followed by the words "*ex officio* Hindu Marriage Registrar for ..... (jurisdiction)".

(6) Every *ex officio* Hindu Marriage Registrar shall affix the office seal in the Hindu Marriage Register at the time of registration of marriage and shall affix such seal with signature on the original copy of Certificate of registration of marriage, certified copy of the Certificate of registration of Marriage and on the certified copy of any other document which he is competent to issue under the Act and the rules made thereunder. He shall put his designation seal under his signature.

**7. Duties of Hindu Marriage Registrars.**— (1) Every non-official Hindu Marriage Registrar shall attend his office during the working hours and shall not remain absent from his office without any reasonable cause.

(2) A Hindu Marriage Registrar shall apprise himself with the provisions of the Hindu Marriage Act, 1955 and the rules made thereunder and the orders or directions of the State Government or the Registrar General for smooth functioning of his duties.



(3) A non-official Hindu Marriage Registrar shall furnish the following information to the Registrar General before commencing to act as non-official Hindu Marriage Registrar:-

- (a) date of commencement of work as non-official Hindu Marriage Registrar;
- (b) actual office address;
- (c) working day and weekly holidays;
- (d) working hours; and
- (e) contact number.

(4) A non-official Hindu Marriage Registrar shall submit his specimen signature and specimen of his office seal and designation seal to the Registrar General before commencing to act as non-official Hindu Marriage Registrar.

(5) A non-official Hindu Marriage Registrar shall function from only one office on which the office signboard will be prominently displayed and in which the Table of fees of registration of marriage and other services etc. shall be prominently displayed in a conspicuous place with a synopsis of the said Table of fees in Bengali version showing especially the total cost of marriage at his office and the total cost of marriage outside his office.

(6) A non-official Hindu Marriage Registrar shall take prior written approval of the Registrar General for shifting of office.

(7) A non-official Hindu Marriage Registrar shall not prepare his office or designation seal in violation of his official status.

(8) A non-official Hindu Marriage Registrar shall not use any letterhead paper or visiting card or circulate any handbill etc. or make any advertisement with inclusion of the words "Government of West Bengal" and the national emblem.

(9) A non-official Hindu Marriage Registrar shall arrange to procure Government approved registers/Books/forms and get them duly authenticated by the Registrar General prior to use of the same.

(10) A Hindu Marriage Registrar shall receive applications for registration by hand or by post.

(11) A Hindu Marriage Registrar shall enter the contents of the application received by him in the Application Register.

(12) A Hindu Marriage Registrar shall ensure necessary publication of the application in accordance with the provisions of these rules and shall ensure sending of copies of such application to the different addresses within the period specified in these rules.

(13) A Hindu Marriage Registrar shall ensure proper and timely submission of various reports return and statement to the Registrar General.

(14) A non-official Hindu Marriage Registrar shall ensure proper and timely deposit of Government share of fees collected by him and keep the Registrar General informed of it.

(15) A non-official Hindu Marriage Registrar shall ensure transmission of all Hindu Marriage Register along with related books, documents and records to the Registrar General within 15 days' of its completion.

(16) A non-official Hindu Marriage Registrar shall ensure safety and security of the papers relating registration of marriage kept in his office and the safety and security of marriage related papers carried him in transit to or from the Office of the Registrar General and other offices and while going to commissioning of registration of marriage outside his office.

(17) A non-official Hindu Marriage Registrar shall behave with the general public very cordially and politely and shall not do anything causing harassment to the public.



- (18) A non-official Hindu Marriage Registrar shall co-operate with the Registrar General, or an officer or employee authorized by him, while making inspection of his office /records.
- (19) If a non-official Hindu Marriage Registrar intends to resign, he shall give at least 30 days' notice to the State Government through the Registrar General.
- (20) A non-official Hindu Marriage Registrar shall arrange to make the public aware of his retirement date by displaying notice kept in a conspicuous place of his office at least before 30 days before his retirement date.
- (21) A non-official Hindu Marriage Registrar shall return his identity card, office seal, designation seal and other such papers or documents relating to his office within 7 days of his date of retirement to the Registrar General.
- (22) A non-official Hindu Marriage Registrar shall dismantle and destroy his office sign board immediately on the day following the date of his retirement.
- (23) A Hindu Marriage Registrar shall obey all instructions made by the State Government and the Registrar General.
- (24) A Hindu Marriage Registrar shall, before signing the Hindu Marriage Register, satisfy himself that the parties are getting their marriage registered voluntarily and that there is no element of force, coercion, fraud or any other manipulation behind it and he shall ensure that the signature of the parties in the Hindu Marriage Register and the signatures appearing in the application in Schedule A and made in the same language and are identical. He shall ensure that the conditions of section 5 are complied with.
- (25) The Hindu Marriage Registrar shall ensure that the Hindu Marriage Register is open at all reasonable times for inspection and arrange to issue certified extracts therefrom.
- (26) An *ex officio* Hindu Marriage Registrar shall perform such duties as are required under the provisions of the Act and the rules made thereunder.
- 8. Rights and entitlement of non-official Hindu Marriage Registrars.** – (1) Every non-official Hindu Marriage Registrar shall be entitled to retain—
- for receiving objection and hearing of such objection, 100% of the fees;
  - for all other purposes, 75% of the fees, collected by him under rule 26 as his share.
- (2) A non-official Hindu Marriage Registrar shall not be treated as an employee of the State Government and shall not be entitled to claim pension, gratuity or other retirement benefit from the State Government.
- (3) The Registrar General shall issue identity card to the non-official Hindu Marriage Registrars in the format mentioned in Schedule O.
- (4) A non-official Hindu Marriage Registrar shall have the right to issue certified copies of any document, original of which lies with him.
- (5) A non-official Hindu Marriage Registrar may distribute handbill etc., or display banner or signboard, or make advertisement in the mass media relating to his profession with prior approval of the contents from the Registrar General.
- (6) A non-official Hindu Marriage Registrar may issue notice to objector, parties and summon to witnesses and other persons for disposal of any objection received within objection period.
- (7) A non-official Hindu Marriage Registrar may seek information relating to age and residential addresses of the parties from any *Gram Panchayat*, Municipal Authority or other authority, free of cost, for disposal of any objection.



**9. Temporary closing of office of non-official Hindu Marriage Registrar.** – (1) The Registrar General may, upon a written application made minimum of one week before the date of closing of office, grant permission to a non-official Hindu Marriage Registrar to close his office for a period not more than seven (7) days.

(2) If a non-official Hindu Marriage Registrar intends to close his office for a period exceeding seven (7) days, he shall obtain prior permission of the Registrar General by making a written application minimum of two weeks before the date of such closing of office and shall submit all pending notices, applications and other documents immediately to the Registrar General under proper receipt.

**10. Retirement, Resignation etc. of Hindu Marriage Registrar.** – (1) A non-official Hindu Marriage Registrar may resign from his post by giving at least one month's notice to the Registrar General.

(2) A non-official Hindu Marriage Registrar shall retire from his appointment as non-official Hindu Marriage Registrar on completion of sixty-five years of age irrespective of the fact whether such completion of age is within the part of a month. No notice shall be served on the non-official Hindu Marriage Registrar requiring him to retire.

(3) No Hindu Marriage Registrar shall function as a Hindu Marriage Registrar after retirement or resignation or removal or suspension or restraining from works, as the case may be.

(4) The retirement, resignation, removal, suspension or restraining from works, as the case may be, of an *ex officio* Hindu Marriage Registrar, shall not be governed by these rules.

**11. Pending work and its disposal.** – (1) A non-official Hindu Marriage Registrar shall send pending applications and other documents lying with him at the time of his resignation, retirement, removal, suspension or restraining of works, as the case may be, to the Registrar General or to such Hindu Marriage Registrar having jurisdiction as the Registrar General may direct.

(2) If a non-official Hindu Marriage Registrar dies, or becomes incapable to perform the duties of Hindu Marriage Registrar, or remains out of station for more than six months, the family members or legal representatives of such non-official Hindu Marriage Registrar shall send the applications, registers and other filled in Schedules and related documents to the Registrar General under proper receipt.

### CHAPTER III Registration of Marriage

**12. Filing of application for registration of marriage.** – (1) The application for registration of marriage shall be given in Schedule A in triplicate (in quadruplicate if husband or wife at the time of filing application stays outside the jurisdiction of the Hindu Marriage Registrar to whom application for registration submitted with signature of both the parties to the registration of marriage provided one of the parties must reside for a period of not less than 30 days immediately preceding the date on which such application is given to the Hindu Marriage Registrar and such application may be presented to the Hindu Marriage Registrar at the place of marriage on commission basis on payment of the fees for such commissioning just after solemnization of the Hindu Marriage in accordance with Hindu religion and customary rites or in his office in person to both or either of the parties or sent by registered post along with seven sets of identical recent passport size joint photographs of husband and wife (eight sets if one of the parties to the registration of marriage resides outside the jurisdiction of the Hindu Marriage Registrar) duly signed by the husband and wife on the front side of the photographs and proof of age, residence (present and permanent) and marital status, if required of both the parties to the marriage and fees as specified in rule 26.

(2) The Hindu Marriage Registrar shall paste three sets of photographs on three copies of the application (four sets if one of the parties stays abroad) and one copy in the application register shall keep remain photographs with him and the extra copies shall be used during registration, if not barred by subsequent objection.

*Retirement  
65 yrs*



Where the application is presented in person, either of the parties to the marriage shall pay the fee specified in rule 26 in cash to the Hindu Marriage Registrar against issue of appropriate receipt in Schedule and the Hindu Marriage Registrar shall take the signature of such party or parties present on both the original and carbon copies of the receipt.

(4) Where the application is sent by registered post, —

- (a) either of the parties to the marriage shall remit the fee as specified in rule 26, by money order to the Hindu Marriage Registrar at the remitter's expenses and the original receipt issued to the remitter by the post office through which such remittance is being made, shall be attached to such application; and
- (b) the Hindu Marriage Registrar shall record acknowledgment of the application in the authenticated Application Registrar subject to the conditions that the amount of the fees as per rule 26 is received by money order and after receiving such fees by money order, the Hindu Marriage Registrar shall deliver the receipt of the fees realised by him to the party concerned at a later stage whenever the remitter of the fee will contact the concerned Hindu Marriage Registrar and record the same with the noting 'received through money order' in the Receipt Book.

**13. Processing of application filed.**— (1) As soon as a Hindu Marriage Registrar receives the application and necessary documents along with the prescribed fee, he shall—

- (a) satisfy himself that the application is in conformity with the requirements of the Act and the rules made thereunder and shall ascertain police station or Block or Municipality or ward of the Corporation to which the party or parties belong to and check whether the present address and permanent address of the party or parties have been written with mention of the police station in the application form and whether it falls within his jurisdiction;
- (b) put distinctive serial numbers on the application, that will run annually and consecutively in ascending order starting with serial number one at the beginning of a calendar year with the calendar year as suffix and shall also enter the date of receipt on each of the applications and write the serial numbers and date of receipt followed by his signature and designation seal;
- (c) enter a copy of the application in the authenticated Application Register in Schedule A and shall keep such application register available for inspection, all reasonable time at his office, without fee, by any person desirous of inspecting the same;
- (d) send a copy of the application received by him within two working days of the receipt of such application to the Registrar General by registered post or by speed post or by any other means that ensures acknowledgement by the Registrar General office subject to the condition that the fees of the application as per rule 26 has been received by the Hindu Marriage Registrar;
- (e) publish one of the copies of the application in a conspicuous place in his office under his signature and seal for a period of seven days from the date of receipt of such application, for inviting objection; (the date of submission of such application shall be counted as day number one).
- (f) inscribe the words "Objections, if any, to the registration of this marriage, shall be preferred by the objector in writing to the Hindu Marriage Registrar within seven days from the date of its publication" and its Bengali version as approved by the Registrar General on the application by rubber stamp.

(2) Where either of the parties to the intended registration of marriage is residing outside the jurisdiction of the Hindu Marriage Registrar, he shall send one of the copies of the application within next two working days, duly signed and affixed with photograph as specified in sub-rule (1), to the District Registrar and *ex officio* Hindu Marriage Registrar of the District where such party resides, who shall cause such copy to be displayed at some conspicuous place in his office.



(3) Where either of the parties presently resides abroad the Hindu Marriage Registrar shall send a copy of the application along with a forwarding letter in Schedule B addressed to the Hindu Marriage Registrar of the Indian Mission within whose jurisdiction such party is residing within next two working days for publication thereof for probable objection:

Provided that the parties to the marriage shall bear the actual expenses, for postal transmission of the application along with Schedule B and for subsequent correspondence on the subject with the Hindu Marriage Registrar in the Mission abroad, if any.

(4) The Hindu Marriage Registrar shall preserve one copy of the application in his file until its submission to the Registrar General subsequently in accordance with the provisions of these rules.

**14. Manner of disposal of objections and appeal, if any thereof.**— (1) Where any objection to the registration of a marriage has been received and recorded by the Hindu Marriage Registrar, together with the fee prescribed in rule 26, the Hindu Marriage Registrar shall inform the Registrar General immediately and inquire into the objection and dispose of the objection within thirty days from the date of receipt of such objection in the following manner:—

- (a) the Hindu Marriage Registrar shall, at the time of recording the objection, ascertain from the objector whether he has any document on which he relies or any witness whom he intends to get examined in connection with his objection and if the objector expresses his intention to produce any document or to get examined any witness, the Hindu Marriage Registrar shall require the objector to produce such document or witness on the day fixed for hearing;
  - (b) the Hindu Marriage Registrar shall send notice of hearing mentioning place and time of hearing, by registered post in Schedule D to the objector and to the parties at the expenses of the objector;
  - (c) if the objector or the parties request that summons be issued to any witnesses the Hindu Marriage Registrar shall issue summons in Schedule E to the witnesses by registered post at the expenses of the objector or the parties, as the case may be, mentioning the place, date and time for appearance of the witnesses, on payment of actual expenses on account of travelling of the witness by the objector or the parties;
  - (d) the enquiry relating to the objection including examination of witnesses and documents shall be completed within thirty days from the date of receipt of objection;
  - (e) if field inspection is necessary for disposal of an objection the Hindu Marriage Registrar shall conduct field inspection provided the objector deposits fees for such field inspection. The Hindu Marriage Registrar shall issue to the objector a receipt of the fees so taken after taking his signature on the backside of the carbon copy of the receipt retained by the Hindu Marriage Registrar in Schedule F;
  - (f) if the documents are not produced and the witnesses do not appear before the Hindu Marriage Registrar within the specified period of 30 days from the date of publication the Hindu Marriage Registrar shall not wait further and shall give his decision without any further delay;
  - (g) the Hindu Marriage Registrar shall make a note of the fact of objection on the corresponding application of intended marriage published in his office and also on other copy of such application preserved in his file and also send an intimation to the Registrar General within next two working days in the same manner in which application is forwarded to the Registrar General;
  - (h) the Hindu Marriage Registrar shall send a copy of decision of the inquiry to the Registrar General within two working days of the disposal of such objection in the same manner in which application is forwarded to the Registrar General.
- (2) The burden of proof of the objection lies on the objector.



3) Any person aggrieved by an order of refusing to register a marriage may, within thirty days from the date of the order, prefer an appeal –

(a) in the case of an order or refusal passed by any *ex officio* Hindu Marriage Registrar below the rank of a District Registrar appointed under the Registration Act, 1908, to the District Registrar for the area appointed under the said Act; and

(b) in any other case, to the Registrar General of Marriages, West Bengal.

(4) After such enquiry as he thinks fit and proper, the appellate authority shall, by order, –

(a) if he is satisfied about the identity of the parties to the marriage and the fact of marriage, direct the concerned Hindu Marriage Registrar that the marriage be registered; and

(b) if he is not satisfied about the identity of the parties to the marriage and the fact of marriage, dismiss the appeal.

(5) On receipt of the order of the appellate authority referred to in sub-rule (4), the concerned Hindu Marriage Registrar shall register or not register the marriage.

(6) The order of the appellate authority under sub-rule (4), shall be final.

**15. Registration of marriage.** – (1) If there is any objection, the Hindu Marriage Registrar shall dispose of the objection in terms of rule 14.

(2) If there is no objection, the Hindu Marriage Registrar (after expiry of the objection period of seven days and within the validity period of the application i.e. within six calendar months from the date of receipt of the application, within one year in case of either of the parties reside abroad) shall –

(a) obtain photocopies (verified with original) of documents such as proof of age, residence, death certificate of deceased spouse of any party, or decree of nullity of marriage or divorce of any party from the parties; and

(b) register the marriage on fulfilment of the provision of these rules.

(3) The Hindu Marriage Registrar shall ensure that the parties to the registration of the marriage and three witnesses write their full names, complete postal address and put signature in full along with their Left Thumb Impressions (LTI) to be attested by the Hindu Marriage Registrar, in the Hindu Marriage Register. The Hindu Marriage Registrar shall put his dated signature and give designation and office seal in the Hindu Marriage Register. If any party or witness cannot sign, he shall put RTI (Right Thumb Impression) instead of putting signature. The Hindu Marriage Registrar shall attest such thumb impressions. The Hindu Marriage Registrar shall ensure that nobody signs in block capital in the Hindu Marriage Register and the column relating to Schedule of offspring shall be filled up on the basis of documentary evidences.

(4) The Hindu Marriage Registrar shall paste one passport sized joint photograph of the parties self-signed by both and put his signature and designation seal on the photograph in such a manner that the photograph pasted on the top of a particular page of the Hindu Marriage Register as maintained in the format mentioned in Schedule C contains part of the signature and designation seal of the Hindu Marriage Registrar and residual part of the same is on the concerned page of the Hindu Marriage Register.

(5) The Hindu Marriage Registrar shall enter the consecutive year wise application serial number and certificate serial number in the left margin of the certificate in Schedule C.

(6) The actual place and actual time of the registration of the marriage shall be entered in the top left of the Certificate of registration in the Hindu Marriage Register maintained in the format mentioned in Schedule C. The Hindu Marriage Registrar shall ensure all the relevant columns of the Hindu Marriage Register are correctly filled in and no relevant column shall be kept blank and no page of the Hindu Marriage Register shall be kept unused between two consecutive registrations.



(7) The Hindu Marriage Registrar shall include the names of the children born out of this marriage on the basis of documentary evidences.

**16. Inclusion of photograph, address of parties etc. in Hindu Marriage Register.** – The Hindu Marriage Registrar shall ensure that present residential addresses with police station and postal code are written in the authorized Hindu Marriage Register. The complete postal address of each of the parties and three witnesses shall be mentioned after name of each of the parties and witnesses. One passport sized joint photograph self-signed by both shall be pasted in the top right side of the Hindu Marriage Register.

**17. Issue of Certificate of registration of Marriage to the parties.**– The Hindu Marriage Registrar shall, after the completion of formalities of the registration of marriage, issue to each of the parties to the registration of marriage, one identical original Certificate of marriage in Hindu Marriage Register in Schedule C and shall obtain the signature of both the parties on the backside of the carbon copy of the concerned page of the receipt book as a proof of handing over of the certificate to both the parties.

**18. Issue of Certified Copies of Certificate of registration of Marriage etc. to the parties and others.** – (1) The Hindu Marriage Registrar or the Registrar General, in whose custody the concern Hindu Marriage Register lies, shall issue certified copy of registration of marriage to any person who applies for such certified copy with requisite fee as per rule 26.

(2) Every Hindu Marriage Registrar shall ensure that a certified copy of the entries of the Hindu Marriage Register contains all particulars including, the page number of the Hindu Marriage Register, the distinctive application serial number the distinctive registration serial number, and the date of registration and the actual place and actual time of registration of the marriage in the same get up in which the original certificate was written. Photograph of parties to the registration of marriage need not be pasted in certified copies.

(3) A Hindu Marriage Registrar shall send true copy/copies of the particulars of registration of marriage and the entries made in the Hindu Marriage Register, to the Registrar General along with a weekly report for a particular week in Schedule C and Schedule H respectively within next two working days, in the same manner in which applications are sent to the Registrar General office. If no marriage is registered by a Hindu Marriage Registrar during a week, a nil report in Schedule H shall be sent to the Registrar General.

(4) The Hindu Marriage Registrar or the Registrar General shall issue certified copies of application, entries made in the Hindu Marriage Register, or other documents relating to registration of a marriage to any person who applies for such certified copy with requisite fee as per rule 26 if original records of such documents lie in his office.

**19. Registration of marriage beyond regular working hours and outside office of Hindu Marriage Registrar.** – A Hindu Marriage Registrar may, on application by both the parties to the marriage, register a marriage at any time beyond his regular working-hours and outside of his office within his jurisdiction upon receipt of such fees as mentioned in rule 26.

**20. Proof of age and residence of the parties and proof of Divorce.**– (1) A Hindu Marriage Registrar shall require from the parties their birth certificates, Board or Council or *Madrasah* Certificates or School Leaving Certificates, in order of priority as proof of their age. If any of the parties to the marriage fails to produce such documents, the Hindu Marriage Registrar shall require their Voters' Identity Cards, Permanent Account Number (PAN) Cards or any other document as proof of their age.

(2) The Hindu Marriage Registrar shall, for the purpose of the proof of residence of any of the parties to the marriage, require the Voter's Identity Card, Ration Card, Driving Licence, Passport or Electricity Bill.

(3) If any of the parties to the marriage fails to produce any of the documents mentioned in sub-rule (1) and sub-rule (2), the Hindu Marriage Registrar shall require such party to submit affidavit to be affirmed by their parents, or in the absence of the parents, by their guardian, showing their date of birth and residential address.



Where either or both of the parties to the registration of marriage has been a divorcee, the Hindu Marriage Registrar shall, before registration of the marriage, satisfy himself that such party was eligible to marry and shall, for the purpose, require the party to produce certified copy of the decree of divorce of Civil Court.

#### CHAPTER IV Books and Forms

**21. Hindu Marriage Register.** – (1) The Hindu Marriage Register containing Certificates of registration of marriages shall be printed on *azure laid* or conquest paper and shall be in forma binding with machine printed 100 running serial numbers in ascending order relevant for a particular Hindu Marriage Register and such Hindu Marriage Register shall be authenticated.

(2) Every Certificate of registration of marriage entered in the Hindu Marriage Register during each calendar year shall be consecutively numbered in running serial starting from one. The Hindu Marriage Registrar shall write the distinctive serial number and date of the application with the calendar year as the suffix at the left margin of the page.

(3) In the certified copy of the Hindu Marriage Register, the Hindu Marriage Registrar shall write all the above-mentioned in sub-rule (2) along with the page number of the Hindu Marriage Register in left margin of the certified copy in Schedule C.

(4) Every Hindu Marriage Registrar shall ensure that the entries in Hindu Marriage Register are made strictly according to the chronological order of dates on which the parties along with witnesses turn up for registration of marriage.

(5) Once the Hindu Marriage Register is filled up and signed by the parties to the registration of marriage and the three witnesses, the Hindu Marriage Registrar shall have no authority to strike out or cancel any such entry in the Hindu Marriage Register:

Provided that the Hindu Marriage Registrar may make necessary correction in the Hindu Marriage Register in terms of rule 37.

Provided further that the Hindu Marriage Registrar may use a separate page if he detects any material error before signing the Hindu Marriage Register.

**22. Use of Government printed registers, books, forms etc.** – (1) The Hindu Marriage Registrars shall use Government supplied and authenticated Application Register, Receipt Book, Hindu Marriage Register, Cash Book and Schedules.

(2) The Registrar General or any other officer authorised in this behalf, shall super scribe on the first page of the Application Register, Receipt Book, Hindu Marriage Register and Cash Book the following words:—

- (a) Certified this Book/register contains 100 pages serially machine numbered from page No. ....  
..... to..... and this is for use of Sri/Smt. ....  
Hindu Marriage Registrar for.....(area of jurisdiction); or
- (b) Sri/Smt ..... Hindu  
Marriage Registrar for ..... (area of jurisdiction) is directed to record the  
page numbering of this book/register from page No. .... to .....  
consecutively in machine numbered form and he/she is authorised thereafter to use this book/  
register.



(2) The authentication and page numbering shall not be necessary for Government supplied forms mentioned in the Schedules. Such forms shall be in Anglo-Bengali version. The Hindu Marriage Registrar shall fill up either of Bengali-version or English-version as per choice of the parties.

(3) The Registrar General shall maintain records of the details of authentication of the Application Register, Receipt Book, Hindu Marriage Register and Cash Book in respect of all non-official Hindu Marriage Registrars.

(4) The Application Register, Receipt Book, Hindu Marriage Register and Cash Book supplied to the *ex officio* Hindu Marriage Registrars need not be authenticated.

(5) The Registrar General shall supply reasonable numbers of Books, Registers and forms mentioned in Schedules to the non-official Hindu Marriage Registrars on payment of such amount of money as fixed by the State Government from time to time. Such Books, Registers and forms shall be supplied free of cost to the *ex officio* Hindu Marriage Registrars by the Registrar General.

(6) If Government printed Books, Registers and forms mentioned in Schedules are not available, the Registrar General may, by order in writing, allow to the Hindu Marriage Registrar to procure or to print at his own cost the required Books, Registers and such forms in conformity with the size, format and contents of Government supplied Books, Registers and such forms. Such Books, Registers and forms shall, before use, be authenticated by the Registrar General.

**23. Cash Book.**— (1) Every Hindu Marriage Registrar shall maintain a Cash Book as given in Schedule G. The Cash Book shall be in bound volume of 100 pages (left and right side bearing the same number will constitute a page) and shall be authenticated before use. The Cash Book shall be maintained day wise. All fees received under these rules shall be brought into account in the Cash Book every day by mentioning therein the date, the receipt number and particulars of transaction and the Hindu Marriage Registrar shall, after closing the day's balance and verifying the same, sign the Cash Book as a token of certifying the correctness of collection of the day's total receipt of fees and payment of the proportionate share to the Government and to himself.

(2) The Cash Book shall be of single entry nature and the closing balance of the Cash Book shall be accurately computed and written in ink pen or ball pen both in figures and in words.

**24. Size and form of other books etc., and manner of printing** – All Books, Registers and forms mentioned in Schedules, apart from the Receipt Book, shall be of 33cm x 21 cm size and the Receipt Book shall be of 17cm X 14 cm and in *azure laid* papers.

#### CHAPTER V

#### Fees and deposit of Government Share

**25. Receipt Book.**— (1) Every non-official Hindu Marriage Registrar shall use Receipt Book as given in Schedule F, for the purpose of acknowledging receipt of fees from a party or other person. The Receipt Book shall be in bound volume of 200 pages bearing 100 running serial numbers each in duplicate. The Receipt Book shall be used strictly in the ascending order with no unused pages in between two consecutive serial numbers.

(2) Every Hindu Marriage Registrar shall issue receipt against payment of fees and the party/parties present before the Hindu Marriage Registrar or the concerned person making payment (in case of certified copy) shall put their signatures on both the original and duplicate copy of the receipt. The Hindu Marriage Registrar shall use carbon paper on both sides or double carbon papers in such a manner that the backside of the original receipt will get an identical impression of its front side. The original receipt shall be provided to such party/parties present before the Hindu Marriage Registrar or the concerned person making payment (in case of certified copy) and the Hindu Marriage Registrar shall retain the carbon copy.

(3) No Hindu Marriage Registrar shall use more than one Receipt Book at a time.



**Fees.** – (1) The fees for various services in connection with the registration of a marriage and other fees shall be, as detailed below:–

Table of Fees

| Sl. No. | Particulars                                                                                                                                                                                        | Amount of fees                                                                   |
|---------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|
| (i)     | For receiving an application of registration of marriage at office of the Hindu Marriage Registrar                                                                                                 | Rs.100 (One hundred);                                                            |
| (ii)    | For receiving application of registration of Marriage outside office of the Hindu Marriage Registrar at a place chosen by parties (within the jurisdiction of the Hindu Marriage Registrar)        | Rs. 200 (Two hundred);                                                           |
| (iii)   | For receiving an objection at the office of the Hindu Marriage Registrar (to be paid by the objector)                                                                                              | Rs. 50 (fifty);                                                                  |
| (iv)    | For holding inquiry into an objection (to be paid by the objector and the whole of fees so realized shall be retained by the Hindu Marriage Registrar without any payment to the State Government) | Rs.300 (three hundred);                                                          |
| (v)     | For registration of a marriage including issue of two copies of original certificate to both of the parties                                                                                        | Rs. 400 (four hundred);                                                          |
| (vi)    | For registration of marriage at any time outside the office hours.                                                                                                                                 | Rs.200 (two hundred);                                                            |
| (vii)   | For registration of a marriage in any place outside the office of a Hindu Marriage Registrar but within his jurisdiction in addition to fee specified in serial No. (iv).                          | Rs.400 (four hundred);                                                           |
| (viii)  | For certified copy of entries in–                                                                                                                                                                  | Rs.100 (one hundred) per copy;                                                   |
|         | (a) Application Register; or                                                                                                                                                                       |                                                                                  |
|         | (b) Hindu Marriage Register; or                                                                                                                                                                    |                                                                                  |
|         | (c) other marriage related records as per the Act and the rules.                                                                                                                                   |                                                                                  |
| (ix)    | for inspection of one original entry of any specific record or register–                                                                                                                           |                                                                                  |
|         | (a) in case of record or register being less than one year old;                                                                                                                                    | Rs 100 (one hundred) per entry maximum of Rs.500 (five hundred) per register,    |
|         | (b) in case of record or register being one year or more old but less than five years' old,                                                                                                        | Rs 200 (two hundred) per entry maximum of Rs.1000 (one thousand) per register,   |
|         | (c) in case of record or register being more than five years' old,                                                                                                                                 | Rs. 400 (four hundred) per entry maximum of Rs.2000 (two thousand) per register; |
| (x)     | for searching of record or register–                                                                                                                                                               |                                                                                  |
|         | (a) in case of record or register being less than one year old;                                                                                                                                    | Rs. 500 per person per day;                                                      |
|         | (b) in case of record or register being one year or more old but less than five years' old,                                                                                                        | Rs.1000 per person per day;                                                      |
|         | (c) in case of record or register being more than five years' old,                                                                                                                                 | Rs. 2000 per person per day;                                                     |

*Note.*– The expression “per day” means the period between 11.30 a.m. to 4.30 p.m.



- |       |                                                                                                                                                                                                         |                                                                                          |
|-------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| (xi)  | for correction of any document                                                                                                                                                                          | Rs.100 (one hundred) per error subject to maximum of Rs .200 (two hundred) per document; |
| (xii) | for authentication or verification by the Registrar General of the genuineness of original certificate or certified copies of certificates or of any entry of any record or register under these rules. | Rs. 1000 (one thousand only) per record.                                                 |

(2) A non-official Hindu Marriage Registrar shall retain 100% of the fees mentioned in serial Nos. (iii) and (iv) of Table of Fees to sub-rule (1) for receiving objection and holding inquiry into an objection and 75% of all other fees mentioned in other serial Nos. of the said Table of Fees, as his remuneration. The balance amount of the fees shall be credited by such non-official Marriage Officer to the State Government under the Head of accounts mentioned in rule 27.

(3) The whole of the fees realized by an *ex officio* Marriage Officer and the Registrar General shall be credited to the State Government under the Head of accounts mentioned in rule 27.

(4) The amount of fees mentioned in Table of Fees to sub-rule (1) of rule 26, shall be reduced to half of the said amount of fees, if either of the parties to the marriage belongs to the Below Poverty Line (BPL) category and a Certificate in Schedule N of the Secretary of the *Gram Panchayat*, or the Executive Officer of a Municipality, or the Executive Engineer of the concerned Borough of a Corporation, where such party to the marriage resides, has been submitted to the Hindu Marriage Registrar at the time of submission of application.

**27. State Government's share of fees and its deposition.**— (1) Every Non-official Hindu Marriage Registrar, on or before the 7th day of the next month, deposit the Government share of 25% of all fees mentioned in serial Nos. (i), (ii), (v), (vi), (vii), (viii), (ix), (x) and (xi) of Table of Fees to sub-rule (1) of rule 26, collected in the previous month with the Reserve Bank of India, Kolkata, or other Treasury linked banks branches in the Kolkata or districts or sub-divisions, as the case may be, by challan in T.R. Form No. 7, under the Head of account "0070-60-108-Marriage fees-001-collection under Marriage Act-12- registration Fees", in case the total amount of fees collected by the Hindu Marriage Registrar exceeds Rs. 5000:

Provided that if the total amount of fees collected by a Hindu Marriage Registrar does not exceed Rs. 5,000 during three calendar months, the Hindu Marriage Registrar shall, on or before the 7th day immediately after expiry of said three calendar months, deposit 25% of total amount of fees of Government share.

Provided further that if the total amount of Government share during the previous three calendar months is nil, the Hindu Marriage Registrar shall, on or before the 7th day immediately after expiry of the said three calendar months, send a 'Nil' report to the Office of the Registrar General.

(2) Every *ex officio* Marriage Officer shall, immediately after collection of fees as mentioned in rule 26, deposit the same with the State Government under the Head of account mentioned in sub-rule (1) and shall maintain a Cash Book.

(3) The Registrar General shall have the right to obtain verification of particulars of such deposit free of cost from the Reserve Bank India or treasury or sub-treasury for the purpose of reconciliation of the amount deposited and remitted through Treasury as the State Government share of fees.

#### CHAPTER VI Report and Return

**28. Reports and returns.**— (1) Every Hindu Marriage Registrar shall send to the Registrar General the following reports and returns in the manner provided in rule 13(1) (d):—

- (a) one of the applications received and duly processed shall be sent within two working days of its receipt;



- (b) weekly-report of registration of marriages, certified copies of the entries in the Hindu Marriage Registers together with a forwarding letter in the form mentioned in Schedule H by next two working days or on the following day, if that day is a holiday;
- (c) original copy of challan in T.R Form No. 7 of the Reserve Bank India or the treasury/sub-treasury, in respect of every remittance of the State Government's share of fees, in the manner specified in rule 27, deposited with the Reserve Bank of India/Treasury linked banks within the 10th of the following month, the next working day if the 10th is a holiday in Schedule I;
- (d) quarterly statement in Schedule J in respect of marriages registered under the Act, by 15th of April or July or October or January, for the first or second or third or fourth Quarterly Report, respectively, of a calendar year, the next working day if the 15th is a holiday;
- (e) an annual physical statement in Schedule K of marriages for the previous calendar year within 31st January of the current calendar year, the next working day, if the 31st January is a holiday;
- (f) an annual financial statement of registration of marriages for the previous financial year in Schedule L within 30th April of the current financial year the next working day, if the 30th April is a holiday.

(2) While submitting exhausted Hindu Marriage Register or other records, the Hindu Marriage Registrar shall submit a forwarding letter in the form in Schedule M, in duplicate one of which will be kept at the office of the Registrar General and the other will be handed over to him after duly received.

(3) Every Hindu Marriage Registrar shall, on the instruction of the Registrar General or the State Government, send such other reports, returns and statements as mentioned in such instruction, from time to time.

**29. Validity period of use of Hindu Marriage Register and their submission to Office of Registrar General.**—(1) When Hindu Marriage Register is completed or exhausted as a result of registration of marriages, a non-official Hindu Marriage Registrar shall submit the same with the usual index in Schedule M attached, along with the connected Applications, exhausted Receipt Books and Cash Books, and other connected papers and documents, if any, within fifteen days from the date completion of such Hindu Marriage Register to the Registrar General.

(2) Where a Hindu Marriage Register is not exhausted within three years of bringing the same under use, the non-official Hindu Marriage Registrar shall submit the same to the Registrar General for revalidation of continuing it to use the same for another one year. The non-official Hindu Marriage Registrar shall not, without obtaining such revalidation from the Registrar General, again use such Hindu Marriage Register. Such Hindu Marriage Register shall be submitted to the Registrar General after expiry of the period of such revalidation even if the same does not exhaust.

(3) The *ex officio* Hindu Marriage Registrar shall use and maintain such Hindu Marriage Register as per their departmental guidelines and preserve these records in their own offices.

(4) If any Hindu Marriage Registrar is required to submit any record of marriage or any other document in connection with marriage to any court of law or any other statutory authority, he shall forthwith intimate such fact to the Registrar General. In such case, particular page of a Register or Book shall not be detached and submitted to such court or authority.

#### Chapter VII General Control

**30. Control of Registrar General over Hindu Marriage Registrars.**—(1) The power of supervision of the working of the Hindu Marriage Registrars shall be vested in the Registrar General and the Registrar General shall be the controlling authority of all Hindu Marriage Registrars.



(2) All Hindu Marriage Registrars shall comply with all orders, directions and instructions given by the Registrar General or by the State Government communicated through the Registrar General.

(3) The Registrar General or any official authorized by the Registrar General may inspect the office of any Hindu Marriage Registrar and may ask for the production of any records from such Hindu Marriage Registrar.

(4) The Registrar General may direct any Hindu Marriage Registrar to submit any Hindu Marriage Register, Receipt Book, Cash Book, Application Register or other related documents even if such Book, Registers and documents are not exhausted.

(5) The Registrar General or any official authorized by the Registrar General may seize any Hindu Marriage Register, Receipt Book, Cash Book, Application Register or other documents in public interest from the office of any Hindu Marriage Registrar under proper receipt.

(6) The Registrar General may, after recording the reasons in writing, exercise the same powers of a Hindu Marriage Registrar throughout the State of West Bengal, in the interest of public and in such case, the provisions of the Act and the rules made thereunder shall, *mutatis mutandis*, apply.

(7) The Registrar General may—

(a) report to the police against a Hindu Marriage Registrar on reasonable suspicion based on *prima facie* documentary evidences for establishing commission of an offence of forgery of documents relating to registration of marriage or defalcation of share of the State Government;

(b) refer any record and document to different wings of the State Government including the State Forensic Science Laboratory for verification of genuineness of any document.

**31. Disposal of Public grievance petition by Registrar General.**— In cases where the Registrar General or any officer duly authorized by the Registrar General would feel it necessary to contact such civil offices of the Government of West Bengal or police stations as would be felt necessary to complete the enquiry into the public grievance or misconduct or gross misconduct to unearth the truth, such civil and police official shall render all necessary and lawful assistance to the Registrar General or any officer duly authorized by the Registrar General in the matter.

## CHAPETR VIII

### Penalty and Appeal against order of Disciplinary Authority

**32. Misconduct and Gross Misconduct.**— (1) If any Hindu Marriage Registrar,—

- (a) starts functioning as non-official Hindu Marriage Registrar without display of his office signboard or without submitting information to the Registrar General as required under sub-rule (3) of rule 5; or
- (b) does not display the Table of fees in a conspicuous place in his office as required under sub-rule (4) of rule 5; or
- (c) does not send the weekly report, quarterly report, annual report and other reports or returns to the Registrar General properly and timely; or
- (d) does not open office during office time or does not remain present at his office without sufficient reason or violates sub-rule (3) of rule 7; or
- (e) opens any branch office or works through an agent in violation of sub-rule (3) of rule 5; or
- (f) changes office without approval of the Registrar General or the State Government; or
- (g) uses unauthenticated application Register, Receipt Book, Cash Book and Hindu Marriage Register; or



- (h) uses forms mentioned in Schedules not procured from the State Government or without approval of the Registrar General; or
  - (i) keeps any page of the authenticated Hindu Marriage Register or Receipt Book blank and/or uses the pages of such Books at random or without maintaining sequence of time or date; or
  - (j) uses more than one Application Register or Receipt Book or Cash Book or Hindu Marriage Register authenticated or unauthenticated simultaneously; or
  - (k) violates the provisions of these rules relating to deposition of Government share of fees; or
  - (l) receives fees from party/parties without its entry in the authenticated Receipt Book on that day; or
  - (m) charges more fees than the fees mentioned in rule 26; or
  - (n) does not report to the Registrar General for transfer of pending applications and papers and documents, in violation of rule 9; or
  - (o) displays his office signboard in violation of official instruction, prepares his designation seal in violation of his competence and prepares his office seals in violation of his official status or uses any letterhead paper to that effect or causes any advertisement or publicity in any manner not permitted under these rules; or
  - (p) does not comply with any orders/directions of the State Government or the Registrar General, such Hindu Marriage Registrar shall commit a misconduct under the provisions of this rule.
- (2) If any Hindu Marriage Registrar –
- (a) receives application from parties beyond jurisdiction; or
  - (b) does not send copy of the application to the Registrar General / District Registrar or the Indian Mission wherever applicable as per Act and rules within two working days; or
  - (c) does not display the application on his office notice board as per the provisions of these rules; or
  - (d) does not maintain the application register properly; or
  - (e) does not show the contents of application register to any person desirous of having such information; or
  - (f) does not entertain or dispose any objection submitted before him as per Act and Rules; or
  - (g) makes registration of a marriage without disposal of the objection; or
  - (h) makes registration of a marriage within the objection period and beyond the validity period of the application and in violation of the provisions of the Rules; or
  - (i) enters wrong or false or incomplete marriage registration related particulars in the Hindu Marriage Register; or
  - (j) does not ensure that the party/parties who signed the application signs the Hindu Marriage Register in the same language and marks Left Thumb Impression (LTI) thereon; or
  - (k) does not paste photograph of the parties as per rules; or
  - (l) issues fake certificate of registration of marriage or fake certified copy of registration of marriage to any person; or
  - (m) issues certified copy of registration of marriage before entry in the Hindu Marriage Register; or
  - (n) fails or omits or neglects to preserve the marriage registration related Books, Registers or documents in legible condition till those are submitted to the Office of the Registrar General; or



- (o) wilfully destructs or causes destruction of records relating to registration of marriage;
- (p) does not issue proper receipt taking permissible fees or charges more fees than permitted under rule 26; or
- (q) violates the provisions of rule 27; or
- (r) violates any specific instruction of the State Government or the Registrar General; or
- (s) has been convicted for an offence involving moral turpitude by any court; or
- (t) does not submit the exhausted or completed Hindu Marriage Register along with other registration related Books or documents to the Office of Registrar General within time as per these rules; or
- (u) repeatedly causes misconduct as specified in sub-rule (1), such Hindu Marriage Registrar shall commit a gross misconduct under the provisions of this rule.

**33. Penalty for misconduct or gross misconduct.** – (1) A non-official Hindu Marriage Registrar, who has committed misconduct specified in the sub-rule (1) of rule 32, shall be liable to any of the following penalties:—

- (a) caution; or
- (b) censor; or
- (c) suspension of works upto one year.

(2) A non-official Hindu Marriage Registrar who has committed gross misconduct specified in the sub-rule (2) of rule 32, shall be liable to any of the following penalties:—

- (a) suspension of works upto two years; or
- (b) removal.

(3) Where any Marriage Officer is restrained from functioning as Marriage Officer under the Special Marriage Act, 1954, his appointment as Hindu Marriage Registrar under these rules, shall automatically be terminated.

(4) The penalties under this rule shall be imposed by the appointing authority. The appointing authority shall be the Disciplinary Authority.

(5) No penalty shall be imposed to an *ex officio* Hindu Marriage Registrar in accordance with the provisions of these rules as such an *ex officio* Hindu Marriage Registrar is a Government employee and accordingly, any kind of misconduct relating to registration of marriages shall be governed by the West Bengal Service Rules etc.

**34. Procedure for penal action.**— (1) No penalty as specified in rule 33, shall be imposed on a non-official Hindu Marriage Registrar without giving him an opportunity of being heard in a proceeding to be initiated by the Disciplinary Authority.

(2) The Registrar General may, on receiving a complaint or *suo motu*, if he has any reason to believe that a non-official Hindu Marriage Registrar has *prima facie* committed a misconduct or gross misconduct under rule 32, direct the said non-official Hindu Marriage Registrar to show cause within a period specified in that order.

(3) If the said non-official Hindu Marriage Registrar fails to show the cause within the specified period in spite of proper service of the order, or has made a reply, which is not satisfactory to the Registrar General, the Registrar General may refer the matter to the Disciplinary Authority for initiating disciplinary proceedings.

(4) The Disciplinary Authority may, after giving the Hindu Marriage Registrar an opportunity of being heard, frame article of charges along with statement of imputations against such non-official Hindu Marriage Registrar.



(5) The Disciplinary Authority shall serve the Charge sheet containing article of charges through the Registrar General upon the Hindu Marriage Registrar and shall require the Hindu Marriage Registrar to submit to the Disciplinary Authority within such time, as may be specified in that order, a written statement of his defence.

(6) Upon receiving the reply to the Charge sheet, the Disciplinary Authority may hold an enquiry by appointing an Inquiring Authority and a Presenting Officer.

(7) The Inquiring Authority shall submit report findings to the Disciplinary Authority.

(8) Upon receiving report of the Inquiring Authority, the Disciplinary Authority may, for reasons to be recorded in writing, impose penalty as specified in rule 33 against the non-official Hindu Marriage Registrar.

(9) The Disciplinary Authority may, by order, suspend a non-official Hindu Marriage Registrar pending Departmental Proceeding and this suspension order shall not be treated as suspension order by way of penalty imposed through a Departmental Proceeding in accordance with the provisions of rule 34 read with rule 32.

*Explanation.*— For the purpose of this rule, the expression "Inquiring Authority" shall mean an officer not below the rank of the Deputy Secretary to the Government Of West Bengal, appointed by the Disciplinary Authority for the purpose of enquiry and the expression "Presenting Officer" shall mean an employee appointed by the Disciplinary Authority for the purpose of presenting the documents in connection with such enquiry.

**35. Restraining of works of non-official Hindu Marriage Registrar.**— (1) Notwithstanding anything contained in rule 32, when the Registrar General receives credible information that a non-official Hindu Marriage Registrar has committed Misconduct or Gross Misconduct or the Registrar General has reason to believe that such Hindu Marriage Registrar has been committing Misconduct or Gross Misconduct which are detrimental to public interest, particularly the interest of women, minor and other vulnerable sections of the society, and there is urgent need to stop such illegal activities of the non-official Hindu Marriage Registrar, the Registrar General may by Order direct the non-official Hindu Marriage Registrar to stop work immediately up to a period of six months which may be extended up to one year for reasons to be recorded in writing by the Registrar General and shall report the matter to the State Government and shall also take necessary steps for initiating departmental proceedings against the non-official Hindu Marriage Registrars.

(2) Upon receipt of the report from the Registrar General the State Government may, by order, suspend the Hindu Marriage Registrar:

Provided that the Order directing stop of work under sub-rule (1) in public interest or the suspension Order in contemplation of Departmental Proceedings shall not be construed as penalty.

**36. Appeal against order of Disciplinary Authority.**— A non-official Hindu Marriage Registrar may prefer appeal before the Appellate Authority against an order of the Disciplinary Authority imposing penalty against him within a period of ninety days from the date of said order.

#### CHAPTER IX Miscellaneous

**37. Corrections.**— (1) The correction of errors in the Hindu Marriage Register and other connected documents by the Hindu Marriage Registrar, shall, on the application of either of the parties to the registration of marriage and on payment of such fees as specified in rule 26, be made in the manner as laid down in sub-rule (2).

(2) While making correction of any inadvertent error in any record, use of correction fluid or ink, erasures, over-writing, pasting of paper etc., shall not be made and, if necessary, correction of an error shall be made by the Hindu Marriage Registrar by drawing a line through the erroneous words with a pen so that the words which would be penned through may remain legible even after correction. Every correction shall be made along with dated signature of the authorized person.



**38. Preservation of records in office of Registrar General.**— (1) subject to the other provisions of this rule records relating to or in connection with marriages registered under the Act, shall be preserved in physical form, in the office of the Registrar General.

(2) The following records relating to, or in connection with, marriages registered under the Act, shall be preserved in perpetuity:—

- (a) applications for registration of marriage including lapsed applications in original with connected enclosures;
- (b) Hindu Marriage Register; and
- (c) Cash Book.

(3) The following records relating to, or in connection with, marriages registered under the Act, shall be preserved for a period of twelve years:—

- (a) Application Register;
- (b) papers and documents relating to inquiry into objections;
- (c) Receipt Book;
- (d) copies of original T.R. Form No. 7, showing deposit of Government share.

(4) The following records relating to, or in connection with, marriages registered under the Act, shall be preserved for five years:—

- (a) Weekly Report;
- (b) Quarterly Report; and
- (c) Annual Reports.

**39. Repeal and savings.**— (1) The West Bengal Hindu Marriage Registration Rules, 1958, as in force in the State of West Bengal, is hereby repealed:

(2) Notwithstanding such repeal, any action taken or anything done or order issued, shall, in so far as it is not inconsistent with the provisions of these rules, be construed to have been taken, done or issued under the relevant provisions of these rules.

(3) Without prejudice to the generality of the foregoing provisions of this rule, it is hereby declared that —

- (a) Any non-official Hindu Marriage Registrar appointed under the provisions of the West Bengal Hindu Marriage Registration Rules, 1958, shall function as non-official Hindu Marriage Registrar as if he has been appointed under these rules; and
- (b) The Disciplinary Proceeding initiated against any non-official Hindu Marriage Registrar under the provisions of the West Bengal Hindu Marriage Registration Rules, 1958, shall be continued under the provisions of these rules.

## SCHEDULE A

[See sub-rule (1) of rule 12]

## Application for registration of marriage under the Hindu Marriage Act, 1955.

To,

The Hindu Marriage Registrar,

( name of district/sub-division/block/municipality/corporation )

We hereby give you application for registration of our marriage under section 8 of the Hindu Marriage Act, 1955 and under sub-rule (1) of rule 8 of the West Bengal Hindu Marriage Registration Rules, 2010.

## 2. The particulars relating to our marriage are given below:—

## (a) Particulars of the Husband—

- (i) name of the Husband :  
 (ii) father's name :  
 (iii) present age :  
 (iv) present address :  
 (v) permanent address :  
 (vi) condition at the time of marriage : Unmarried/ Divorcee/ Widower

## (b) Particulars of the Wife—

- (i) name of the Wife :  
 (ii) father's name :  
 (iii) present age :  
 (iv) present address :  
 (v) permanent address :  
 (vi) condition at the time of marriage : Unmarried/ Divorcee/ Widow

## (c) Particulars of children, if any —

- (i) Son or Daughter Born on  
 (ii) Son or Daughter Born on

## 3. We hereby declare that—

- (a) a Hindu Marriage has been/was solemnized in accordance with the customary rites and ceremonies in terms of section 5 and section 7 of the Hindu Marriage Act, 1955, between .....  
 and ..... on .....

(name of the husband)

..... on .....  
(name of the wife)

(date of marriage)

at ..... ;

(full address of the place of marriage)



- (b) neither of us had a spouse living at the time of the marriage;
- (c) neither of us—
- (i) is incapable of giving a valid consent to it in consequence of the unsoundness of mind, or
  - (ii) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or such an extent as to be unfit for marriage and the procreation of children, or
  - (iii) has been subject to recurrent attacks of insanity;
- (d) the husband has completed the age of twenty-one years and the wife has completed the age of eighteen years at the time of the marriage;
- (e) we are not within the degrees of prohibited relationship;
- (f) we are not *sapindas* of each other;
- (g) a ceremony of marriage was performed between us on ..... at .....  
..... (place) and we have been living together as  
husband and wife since the above-referred date of marriage;
- or
- a ceremony of marriage has been performed between us on ..... at .....  
..... (place) and since solemnization of our  
marriage we are husband and wife.
4. We further declare that all the above particulars are true to the best of our knowledge and belief.

Station :

Date :

.....  
(Full signature of the Husband)

.....  
(Full signature of the Wife)

**SCHEDULE B**

[See sub-rules (2) and (3) of rule 13]

**Forwarding Letter to Registrar General/District Registrar/Indian Mission**

OFFICE OF SRI/SMT. ....  
THE HINDU MARRIAGE REGISTRAR FOR ..... ( jurisdiction)

To : The Registrar General of Marriages, West Bengal,  
11A, K. S. Roy Road, Panchayat Bhawan (2nd Floor), Kolkata- 700 001 \*/

The District Registrar .....  
..... \*/

The Indian Mission .....  
..... \*

Subject: Application for registration of marriage dated ..... between  
Sri ..... and  
Smt. .... wide publicity thereof.

In forwarding herewith a copy of application of the intended registration of marriage between above-mentioned parties under the Hindu Marriage Act, 1955. I have the honour to send the same to you as per sub-rules (2) and (3) of rule 13 of the West Bengal Hindu Marriage Registration Rules, 2010.

OR

In forwarding herewith a copy of application of the intended registration of marriage between the above-mentioned parties under the Hindu Marriage Act, 1955. I have the honour to state that since Sri ..... and/or Smt. .... is a permanent resident of ..... which falls within your jurisdiction. The said application may kindly be prominently displayed in a conspicuous place as required under the Act, for a period of not less than seven days with effect from the date of the application mentioned above.

OR

In forwarding herewith a copy of application of the intended registration of marriage between the above-mentioned parties under the Hindu Marriage Act, 1955. I have the honour to state that since Sri ..... and/or Smt. .... resided at ..... which falls within your jurisdiction, the said application may kindly be prominently displayed in a conspicuous place as required under the Act, for a period of not less than seven days with effect from the date of the application mentioned above.

Receipt of the same may kindly be acknowledged.

Enlo: as stated.

Signature of the Hindu Marriage Registrar with designation seal

Contact number:

Office seal

Date :

\*Strike out if not applicable.



## SCHEDULE C

Certificate of registration  
[See sub-rule (4) of rule 15]

## Hindu Marriage Register under sub-section (1) of section 8 of the Hindu Marriage Act, 1955.

I, ..... hereby certify that .....  
(name of the husband)  
..... son of .....  
of ..... and .....  
(address of the husband) (name of the wife )  
daughter of ..... of .....  
(address of the wife )  
appeared before me this ..... day of ....., 20.....,  
and that each of them, in my presence of three witnesses who have signed hereunder, has declared that a Hindu Marriage  
was solemnized in accordance with the customary rites and ceremonies in terms of section 5 and section 7 of the Hindu  
Marriage Act, 1955, on ....., at .....  
between them and that they have been living together as husband and wife since the time of their marriage, and that in  
accordance with their desire to have their marriage registered under the Hindu Marriage Act, 1955, the said marriage has,  
this ..... day of ....., 20....., been registered under the said Act  
with effect from .....

.....  
(Full signature of Hindu Marriage Registrar  
with date and seal )

Full signature and LTI of the husband with date

(LTI and RTI in case of illiterates) : .....

Full signature and LTI of the wife with date

(LTI and RTI in case of illiterates): .....

Full signatures with date and address of three witnesses are as follows:-

(1) .....

(2) .....

(3) .....

Schedule of children born within the marriage (if any):

i)

ii)

SCHEDULE - D

[See clause (b) of sub-rule (1) of rule 14]

NOTICE

BEFORE THE HINDU MARRIAGE REGISTRAR, .....  
(name of the place)

In the matter of the Hindu Marriage Act, 1955;

And

In the matter of application to register the Hindu Marriage, between—

A. B. ....  
(name and address of the husband)

.....; and

C. D. ....  
(name and address of the wife)

.....;

And

In the matter of objection preferred to the registration of this marriage by—

E. F. ....  
( name and address of the objector )

.....;

To,

\* A. B./ C. D./ E. F.

.....  
( address )

Whereas an application for the registration of the Hindu Marriage between A. B. and C. D. was received by the Hindu Marriage Registrar on .....

Whereas E. F. has received certain objections (set out overleaf) to the registration of the marriage;

Whereas the Hindu Marriage Registrar will hold an enquiry into the matter of the said objection on ..... day of ....., 20....., at his office. You are hereby required to be present at ..... a.m./p. m. on the said day together with all document with you to rely on and any witness or witnesses whom you may desire to be examined on your behalf;

Take notice that, in default of your appearance on the aforesaid day, the enquiry will be made and decided in your absence.

If you apprehend that your witness will not attend unless summoned by the Hindu Marriage Registrar, you should apply to the Hindu Marriage Registrar for issue of such summons sufficiently early together with the prescribed process fee for and the reasonable expenses of travelling and subsistence of the witness.

Give under my hand and seal.

Station :

Date :

.....  
(Signature of the Hindu Marriage Registrar  
and designation with seal)

\*Strike out which is not applicable.



## SCHEDULE E

[See clause (c) of sub-rule (1) of rule 14]

## Summons to Witness

BEFORE THE HINDU MARRIAGE REGISTRAR, .....  
 ( name of the place )

In the matter of the Hindū Marriage Act, 1955;

And

In the matter of the application to register the Hindu Marriage, between—

A. B. ....  
 (name and address of the husband)

.....; and

C. D. ....  
 (name and address of the wife)

.....

And

In the matter of objection preferred to the registration of this marriage by—

E. F. ....  
 ( name and address of the objector )

.....

To,

.....  
 ( name and address of the witness )

.....

Whereas your attendance is required to give evidence on behalf of .....  
 ..... in the above matter, you are hereby required to appear personally before  
 me or to cause to be produced before me the document specified hereunder, on the ..... day of ..... 20....  
 at..... a.m./ p.m. A sum of rupees ..... being your travelling and other  
 expenses for one day is herewith sent.

If you fail to comply with this summons without lawful excuse, you will be subject to the consequences of non-attendance laid down in rule 12 of order XVI of the Code of Civil Procedure, 1908.

Take notice that, in default of your appearance on the aforesaid day, the enquiry will be made and decided in your absence.

Given under my hand and seal.

Station :

Date :

.....

## SCHEDULE F

[See rule 25 read with clause (e) of sub-rule (1) of rule 14]

## Receipt Book

Date:

Page No. ....

OFFICE OF THE HINDU MARRIAGE REGISTRAR, FOR .....  
(Affix the designation seal)

Received the following fees on account of—

| Item                                                                                      | Rupees |
|-------------------------------------------------------------------------------------------|--------|
| (a) Application receiving, from ..... :<br>.....<br>( name of either of the parties )     |        |
| (b) Registration of Marriage of ..... :<br>.....<br>( name of both of the parties )       |        |
| (c) Certified copy of ..... :<br>from .....<br>.....<br>( name of either of the parties ) |        |
| (d) Any other document or purpose ..... :<br>.....<br>( to be specified )                 |        |

Total—

.....  
(Full signature of the fee-payer  
with date)Signature and designation  
seal of the Hindu Marriage Registrar.

N.B.— Signature with date of both the parties to the marriage shall be taken for serial 'b' above.



[See rule 23]

## OFFICE OF .....

[illegible]

Total payments .....

Balance in hand .....

(in words) .....

Grand total .....

*Signature of Hindu Marriage Registrar.*

## SCHEDULE - H

[See clause (b) of sub-rule (1) of rule 28]

## Forwarding Letter of Weekly Report

OFFICE OF THE HINDU MARRIAGE REGISTRAR, FOR .....

Certified that the enclosed copies from the Hindu Marriage Register in this office bearing serial No. ....  
to ..... are true copies of all the entries in the Hindu Marriage Register kept by me for the week  
ending on .....

OR

Certified that no entry has been made in the Hindu Marriage Register in this office during the week ending  
on .....

Station :

Date :

*Signature of the Hindu Marriage Registrar  
with seal.*

Note : Strike out whichever is not applicable.



## SCHEDULE - I

[See clause (c) of sub-rule (1) of rule 28]

Monthly Statement of remittance of State Government's share of fees deposited  
with the Reserve Bank of India or Treasury or Sub-Treasury linked Banks  
for the month of ..... 20 .....

Or

Periodic Statement of remittance of State Govt.'s share of fees deposited with the  
Reserve Bank of India or Treasury or Sub-Treasury linked Banks for the  
period ..... of ..... 20 ..... to ..... of ..... 20 .....

| Sl.<br>No. | For the month<br>of ..... 20 .....<br>or for the<br>period .....<br>to ..... | Date of<br>deposit | Amount<br>of deposit | Cash Book<br>Reference<br>(page No.<br>) | Challan No.<br>through<br>which<br>deposited | Cumulative deposit<br>already made<br>in the current<br>financial year<br>up to last<br>quarter<br>(w.e.f. 1st day<br>of April, ..... ) | Remarks |
|------------|------------------------------------------------------------------------------|--------------------|----------------------|------------------------------------------|----------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|---------|
|            |                                                                              |                    |                      |                                          |                                              |                                                                                                                                         |         |

Encl : Total number of original challans  
( in figure ) :  
( in words ) :

Signature and Designation seal  
of Hindu Marriage Registrar

Contact No. :

## SCHEDULE - J

[See clause (d) of sub-rule (1) of rule 28]

## Quarterly report of Registration of marriages under section 8 for the—

- \* First quarter January to March, 20 .....
- \* Second quarter April to June 20 .....
- \* Third quarter July to September 20 .....
- \* Fourth quarter October to December 20 .....

| Cert.<br>Sl. No.<br>& Dt. | Name of<br>parties | Marital<br>status | Age | Occupation | Present<br>address | Permanent<br>address | Notice /<br>Application<br>Sl. No. | Cumulative<br>figure<br>upto last<br>quarter of this<br>calendar year |
|---------------------------|--------------------|-------------------|-----|------------|--------------------|----------------------|------------------------------------|-----------------------------------------------------------------------|
|                           |                    |                   |     |            |                    |                      |                                    |                                                                       |

Date :—

Signature and designation seal of the  
Hindu Marriage Registrar.

Contact No :



## SCHEDULE - K

[See clause (e) of sub-rule (1) of rule 28]

Annual Report of marriages registered for Sri .....  
 Hindu Marriage Registrar for ..... district .....  
 of the Hindu Marriage Act, 1955, for the Calendar year 20.....

| Year | Annual Physical<br>report for the<br>Calendar Year 20 ..... | Number of marriages<br>registered under section 8<br>of the Hindu Marriage<br>Act, 1955. | Number of marriages<br>under section 8 for the<br>last calendar year 20..... | Remarks |
|------|-------------------------------------------------------------|------------------------------------------------------------------------------------------|------------------------------------------------------------------------------|---------|
| (1)  | (2)                                                         | (3)                                                                                      | (4)                                                                          | (5)     |
|      |                                                             |                                                                                          |                                                                              |         |

Date :

Full signature and designation with seal  
 of the Hindu Marriage Registrar

## SCHEDULE L

[See clause (f) sub-rule (1) of rule 28]

Annual Statement of State Government share of fees deposited with the  
Reserve Bank of India or Treasury / Sub-Treasury linked Banks for the  
financial year 20 ..... — 20 .....

| Report for the<br>financial year | Sl. No. | Date of Deposit | Amount<br>of deposit | Challan No.<br>and date | Remarks<br>(trends of<br>increase) |
|----------------------------------|---------|-----------------|----------------------|-------------------------|------------------------------------|
|                                  |         |                 |                      |                         |                                    |

All Total :- Rs. .... ( in words ) Rupees .... ( in figure)

Date :

Signature and Designation Seal of  
Hindu Marriage Registrar.

Contact No. —



## SCHEDULE - M

[See sub-rule (1) of rule 29]

**Submission of records on completion of Hindu Marriage Register.**

To  
 The Registrar General of Marriages, West Bengal,  
 11A, K. S. Roy Road,  
 Panchayat Bhawan (2nd Floor),  
 Kolkata- 700 001.

The following Hindu Marriage Register / books as mentioned in column 2 have been exhausted. As such the same along with related notices or applications and completed related Application Register / Receipt Book / Cash Book, lapses and other related papers are submitted to you in the detailed mentioned below:-

| Sl. No. | Hindu Marriage Register No. and pages | Number of Applications | Receipt Book | Cash Book | Application Books | Lapsed Applications |
|---------|---------------------------------------|------------------------|--------------|-----------|-------------------|---------------------|
| (1)     | (2)                                   | (3)                    | (4)          | (5)       | (6)               | (7)                 |
|         |                                       |                        |              |           |                   |                     |

| Objection papers | Others if any |
|------------------|---------------|
| (9)              | (10)          |
|                  |               |

Date :

Signature and designation seal of Hindu Marriage  
 Registrar

## SCHEDULE - N

[See sub-rule (4) of rule 26]

**Certificate of belonging to B.P.L Category to be issued by Secretary/ Executive Assistant of Gram Panchayat or the Executive Officer of the Municipality or the Executive Engineer of the Borough Committee of the Municipal Corporation.**

To Whom it may concern

This is to certify that Shri/Smt. .... (name of the party) son/daughter of ..... residing at ..... (present address) belongs to the BPL category and his/her name is recorded in serial No. .... of the latest Below Poverty List published on .....

Date :

Signature, with full name, and designation seal of-

Office seal :

Secretary/Executive Assistant of ..... Gram Panchayat

or

Executive Officer of ..... Municipality

Or

Executive Engineer ..... of Borough

No. .... of ..... Municipal Corporation



## SCHEDULE - O

(See sub-rule (3) of rule 8)

## Identity Card of non-official Hindu Marriage Registrar.

No. ....

Date .....

Space for affixing self signed passport photograph of  
non-official Hindu Marriage Registrar  
duly attested by *Gazetted Officer*.

This is to certify that Sri / Smt. ...., son of / daughter of  
Sri / Smt. .... of .....  
P. O. .... P.S. .... district .....  
of whom particulars are given here in is a non-official Hindu Marriage Registrar for the .....  
..... (Jurisdiction ) as per rule 8 (3) of the West Bengal Hindu Marriage Registration Rules, 2010.

Signature and designation seal  
of the Registrar General  
of Marriages, West Bengal.

Office Seal

By order of the Governor,

K Y S MANHAS,  
Principal Secretary to the Govt. of West Bengal.

Order

Ordered that the above Notification be published in the Official Gazette.

*Handwritten:* Copy forwarded to all P.O.s for information & Compliance  
10.08.10  
Inspector Registrar  
Purba Medinipur  
10.08.10

K Y S MANHAS,  
Principal Secretary to the Govt. of West Bengal.



No. WB(Part-I)/2010/SAR-452

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MONDAY, AUGUST 2, 2010

[SAKA 1932

PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

GOVERNMENT OF WEST BENGAL  
JUDICIAL DEPARTMENT

NOTIFICATION

No. 487-JL.—the 2nd August, 2010.—In exercise of the power conferred by sub-rule (3) of Rule 1 of the West Bengal Special Marriage Rules, 2010, published with this Department notification No. 431-JL., dated the 2nd July, 2010. In the *Kolkata Gazette, Extraordinary*, Part I, dated the 14th July, 2010 (hereinafter referred to as the said rules), the Governor is pleased hereby to specify the 2nd day of August, 2010, as the date on which the said rules shall come into force.

By order of the Governor,

K. Y. S. MANHAS,  
Principal Secretary to the Govt. of West Bengal.

*Handwritten:* Memo no 1024/8 dtd-10.08.10  
Copy forwarded to all  
nos for in format in  
compliance.  
Charabarb  
District Registrar  
Purba Medinipur  
10.08.10



## **The Special Marriage Act-1954**

(Act No.43 of 1954)[9th October 1954]

An Act to provide a special form of marriage in certain cases, for the registration of such and certain other marriages and for divorce. Be it enacted by Parliament in the Fifth Year of the Republic of India as follows:

### **CHAPTER 1**

#### **Preliminary**

1. Short title, extent and commencement- (1) This Act may be called the Special Marriage Act, 1954.

(2) It extends to the whole of India except the State of Jammu and Kashmir, and applies also to citizens of India domiciled in the territories to which the Act extends who are in the State of Jammu and Kashmir.

(3) It shall come into force on such date, i.e. 1st January, 1955 as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions- In this Act, unless the context otherwise, requires,-

(a) (\* \* \* \*) Omitted

(b) "degrees of prohibited relationship" - a man and any of the persons mentioned in Part I of the First Schedule and a woman and any of the persons mentioned in Part II of the said Schedules are within the degrees of prohibited relationship.

Explanation I.- Relationship includes,- a) relationship by half or uterine blood as well as by full blood: b) illegitimate blood relationship as well as legitimate; c) relationship by adoption as well as by blood;

and all terms of relationship in this Act shall be construed accordingly.

Explanation II.- "Full blood" and "half blood"- two persons are said to be related to each other by full blood when they are descended from a common ancestor by the same wife and by half blood when they are descended from a common ancestor but by different wives.

Explanation III.- "Uterine blood"- two persons are said to be related to each other by uterine blood when they are descended from a common ancestress but by different husbands.

Explanation IV.-In Explns. II and III. "ancestor" includes the father and "ancestress" the mother;

(d) "district", in relation to a Marriage Officer, means the area for which he is appointed as such under sub-section (1) or sub-section (2) of Sec.3;

(e) "District Court" means, in any area for which there is a City Civil Court, and in any other area, the principal Civil Court of original jurisdiction, and includes

any other Civil Court which may be specified by the State Government by notification in the Official Gazette as having jurisdiction in respect of the matters dealt with in this Act:

(f) "prescribed" means prescribed by rules made under this Act;

(g) "State Government", in relation to a Union territory, means the Administrator thereof.

## **Chapter II**

### **Solemnization of Special Marriages**

#### **4. Conditions relating to solemnization of special marriage.-**

Notwithstanding anything contained in any other law for the time being in force relating to the solemnization of marriages, a marriage between any two persons may be solemnized under this Act, if at the time of the marriage the following conditions are fulfilled namely: (a) Neither party has a spouse living: (b) neither party- (i) is incapable of giving a valid consent to it in consequence of unsoundness of mind, or (ii) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or (iii) has been subject to recurrent attacks of insanity or epilepsy; (c) the male has completed the age of twenty-one years and the female the age of eighteen years; (d) the parties are not within the degrees of prohibited relationship: Provided that where a custom governing at least one of the parties permits of a marriage between them, such marriage may be solemnized, notwithstanding that they are within the degrees of prohibited relationship: and

(e) where the marriage is solemnized in the State of Jammu and Kashmir, both parties are citizens of India domiciled in the territories to which this Act extends.

Explanation- In this section, "customs, in relation to a person belonging to any tribe, community, group or family, means any rule which the State Government may, by notification in the Official Gazette, specify in this behalf as applicable to members of that tribe, community, group or family:

Provided that no such notification shall be issued in relation to the members of any tribes, community, group or family, unless the State Government is satisfied- (i) that such rule has been continuously and uniformly observed for a long time among those members; (ii) that such rule is certain and not unreasonable or opposed to public policy; and (iii) that such rule is applicable only to a family, has not been discontinued by the family.

**5. Notices of intended marriage.-** When a marriage is intended to be solemnized under this Act, the parties of the marriage shall give notice thereof in writing in the Form specified in the Second Schedule to the Marriage Officer of the district in which at least one of the parties to the marriage has resided for a period of not



less than thirty days immediately preceding the date on which such notice is given.

6. Marriage Notice Book and publication.-(1) The Marriage Officer shall keep all notices given under Sec. 5 with the records of his office and shall also forthwith enter a true copy of every such notice in a book prescribed for that purpose, to be called the Marriage Notice Book, and such book shall be open for inspection at all reasonable times, without fee, by any person desirous of inspecting the same. (2) The Marriage Officer shall cause every such notice to be published by affixing a copy thereof to some conspicuous place in his office. (3) Where either of the parties to an intended marriage is not permanently residing within the local limits of the district of the Marriage Officer to whom the notice has been given under Sec. 5, the Marriage Officer shall also cause a copy of such notice to be transmitted to the Marriage Officer of the district within whose limits such party is permanently residing, and that Marriage Officer shall thereupon cause a copy thereof to be affixed to some conspicuous place in his office.

7. Objection to marriage.- (1) Any person may, before the expiration of thirty days from the date on which any such notice has been published under sub-section (2) of Sec. 6, object to the marriage on the ground that it would contravene one or more of the conditions specified in Sec.4. (2)After the expiration of thirty days from the date on which notice of an intended marriage has been published under sub-section (2) of Sec. 6, the marriage may be solemnized, unless it has been previously objected to under sub-section (1). (3) The nature of the objection shall be recorded in writing by the Marriage Officer in the Marriage Notice Book, be read over and explained if necessary, to the person making the objection and shall be signed by him or on his behalf.

8. Procedure on receipt of objection.- If an objection is made under Sec. 7 to an intended marriage the Marriage Officer shall not solemnize the marriage until he has inquired into the matter of the objection and is satisfied that it ought not to prevent the solemnization of the marriage or the objection is withdrawn by the person making it; but the Marriage Officer shall not take more than thirty days from the date of the objection for the purpose of inquiring into the matter of the objection and arriving at a decision. (2) If the Marriage Officer upholds the objection and refuses to solemnize the marriage, either party to the intended marriage may, within a period of thirty days from the date of such refusal, prefer an appeal to the District Court within the local limits of whose jurisdiction the Marriage Officer has his office, and the decision of the District Court on such appeal shall be final, and the Marriage Officer shall act in conformity with the decision of the Court.

9. Powers of Marriage Officers in respect of inquiries.- (1)For the purpose of any inquiry under Sec.8, the Marriage Officer shall have all the powers vested in a Civil Court under the Code of Civil Procedure, 1908(5 of 1908), when trying a suit in respect of the following matters, namely: (a) summoning and enforcing the

attendance of witnesses and examining them on oath; (b) discovery and inspection; (c) compelling the production of documents; (d) reception of evidence on affidavits; and (e) issuing commissions for the examination of witnesses; and any proceeding before the Marriage Officer shall be deemed to be a judicial proceeding within the meaning of Sec.193 of the Indian Penal Code(45 of 1960).

2) If it appears to the Marriage Officer that the objection made to an intended marriage is not reasonable and has not been made in good faith he may impose on the person objecting costs, by way of compensation not exceeding one thousand rupees, and award the whole, or any part thereof to the parties to the intended marriage, and any order of costs so made may be executed in the same manner as a decree passed by the District Court within the local limits of whose jurisdiction the Marriage Officer has his office.

10. Procedure on receipt of objection by Marriage Officer abroad.- Where an objection is made under Sec.7 to a Marriage Officer in the State of Jammu and Kashmir in respect of an intended marriage in the State and the Marriage Officer, after making such inquiry into the matter as he thinks fit, entertains a doubt in respect thereof, he shall not solemnize the marriage but shall transmit the record with such statement respecting the matter as he thinks fit to the Central Government, and the Central Government, after making such inquiry into the matter and after obtaining such advice as it thinks fit, shall give its decision thereon in writing to the Marriage Officer shall act in conformity with the decision of the Central Government.

11. Declaration by parties and witnesses.- Before the marriage is solemnized the parties and three witnesses shall, in the presence of the Marriage Officer, sign a declaration in the Form specified in the Third Schedule to this Act, and the declaration shall be countersigned by the Marriage Officer.

12. Place and form of solemnization.- (1) The marriage may be solemnized at the office of the Marriage Officer or at such other place within a reasonable distance therefrom as the parties may desire, and upon such conditions and the payments of such additional fees as may be prescribed. 2) The marriage may be solemnized in any form which the parties may choose to adopt: Provided that it shall not be complete and binding on the parties unless each party says to the other in the presence of the Marriage Officer and the three witnesses and in any language understood by the parties,- "I (A) take thee (B), to be my lawful wife (or husband)".

13. Certificate of marriage.- (1) When the marriage has been solemnized the Marriage Officer shall enter a certificate thereof in the Form specified in the Fourth Schedule in a book to be kept by him for that purpose and to be called the Marriage Certificate Book and such certificate shall be signed by the parties to the marriage and the three witnesses. (2) On a certificate being entered in the Marriage Certificate Book by the Marriage Officer, the certificate shall be deemed to be conclusive evidence of the fact that a marriage under this Act has



been solemnized and that all formalities respecting the signatures of witnesses have been complied with.

14. New notice when marriage not solemnized within three months.-Whenever a marriage is not solemnized within three calendar months from the date on which notice thereof has been given to the Marriage Officer as required by Sec. 5 or where an appeal has been filed under sub-section (2) of Sec.8, within three months from the date of the decision of the District Court on such appeal or where the record of a case has been transmitted to the Central Government under Sec.10, within three months from the date of decision of the Central Government, the notice and all other proceedings arising therefrom shall be deemed to have lapsed, and no marriage Officer shall solemnize the marriage until a new notice has been given in the manner laid down in this Act.

### **CHAPTER III**

#### **Registration of Marriage Celebrated in other forms**

15. Registration of marriages celebrated in other forms.- Any marriage celebrated, whether before or after the commencement of this Act, other than a marriage solemnized under the Special Marriage Act, 1872 or under this Act, may be registered under this Chapter by a Marriage Officer in the territories to which this Act extends if the following conditions are fulfilled, namely:

(a) a ceremony of marriage has been performed between the parties and they have been living together as husband and wife ever since (b) neither party has at the time of registration more than one spouse living; (c) neither party is an idiot or a lunatic at the time of registration: (d) the parties have completed the age of twenty-one year at the time of registration; (e) the parties are not within the degrees of prohibited relationship: Provided that in case of a marriage celebrated before the commencement of this Act, this condition shall be subject to any law, custom or usage having the force of law governing each of them which permits of a marriage between the two; and (f) the parties have been residing within the district of the Marriage Officer for a period of not less than thirty days immediately preceding the date on which the application is made to him for registration of the marriage.

16. Procedure for registration.- Upon receipt of an application signed by both the parties to the marriage for the registration of their under this chapter, the Marriage Officer shall give public notice thereof in such manner as may be prescribed and after allowing a period of thirty days for objection and after hearing any objection received within that period, shall, if satisfied that all the conditions mentioned in Sec. 15 are fulfilled, enter a certificate of the marriage in the Marriage Certificate

Book in the Form specified in the Fifth Schedule and such certificate shall be signed by the parties to the marriage and by three witnesses.

17. Appeals from orders under Sec. 16.- Any person aggrieved by any order of a Marriage Officer refusing to register a marriage under this Chapter may, within thirty days from the date of order, appeal against that order to the District Court within the local limits of whose jurisdiction the Marriage Officer has his office, and the decision of the District Court on such appeal shall be final, and the Marriage Officer to whom the application was made shall act in conformity with such decision.

18. Effect of registration of marriage under this Chapter.- Subject to the provisions contained in sub-section (2) of Sec.24 where a certificate of marriage has been finally entered in the Marriage Certificate Book under this Chapter, the marriage shall, as from the date of such entry, be deemed to be a marriage solemnized under this Act, and all children born after the date of the ceremony of marriage (whose names shall also be entered in the Marriage Certificate Book) shall in all respects be deemed to be and always to have been the legitimate children of their parents: Provided that nothing contained in this section shall be construed as conferring upon any such children any rights in or to the property of any person other than their parents in any case where, but for the passing of this Act, such children would have been incapable of possessing or acquiring any such rights by reason of their not being the legitimate children of their parents.



## **CHAPTER IV**

### **Consequences of Marriage under this Act**

19. Effect of marriage on member of undivided family- The marriage solemnized under this Act of any member of an undivided family who professes the Hindu, Buddhist, Sikh or Jaina religion shall be deemed to effect his severance from such family.

20. Rights and disabilities not affected by Act.- Subject to the provisions of Sec. 19, any person whose marriage is solemnized under this Act, shall have the same rights and shall be subject to the same disabilities in regard to the right of succession to any property as a person to whom the Caste Disabilities Removal Act, 1850 (21 of 1850), applies.

21. Succession to property of parties married under Act.- Notwithstanding any restrictions contained in the Indian Succession Act, 1925 (39 of 1925), with respect to its application to members of certain communities, succession to the property of any person whose marriage is solemnized under this Act and to the property of the issue of such marriage shall be regulated by the provisions of the said Act and for the purposes of this section that Act shall have effect as if Chapter III of Part V (Special Rules for Parsi Intestates) had been omitted therefrom. 21-A. Special provision in certain cases .- Where the marriage is solemnized under this Act of any person who professes the Hindu, Buddhist, Sikh or Jain religion with a person who professes the Hindu, Buddhist, Sikh or Jain religion. Secs. 19 and 21 shall not apply and so much of Sec. 20 as creates a disability shall also not apply.

## **CHAPTER V**

### **Restitution of Conjugal Rights and Judicial Separation**

22. Restitution of conjugal rights.- When either the husband or the wife has, without reasonable excuse, withdrawn from the society of the other the aggrieved party may apply by petition to the District Court for restitution of conjugal rights, and the Court, on being satisfied of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly. Explanation- Where a question arises whether there has been reasonable excuse for withdrawal from the society, the burden of proving reasonable excuse shall be on the person who has withdrawn from the society.

23. Judicial separation.- (1) A Petition for judicial separation may be presented to the District Court either by the husband or the wife.- (a) on any of the grounds specified in sub-section (1) and sub-section (1-A) of Sec. 27 on which a petition for divorce might have been presented; or (b) on the grounds of failure to comply with a decree for restitution of conjugal rights and the Court, on being satisfied

of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree judicial separation accordingly. (2) Where the Court grants a decree for judicial separation, it shall be no longer obligatory for the petitioner to cohabit with the respondent, but the Court may, on the application by petition of either party and on being satisfied of the truth of the statements made in such petition rescind the decree if it considers it just and reasonable to do so.

## **CHAPTER VI**

### **Nullity of Marriage and Divorce**

24. Void marriages.- (1) Any marriage solemnized under this Act shall be null and void (and may, on a petition presented by either party thereto against the other party, be so declared) by a decree of nullity if- (i) any of the conditions specified in Cls.(a),(b), (c) and (d) of Sec. 4 has not been fulfilled : or (ii) the respondent was impotent at the time of the marriage and at the time of the institution of the suit. (2) Nothing contained in this section shall apply to any marriage deemed to be solemnized under the Act within the meaning of Sec. 18, but the registration of any such marriage under Chapter III may be declared to be of no effect if the registration was in contravention of any of the conditions specified in Cls.(a) to (e) of Sec. 15: Provided that no such declaration shall be made in any case where an appeal has been preferred under Sec.17 and the decision of the District Court has become final.

25. Voidable marriages.- Any marriage solemnized under this Act shall be voidable and may be annulled by a decree of nullity, if- (i) the marriage has not been consummated owing to the wilful refusal of the respondent to consummate the marriage ;or (ii) the respondent was at the time of the marriage pregnant by some person other than the petitioner; or (iii) the consent of either party to the marriage was obtained by coercion or fraud, as defined in the Indian Contract Act, 1872 (9 of 1872): Provided that in the case specified in Cl.(ii) the Court shall not grant a decree unless it is satisfied- (a) that the petitioner was at the time of the marriage ignorant of the facts alleged; (b) that proceedings were instituted within a year from the date of the marriage; and (c) the marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of existence of the grounds a decree : Provided further that in the case specified in Cl.(iii), the Court shall not grant a decree if,- (a) proceedings have not been instituted within one year after the coercion had ceased or, as the case may be, the fraud had been discovered; or (b) the petitioner has with his or her free consent lived with the other party to the marriage as husband and wife after the coercion had ceased or as the case may be, the fraud had been discovered.

26. Legitimacy of children of void and voidable marriages.- (1) Notwithstanding that a marriage is null and void under Sec. 24, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate,



whether such child is born before or after the commencement of the Marriage Laws(Amendment) Act, 1976, and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act. (2) Where a decree of nullity is granted in respect of a voidable marriage under Sec.25, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it has been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. (3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Sec. 25, any rights in or to the property of any person, other than the parents, in any case, where, but for the passing of this Act, such child would have been incapable of possessing or requiring any such rights by reason of his not being the legitimate child of his parents.

27. Divorce.-(1) Subject to the provisions of this Act and to the rules made thereunder, a petition for divorce may be presented to the District Court either by the husband or the wife on the ground that the respondent-

(a) has, after the solemnization of the marriage had voluntary sexual intercourse with any person other than his or her spouse; or (b) has deserted the petitioner for a continuous period of not less than two years immediately proceeding the presentation of the petition; or (c) is undergoing a sentence of imprisonment for seven years or more for an offence as defined in the Indian Penal Code (45 of 1860); or (d) has since the solemnization of the marriage treated the petitioner with cruelty; or (e) has been incurably of unsound mind, or has been suffering continuously or intermittently from mental disorder of such a kind, and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

Explanation- In this Clause- (a) the expression "mental disorder" means mental illness, arrested or incomplete development of mind, psychopathic disorder or any other disorder or disability of mind and includes schizophrenia; (b) the expression "psychopathic disorder" means a persistent disorder or disability of mind (whether or not including sub-normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the respondent and whether or not it requires or is susceptible to medical treatment; or (f) has been suffering from venereal disease in a communicable form; or (g) has been suffering from leprosy, the disease not having been contracted from the petitioner; or (h) has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of the respondent if the respondent had been alive;

Explanation- In this sub-section, the expression "desertion" means desertion of the petitioner by the other party to the marriage without reasonable cause and

without the consent or against the wish of such party and includes the wilful neglect of the petitioner by the other party to the marriage, and its grammatical variations and cognate expressions shall be construed accordingly. (1-A) A wife may also present a petitioner for divorce to the District Court on the ground.- (i) that her husband has, since the solemnization of the marriage, been guilty of rape, sodomy or bestiality; (ii) that in a suit under Sec. 18 of the Hindus Adoptions and Maintenance Act, 1956 (78 of 1956), or in a proceeding under Sec. 125 of the Code of Criminal Procedure, 1973 (2 of 1974), or under the corresponding Sec. 488 of the Code of Criminal Procedure, 1898 (5 of 1898), a decree or order, as the case may be, has been passed against the husband awarding maintenance to the wife notwithstanding that she was living apart and that since the passing of such decree or order, cohabitation between the parties has not been resumed for one year or upwards. (2) Subject to the provisions of the Act and to the Rules made thereunder, either party to a marriage, whether solemnized before or after the commencement of the Special Marriage (Amendment) Act, 1970, may present a petition for divorce to the District Court on the ground- (i) that there has been no resumption of cohabitation as between the parties to the marriage for a period of one year or upwards after the passing of a decree for judicial separation in a proceeding to which they were parties; or (ii) that there has been no restitution of conjugal rights as between the parties to the marriage for a period of one year or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties. 27-A. Alternate relief in divorce proceedings- In any proceeding under this Act, on a petition for a dissolution of marriage by a decree of divorce, except in so far as the petition is founded on the ground mentioned in Cl. (h) of sub-section (1) of Sec. 27, the Court may, if it considers it just so to do, having regard to the circumstances of the case, pass instead a decree for judicial separation.

28. Divorce by mutual consent.-(1) Subject to the provisions of this Act and to the rules made thereunder, a petition for divorce may be presented to the District Court by both the parties together on the ground that they have been living separately for a period of one year or more, that they have not been able to live together and that they have mutually agreed that the marriage should be dissolved. (2) On the motion of both the parties made not earlier than six months after the date of the presentation of the petition referred to in sub-section (1) and not later than eighteen months after the said date, if the petition is not withdrawn in the meantime, the District Court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnized under this Act and that the averments in the petition are true, pass a decree declaring the marriage to be dissolved with effect from the date of the decree.

29. Restriction on petitions for divorce during first three years after marriage.-(1) No petition for divorce shall be presented to the District Court unless at the date of the presentation of the petition one year has passed since the date of entering



the certificate of marriage in the Marriage Certificate Book: Provided that the District Court may, upon application being made to it allow a petition to be presented before one year has passed on the ground that the case is one of exceptional hardship suffered by the petitioner or of exceptional depravity on the part of the respondent, but if it appears to the District Court at the hearing of the Petition that the petitioner obtained leave to present the petition by any misrepresentation or concealment of the nature of the case, the District Court may, if it pronounces a decree, do so subject to the condition that the decree shall not have effect until after the expiry of one year from the date of the marriage or may dismiss the petition, without prejudice to any petition, which may be brought after the expiration of the said one year upon the same or substantially the same facts, as those proved in support of the petition so dismissed. (2) In disposing of any application under this section for leave to present a petition for divorce before the expiration of one year from the date of the marriage, the District Court shall have regard to the interests of any children of the marriage, and to the question whether there is a reasonable probability of a reconciliation between the parties before the expiration of the said one year.

30. Re-marriage of divorced persons- Where a marriage has been dissolved by a decree of divorce, and either there is no right of appeal against the decree or if there is such a right of appeal, the time for appealing has expired without an appeal having been presented or an appeal has been presented but has been dismissed, either party to the marriage may marry again.

## **CHAPTER VII**

### **Jurisdiction and Procedure**

31. Court to which petition should be made.- (1) Every petition under Chapter V or Chapter VI shall be presented to the District Court within the local limits of whose original civil jurisdiction- (i) the marriage was solemnized; or (ii) the respondent, at the time of the presentation of the petition resides; or (iii) the parties to the marriage last resided together; or (iv) the petitioner is residing at the time of the presentation of the petition, in a case where the respondent is, at that time, residing outside the territories to which this Act extends or has not been heard of as being alive for a period of seven years by those who would naturally have heard of him if he was alive. (2) Without prejudice to any jurisdiction exercisable by the Court under sub-section (1), the District Court may, by virtue of this sub-section, entertain a petition by a wife domiciled in the territories to which this Act extends for nullity of marriage or for divorce if she is resident in the said territories and has been ordinarily resident, therein for a period of three years immediately preceding the presentation of the petition and the husband is not resident in the said territories.

32. Contents and verification of petitions.- (1) Every petition under Chapter V or Chapter VI shall state, as distinctly as the nature of the case permits, the facts on

which the claim to relief is founded and shall also state that there is no collusion between the petitioner and the other party to the marriage. (2) The statements contained in every such petition shall be verified by the petitioner or some other competent person in the manner required by law for the verification of complaints and may, at the hearing, be referred to as evidence.

33. Proceedings to be in camera and may not be printed or published.- (1) Every proceeding under this Act shall be conducted in camera and it shall not be lawful for any person to print or publish any matter in relation to any such proceeding except a judgment of the High Court or of the Supreme Court printed or published with the previous permission of the Court. (2) If any person prints or publishes any matter in contravention of the provisions contained in sub-section (1), he shall be punishable with fine which may extend to one thousand rupees.

34. Duty of Court in passing decrees.- (1) In any proceeding under Chapter V or Chapter VI, whether defended or not, if the Court is satisfied that,- (a) any of the grounds for granting relief exists; and (b) where the petition is founded on the ground specified in Cl.(a) of sub-section (1) of Sec. 27, the petitioner has not in any manner been accessory to or connived at or condoned the act of sexual intercourse referred to therein or where the ground of the petition is cruelty, the petitioner has not in any manner condoned the cruelty; and (c) when divorce is sought on the ground of mutual consent, such consent has not been obtained by force, fraud or undue influence; and (d) the petition is not presented or prosecuted in collusion with the respondent; and (e) there has not been any unnecessary or improper delay in instituting the proceedings; and (f) there is no other legal ground why the relief should not be granted; then, and in such a case, but not otherwise, the Court shall decree such relief accordingly. (2) Before proceeding to grant any relief under this Act it shall be the duty of the Court in the first instance, in every case where it is possible so to do consistently with the nature and circumstances of the case, to make every endeavour to bring about a reconciliation between the parties : Provided that nothing contained in this sub-section shall apply to any proceeding wherein relief is sought on any of the grounds specified in Cls.(c), (e), (f), (g) and (h) of sub-section (1) of Sec.27. (3) For the purpose of aiding the Court in bringing about such reconciliation, the Court may, if the parties so desire or if the Court thinks it just and proper so to do, adjourn the proceedings for a reasonable period not exceeding fifteen days, and refer the matter to any person named by the parties in this behalf or to any person nominated by the Court if the parties fail to name any person, with directions to report to the Court as to whether reconciliation can be and has been effected and the Court shall in disposing of the proceeding have due regard to the report. (4) In every case where a marriage is dissolved by a decree of divorce, the Court passing the decree shall give a copy thereof free of cost to each of the parties.



35. Relief for respondent in divorce and other proceedings.-- In any proceeding for divorce or judicial separation or restitution of conjugal rights, the respondent may not only oppose the relief sought on the ground of petitioner's adultery, cruelty or desertion, but also make counter-claim for any relief under this Act on that ground, and if the petitioner's adultery, cruelty or desertion is proved, the Court may give to the respondent any relief under this Act to which he or she would have been entitled if he or she had presented a petition seeking such relief on that ground.

36. Alimony pendente lite.-- Where in any proceeding under Chapter V or Chapter VI it appears to the District Court that the wife has no independent income sufficient for her support and the necessary expenses of the proceeding, it may, on the application of the wife, order the husband to pay to her the expenses of the proceeding, and weekly or monthly during the proceeding such sum as having regard to the husband's income, it may seem to the Court to be reasonable.

37. Permanent alimony and maintenance.--(1) Any Court exercising jurisdiction under Chapter V or Chapter VI may, at the time of passing any decree or at any time subsequent to the decree, on application made to it for the purpose, order that the husband shall secure to the wife for her maintenance and support, if necessary, by a charge on the husband's property, such gross sum or such monthly or periodical payment of money for a term not exceeding her life, as having regard to her own property, if any, her husband's property and ability, the conduct of the parties and other circumstances of the case it may seem to the Court to be just. (2) If the District Court is satisfied that there is a change in the circumstances of either party at any time after it has made an order under sub-section (1), it may at the instance of either party, vary, modify or rescind any such order in such manner as it may seem to the Court to be just. (3) If the District Court is satisfied that the wife in whose favour an order has been made under this section has remarried or is not leading a chaste life, it may, at the instance of the husband vary, modify or rescind any such order and in such manner as the Court may deem just.

38. Custody of children.-- In any proceeding under Chapter V or Chapter VI the District Court may, from time to time, pass such interim orders and make such provisions in the decree as it may seem to it to be just and proper with respect to the custody, maintenance and education of minor children, consistently with their wishes wherever possible, and may, after the decree, upon application by petition for the purpose, make, revoke, suspend or vary, from time to time, all such orders and provisions with respect to the custody, maintenance and education of such children as might have been made by such decree or interim orders in case the proceeding for obtaining such decree were still pending.

39. Appeals from decrees and orders.--(1) All decrees made by the Court in any proceeding under Chapter V or Chapter VI shall, subject to the provisions of sub-section (3), be appealable as decrees of the Court made in the exercise of its original civil jurisdiction, and such appeal shall lie to the Court to which appeals

ordinarily lie from the decisions of the Court given in the exercise of its original civil jurisdiction. (2) Orders made by the Court in any proceeding under this Act under Sec.37 or Sec.38 shall be subject to the provisions of Sub-section (3), be appealable if they are not interim orders, and every such appeal shall lie to the Court to which appeals ordinarily lie from the decisions of the Court given in the exercise of its original civil jurisdiction. (3) There shall be no appeal under this section on the subject of the costs only. (4) Every appeal under this section shall be preferred within a period of thirty days from the date of the decree or order.

39-A. Enforcement of decrees and orders.-- All decrees and orders made by the Court in any proceeding under Chapter V or Chapter VI shall be enforced in the like manner as the decrees and orders of the Court made in the exercise of its original civil jurisdiction for the time being are enforced.

40. Application of Act 5 of 1908.-- Subject to the other provisions contained in this Act, and to such rules as the High Court may make in this behalf, all proceedings under this Act shall be regulated, as far as may be, by the Code of Civil Procedure, 1908.

40-A. Power to transfer petitions in certain cases.--(1) Where-- (a) a petition under this Act has been presented to the District Court having jurisdiction by a party to the marriage praying for a decree for judicial separation under Sec.23 or for a decree of divorce under Sec.27, and (b) another petition under this act has been presented thereafter by the other party to the marriage praying for decree for judicial separation under Sec.23, or for decree of divorce under Sec.27 on any ground whether in the same District Court or in a different District Court, in the same State or in a different State. the petition shall be dealt with as specified in sub-section (2). (2) In a case where sub-section (1) applies.-- (a) if the petitions are presented to the same District Court, both the petitions shall be tried and heard together by that District Court : (b) if the petitions are presented to different District Courts the petition presented later shall be transferred to the District Court in which the earlier petition was presented and both the petitions shall be heard and disposed of together by the District Court in which the earlier petition was presented. (3) In a case where Cl. (b) of sub-section (2) applies, the Court or the Government, as the case may be, competent under the Code of Civil Procedure, 1908 (5 of 1908), to transfer any suit or proceeding from the District Court in which the later petition has been presented to the District Court in which the earlier petition is pending shall exercise its powers to transfer such later petition as if it had been empowered so to do under the said Code.

40-B. Special provision relating to trial and disposal of petitions under the Act.- (1) The trial of a petition under this Act shall so far as is practicable consistently with the interests of justice in respect of the trial, be continued from day to day until its conclusion, unless the Court finds the adjournment of the trial beyond the following day to be necessary for reasons to be recorded. (2) Every petition under this Act shall be tried as expeditiously as possible and endeavour shall be made



to conclude the trial within six months from the date of service of notice of the petition on the respondent. (3) Every appeal under this Act shall be heard as expeditiously as possible, and endeavour shall be made to conclude the hearing within three months from the date of service of notice of appeal on the respondent.

40-C. Documentary evidence.-- Notwithstanding anything contained in any enactment to the contrary, no document shall be inadmissible in evidence in any proceeding at the trial of a petition under this Act on the ground that it is not duly stamped or registered.

41. Power of High Court to make rules regulating procedure.--(1) The High Court shall, by notification in the Official Gazette, make such rules consistent with the provisions contained in this Act and the Code of Civil Procedure, 1908 (5 of 1908), as it may consider expedient for the purpose of carrying into effect the provisions of Chapters V, VI and VII. (2) In particular, and without prejudice to the generality of the foregoing provision, such rules shall provide for.-- (a) the impleading by the petitioner of the adulterer as a co-respondent on a petition for divorce on the ground of adultery, and the circumstances in which the petitioner may be excused from doing so: (b) the awarding of damages against any such co-respondent, (c) the intervention in any proceeding under Chapter V or Chapter VI by any person not already a party thereto : (d) the form and contents of petitions for nullity of marriage or for divorce and the payment of costs incurred by parties to such petitions ; and (e) any other matter for which no provision or no sufficient provision is made in this Act, and for which provision is made in the Indian Divorce Act, 1869 (4 of 1869).

42. Saving.-- Nothing contained in this Act shall affect the validity of any marriage not solemnized under its provisions; not shall this Act be deemed directly or indirectly to affect the validity of any mode of contracting marriage.

43. Penalty on married person marrying again under this Act.-- Save as otherwise provided in Chapter III, every person who, being at the time married procures a marriage of himself or herself to be solemnized under this Act shall be deemed to have committed an offence under Sec. 494 or Sec. 495 of the Indian Penal Code 1860 (45 of 1860), as the case may be, and the marriage so solemnized shall be void.

44. Punishment of bigamy.-- Every person whose marriage is solemnized under this Act and who, during the lifetime of his or her wife or husband, contracts any other marriage shall be subject to the penalties provided in Secs.494 and 495 of the Indian Penal Code, 1860 (45 of 1860) for the offence of marrying again during the lifetime of a husband of wife, and the marriage so contracted shall be void.

45. Penalty for signing false declaration or certificate.-- Every person making, signing or attesting any declaration or certificate required by or under this Act containing a statement which is false and which he either knows or believes to be

false or does not believe to be true shall be guilty of the offence described in Sec.199 of the Indian Penal Code, 1860 (45 of 1860).

46. Penalty for wrongful action of Marriage Officer.-- Any Marriage Officer who knowingly and willfully solemnizes a marriage under this Act,-- (1) without publishing a notice regarding such marriage as required by Sec.5 ; or (2) within thirty days of the publication of the notice such marriage; or (3) in contravention of any other provision contained in this Act, shall be punishable with simple imprisonment for a term which may extend to one year, or with fine which may extend to five hundred rupees, or with both.

47. Marriage Certificate Book to be open to inspection--(1) The Marriage Certificate Book kept under this Act shall at all reasonable times be open for inspection and shall be admissible as evidence of the statements therein contained. (2) Certified extracts from the Marriage Certificate Book shall, on application, be given by the Marriage Officer to the applicant on payment by him of the prescribed fee.

48. Transmission of copies of entries in marriage records.-- Every Marriage Officer in a State shall send to Registrar-General of Births, Deaths and Marriages of that State at such intervals and in such form as may be prescribed, a true copy of all entries made by him in the Marriage Certificate Book since the last of such intervals, and in the case of Marriage Officers outside the territories to which this Act extends, the true copy shall be sent to such authority as the Central Government may specify in this behalf.

49. Correction of errors.--(1) Any Marriage Officer who discovers any error in the form or substance of any entry in the Marriage Certificate Book may, within one month next after the discovery of such error, in the presence of the persons married, or in case of their death or absence, in the presence of two other credible witnesses, correct the error by entry in the margin without any alteration of the original entry and shall sign the marginal entry and add thereto the date of such correction and the Marriage Officer shall make the like marginal entry in the certificate thereof. (2) Every correction made under this section shall be attested by the witnesses in whose presence it was made. (3) Where a copy of any entry has already been sent under Sec. 48 to the Registrar-General or other authority the Marriage Officer shall make and send in the like manner a separate certificate of the original erroneous entry and of the marginal corrections therein made.

50. Power to make rules.--(1) The Central Government, in the case of officers of the Central Government, and the State Government, in all other cases, may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act. (2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely: (a) the duties and powers of Marriage Officers and the areas in which they may exercise jurisdiction; (b) the manner in which a Marriage Officer may hold



inquiries under this Act and the procedure therefore: (c) the form and manner in which any books required by or under this Act shall be maintained: (d) the fees that may be levied for the performance of any duty imposed upon a Marriage Officer under this Act; (e) the manner in which public notice shall be given under Sec. 16: (f) the form in which, and the intervals within which, copies of entries in the Marriage Certificate Book shall be sent in pursuance of Sec.48: (g) any other matter which may be or requires to be prescribed. (3) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form, or be of no effect as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule. (4) Every rule made by the State Government under this Act shall be laid, as soon as it is made, before the State Legislature.

51. Repeals and savings.-(1) The Special Marriage Act, 1872 (3 of 1872), and any law corresponding to the Special Marriage Act, 1872, in force in any Part B State immediately before the commencement of this Act are hereby repealed. (2) Notwithstanding such repeal.- (a) all marriages duly solemnized under Special Marriage Act, 1872 (3 of 1872) or any such corresponding law shall be deemed to have been solemnized under this Act: (b) all suits and proceeding in causes and matters matrimonial which, when this Act comes into operation, are pending in any Court shall be dealt with and decided by such Court, so far as may be, as if they had been originally instituted therein under this Act. (3) The provisions of sub-section (2) shall be without prejudice to the provisions contained in Sec. 6 of the General Clauses Act, 1897 (10 of 1897) which shall also apply to the repeal of the corresponding law as if such corresponding law had been an enactment.

## THE FIRST SCHEDULE

(See Sec.2 (b))

Degree of Prohibited Relationship 1. Mother 2. Father's widow (step-mother) 3. Mother's mother 4. Mother's father's widow (step grand-mother) 5. Mother's mother's mother 6. Mother's mother's father's widow (step-great-grandmother) 7. Mother's father's mother 8. Mother's father's father's widow (step-great-grandmother) 9. Father's mother 10. Father's father's widow (step-grandmother) 11. Father's mother's mother 12. Father's mother's father's widow (step-great-grandmother) 13. Father's father's mother 14. Father's father's father's widow (step-great-grandmother) 15. Daughter 16. Son's widow 17. Daughter's daughter 18. Daughter's son's widow 19. Son's daughter 20. Son's son's widow 21. Daughter's daughter's daughter 22. Daughter's daughter's son's widow 23. Daughter's son's daughter 24. Daughter's son's son's widow 25. Son's daughter's daughter 26. Son's daughter's son's widow 27. Son's son's daughter 28. Son's son's son's widow 29. Sister 30. Sister's daughter 31. Brother's daughter 32. Mother's sister 33. Father's sister 34. Father's brother's daughter 35. Father's sister's daughter 36. Mother's sister's-daughter 37. Mother's brother's daughter

Explanation.- For the purposes of this Part, the expression "widow" includes a divorced wife.

PART II 1. Father 2. Mother's husband (step-father) 3. Father's father 4. Father's mother's husband (step-grandmother) 5. Father's father's father 6. Father's father's mother's husband (step-great-grandfather) 7. Father's mother's father 8. Father's mother's mother's husband (step-great-grandfather) 9. Mother's father 10. Mother's mother's husband (step-grandfather) 11. Mother's father's father 12. Mother's father's mother's husband (step-great-grandfather) 13. Mother's mother's father 14. Mother's mother's mother's husband (step-great-grandfather) 15. Son 16. Daughter's husband 17. Son's son 18. Son's daughter's husband 19. Daughter's son 20. Daughter's daughter's husband 21. Son's son's son 22. Son's son's daughter's husband 23. Son's daughter's son 24. Son's daughter's daughter's husband 25. Daughter's son's son 26. Daughter's son's daughter's husband 27. Daughter's daughter's son 28. Daughter's daughter's daughter's husband 29. Brother 30. Brother's son 31. Sister's son 32. Mother's brother 33. Father's brother 34. Father's brother's son 35. Father's sister's son 36. Mother's sister's son 37. Mother's brother's son

Explanation.- for the purposes of this Part, the expression "husband" includes a divorced husband.

**THE SECOND SCHEDULE**

(See section 5)

**NOTICE OF INTENDED MARRIAGE**

To

Marriage Officer for the .....District.

We hereby give you notice that a marriage under Special Marriage Act, 1954, is intended to be solemnized between us within three calendar months from the date hereof.

A, B. Unmarried

Widower Divorcee

C.D. Unmarried Widow Divorcee

Witness our hands this .....day of  
.....19.

(S.d.) A.B. (S.d.) C.D.



## **THE THIRD SCHEDULE**

(See section 11)

### **DECLARATION TO BE MADE BY THE BRIDEGROOM**

I, A.B., hereby declare as follows:-

1.I am at the present time unmarried (or a widower or a divorcee, as the case may be).

2.I have completed.....years of age.

3.I am not related to C.D. (the bride) within the degrees of prohibited relationship.

4.I am aware that, if any statement in this declaration is false, and if in making such statement, I either know or believe it to be false or do not believe it to be true.I am liable to imprisonment and also to fine.

(S.d), A.B. (the Bridegroom)

### **DECLARATION TO BE MADE BY HE BRIDE**

I, C.D., hereby declare as follows;-

1.I am at the present time unmarried (or a widow or a divorcee, as the case may be).

2.I have completed.....years of age.

3.I am not related to A.B. (the Bridegroom) within the degrees of prohibited relationship.

4.I am aware that, if any statement in this declaration is false, and if in making such statement I either know or believe it to be false or do not believe it to be true, I am liable to imprisonment and also to fine.

(S.d) C.D. (the Bride)

Signed in our presence by the above-named A.B. and C.D. so far as we are aware there is no lawful impediment to the marriage.

(S.d) G.H.

(S.d) I.J Three witness

(S.d) K.L.

Countersigned E.F.,  
Marriage Officer.,  
Dated the day of 20

## **THE FOURTH SCHEDULE**

(See Section 13)

### **CERTIFICATE OF MARRIAGE**

I, E.F.hereby certify that on the day

Of 20 A.B.and C.D.\* { \* Herein give particulars of the parties} before me and that each of them, in my presence and in the presence of three witnesses who have signed hereunder, made the declarations of required by section 11 and that a marriage under this Act was the solemnized between them in my presence

(S.d) E.F., Marriage Officer for (S.d) A.B., Bridegroom (S.d) C.D., Bride

(S.d) G.H.,

(S.d) I.J.

Three witnesses

(S.d) K.L

Dated the day of 20

## **THE FIFTH SCHEDULE**

(See section 16)

### **CERTIFICATE OF MARRIAGE CELEBRATED IN OTHER FORMS**

I, E.F., hereby certify that A.B.and C.D.\* appeared before me {\*Here in give particulars of the parties} this day 20 and that each of them, in my presence have declared that a ceremony of marriage has been performed between them and that they have been living together as husband and wife wince the time of their marriage, and that in accordance with their desire to have their marriage registered under this Act the said marriage has, this

Day of 19 been registered under this Act, having effect as from

(S.d) E.F. Marriage Officer for (S.d) A.B. Husband (S.d) C.D. Wife

(S.d) G.H. (S.d) I.J. Three witnesses. (S.d) K.L.

Dated the day of 20.



# **The West Bengal Special Marriage Rules, 2010**

Notification No. 431-JL-2nd July, 2010.—In exercise of the power conferred by section 50 of the Special Marriage Act, 1954 (43 of 1954) and in supersession of the notification No. 142-Regn., dated the 31st January, 1969, the Governor is pleased hereby to make the following rules, namely :—

## **CHAPTER I**

### **Preliminaries**

**1. Short title, extent and commencement.**—(1) These rules may be called the West Bengal Special Marriage Rules, 2010.

(2) These rules shall extend to the whole of the State of West Bengal.

(3) These rules shall come into force on such date as the State Government may, by notification, specify.

**2. Definitions.**—(1) In these rules, unless the context otherwise requires,—

- (a) "Act" means the Special Marriage Act, 1954 (43 of 1954);
- (b) "actual place" means complete postal address with the name of police station and postal code;
- (c) "appointing authority" means an officer not below the rank of Deputy Secretary to the Government of West Bengal, Judicial Department;
- (d) "Appellate Authority" means an officer not below the rank of Joint Secretary to the Government of West Bengal, Judicial Department;
- (e) "authentication" means authenticating by way of marking of page No. of any blank Book by the Registrar General or by an officer authorised by him in this behalf by putting his dated signature and seal thereon before bringing the same for use by a Marriage Officer;
- (f) "certified copy" means a copy made from the original and is certified to be a true copy of the original, by the Registrar General or an officer authorised in this behalf by him, or by any of the Marriage Officers, as the case may be;
- (g) "District Committee" means the Committee constituted by the State Government by notification for each district as well as for the Kolkata Municipal Corporation area for selection of non-official Marriage Officers;
- (h) "Form" means a form appended to these rules;

- (i) "Marriage Officer" includes an *ex officio* Marriage Officer and a non-official Marriage Officer;
- (j) "notification" means a notification published in *Official Gazette*;
- (k) "party" means a bridegroom or a bride or a husband or a wife;
- (l) "parties" mean bridegroom and bride, or husband and wife;
- (m) "Quarterly report" means a report to be submitted by the Marriage Officer to the Registrar General for the period January to March, April to June, July to September, and October to December, of a year;
- (n) "Registrar General" means the Registrar General of Marriages, West Bengal, appointed by the State Government;
- (o) "Schedule" means a Schedule to the Act;
- (p) "section" means a section of the Act;
- (q) "State Government" means the Government of West Bengal in the Judicial Department;
- (r) "week" means a period of seven days starting from Sunday to next Saturday.

(2) Words and expressions used and not defined in these rules but defined in the Act, shall have the same meanings as respectively assigned to them in the Act.

## CHAPTER II

### Marriage Officer

**3. Declaration of vacancy of non-official Marriage Officers.—** The State Government shall declare vacancy of non-official Marriage Officers and invite applications from eligible candidates through an advertisement in at least one English daily newspaper and one Bengali daily newspaper having circulation in the State.

**4. Qualifications and other conditions for appointment as non-official Marriage Officers.—**(1) The applicant shall have the following qualifications:—

- (a) he shall be a citizen of India;
- (b) he shall be a permanent resident of the local area for which he is applying for;
- (c) he shall not be less than 25 years, and more than 40 years, as on the closing date of receipt of applications;
- (d) he shall have a pass Certificate in Higher Secondary (10+2) Examination from a recognized Board/Council/Madrasah;
- (e) he shall have workable knowledge of computer;
- (f) he shall be well conversant with the language of the area for which he is applying for;
- (g) he shall not hold a full time employment of the Central Government or any of the State Governments or the Central Government

Undertaking or any of the State Government Undertakings or any institution which receives grant from the Central Government or any of the State Governments;

- (h) he is not an insolvent;
- (i) he shall be a person of repute and has not been convicted by any court of law involving moral turpitude.

(2) Before getting appointment as non-official Marriage Officer, every applicant shall have a room (with telephone connection and computer facility) measuring a minimum of 100 square feet carpet area at his possession for functioning as non-official Marriage Officer.

**5. Selection of non-official Marriage Officer.—**(1) The selection of non-official Marriage Officers shall be made by the District Committee.

(2) The District Committee shall —

- (a) prepare a panel of suitable candidates of one and half time of the total number of vacancy according to merit after holding interview; and
- (b) submit the panel with their views or comments to the State Government for consideration for appointment as non-official Marriage Officers and the same will be valid for a period of one year or the date of next advertisement, whichever is later.

**6. Appointment of Marriage Officers from panel prepared by District Committee.—**(1) The State Government shall, in accordance with the provisions of section 3, appoint non-official Marriage Officers from the panel prepared by the District Committee on verification of qualifications of the candidates and on receipt of an affidavit relating to fulfilment of other conditions for appointment as non-official Marriage Officer.

(2) A person appointed as a non-official Marriage Officer shall submit a report of commencement of work, together with attested copies of documents in support of the qualifications required under rule 4, to the Registrar General within two months from the date of issue of the appointment letter, failing which the offer of appointment as such shall be withdrawn by the State Government without further reference to him:

Provided that any person, who has not been able to join as non-official Marriage Officer within two months from the date of issue of appointment letter under section 3, may, after showing sufficient cause for delay, apply for extension of joining time, in writing, supported by documentary evidence, if any, to the Registrar General, who shall forward such application for extension of time to the State Government whose decision in this regard shall be final.

(3) The District Registrar and the Additional District Sub-Registrar under the Indian Registration Act, 1908, shall act as *ex officio* Marriage Officers:

Provided that the State Government may appoint *ex officio* Marriage Officers



from amongst the Officers or employees of the State Government or local self-Government other than the District Registrar and the Additional District Sub-Registrar.

**7. Jurisdiction of Marriage Officer.**—(1) Every Marriage Officer shall have jurisdiction within the area for which he is appointed or authorized.

(2) No Marriage Officer shall function beyond his jurisdiction.

**8. Office of non-official Marriage Officer.**—(1) The Office of the non-official Marriage Officer shall be situated within his jurisdiction.

(2) No non-official Marriage Officer shall open any branch office within or outside his jurisdiction or act through or by an agent.

(3) The non-official Marriage Officer shall write his name, designation, jurisdiction, address, working days and working-hours in English, Bengali or in local language and shall display the same prominently in a conspicuous place outside his office.

(4) The working days of a non-official Marriage Officer shall not be less than five days in a week.

(5) The working hours of a non-official Marriage Officer shall be fixed by him subject to a condition that at least two consecutive working hours shall be within 10 a.m. to 5.30 p.m., every working day.

**9. Office of ex officio Marriage Officer.**—The office of the *ex officio* Marriage Officer shall be situated in the place wherefrom he is discharging his functions in office.

**10. Office seal and designation seal of Marriage Officer.**—(1) Every non-official Marriage Officer shall make North-South extended oval shaped office seal, duly approved by the Registrar General, depicting therein the words "Office of ..... (name) Marriage Officer appointed under Act 43 of 1954", with the national emblem set in the middle of the seal.

(2) Every non-official Marriage Officer shall make a designation seal, depicting his full name, designation, jurisdiction by depicting the words "..... (jurisdiction) area" and actual place of office address with the mention of police station and postal code including the words West Bengal, India and shall affix the designation seal wherever he is required to sign as a Marriage Officer under the Act and the rules made thereunder.

(3) Every non-official Marriage Officer shall affix this office seal vertically in the Marriage Certificate Book at the time of solemnization or registration of marriage under section 13 or section 16, and shall also affix this office seal, in the aforesaid manner, on the original copy of Certificate of Marriage, Certificate of registration, certified copy of the Certificate of Marriage and on the certified copy of any other document which he is competent to issue under the Act and the rules made thereof.

(4) Every *ex officio* Marriage Officer shall make a round shaped office seal depicting the words, "Office of Marriage Officer (*ex officio*) under Act 43 of 1954" with the national emblem set in the middle of the seal.

(5) Every *ex officio* Marriage Officer shall affix the office seal in the Marriage Certificate Book at the time of solemnization or registration of marriage under section 13 or under section 16, as the case may be, and shall affix such seal with signature on the original copy of Certificate of Marriage, Certificate of registration, certified copy of the Certificate of Marriage and on the certified copy of any other document which he is competent to issue under the Act and the rules made thereunder. He shall put his designation seal under his signature.

(6) Every *ex officio* Marriage Officer shall indicate his substantive status with office address in the designation seal followed by the words "and *ex officio* Marriage Officer for ..... (jurisdiction)".

**11. Duties of Marriage Officers.—**(1) Every Marriage Officer shall attend his office during the working hours and shall not remain absent from his office without any reasonable cause.

(2) A Marriage Officer shall apprise himself with the provisions of the Special Marriage Act, 1954 and the rules made thereunder and the orders or directions of the State Government or the Registrar General for smooth functioning of his duties.

(3) A non-official Marriage Officer shall furnish the following information to the Registrar General before commencing to act as non-official Marriage Officer:—

- (a) date of commencement of work as non-official Marriage Officer;
- (b) actual office address;
- (c) working day and weekly holidays;
- (d) working hours; and
- (e) contact number.

(4) A non-official Marriage Officer shall submit his specimen signature and specimen of his office seal and designation seal to the Registrar General before commencing to act as non-official Marriage Officer.

(5) A non-official Marriage Officer shall function from only one office on which the office signboard will be prominently displayed in a conspicuous place and a Table of fees of solemnization or registration of marriage and other services etc. shall be prominently displayed in it with a synopsis of the said Table of fees in Bengali version showing especially the total cost of marriage at his office and the total cost of marriage outside his office.

(6) A non-official Marriage Officer shall take prior written approval of the Registrar General for shifting of office.

(7) A non-official Marriage Officer shall not prepare his office or designation seal in violation of his official status.

(8) A non-official Marriage Officer shall not use any letterhead paper or visiting card or circulate any handbill etc. or make any advertisement with inclusion of the words "Government of West Bengal" and the national emblem.

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(9) A non-official Marriage Officer shall arrange to procure Government approved books/forms and get them duly authenticated by the Registrar General prior to use of the same.

(10) A Marriage Officer shall receive notices/applications for solemnization or registration by hand or by post.

(11) A Marriage Officer shall enter the contents of the Notice received by him in the Marriage Notice Book under section 6.

(12) A Marriage Officer shall ensure necessary publication of the notice or application under the Act or the rules made thereunder and shall ensure sending of copies of such notice or application to the different addresses within the specified period.

(13) A Marriage Officer shall ensure proper and timely submission of various reports returns and statement to the Registrar General.

(14) A non-official Marriage Officer shall ensure proper and timely deposit of Government share of fees collected by him and keep the Registrar General informed of it.

(15) A non-official Marriage Officer shall ensure transmission of all completed Books and related records to the Registrar General within 15 days' of its completion.

(16) A Marriage Officer shall ensure safety and security of the marriage related papers kept in his office and the safety and security of marriage related papers carried by him in transit to or from the office of the Registrar General and other offices and while going for commissioning of marriage solemnization or registration outside his office.

(17) A Marriage Officer shall behave with the general public very cordially and politely and shall not do anything causing harassment to the public.

(18) A Marriage Officer shall co-operate with the Registrar General, or an officer or employee authorized by him, while making inspection of his office or records.

(19) If a non-official Marriage Officer intends to resign, he shall give at least 30 days' notice to the State Government through the Registrar General.

(20) A non-official Marriage Officer shall arrange to make the public aware of his retirement date by displaying notice kept in a conspicuous place of his office at least 30 days before his retirement date.

(21) A non-official Marriage Officer shall return his identity card, office seal, designation seal and appointment letter and other such papers or documents relating to his office within 7 days of his date of retirement to the Registrar General.

(22) A non-official Marriage Officer shall dismantle and destroy his office signboard immediately on the day following the date of his retirement.

(23) A Marriage Officer shall obey all instructions made by the State Government.

(24) A Marriage Officer shall, before signing the Marriage Certificate Book under



section 13, satisfy himself that the parties are marrying voluntarily and that there is no element of force, coercion, fraud or any other manipulation behind it and shall ensure that the signature of the parties in the Marriage Certificate Book and the signatures appearing in the notice under section 5 and declaration under section 11 are identical and the conditions of section 4, section 13 and provisions of rule 23, are complied with.

(25) A Marriage Officer before signing the Marriage Certificate Book under section 16 for registering of marriage celebrated in other form, shall satisfy himself that the parties are getting their marriage registered voluntarily and there is no element of force, coercion, fraud or other manipulation behind it and shall ensure that the signature of the parties in the Marriage Certificate Book and the signatures appearing in the application in Form IV are identical and the conditions of section 15, section 16 and provisions of rule 23, are complied with.

**12. Rights and entitlement of non-official Marriage Officers.**—(1) Every non-official Marriage Officer shall be entitled to retain—

- (a) for receiving objection and hearing of such objection, 100% of the fees;
- (b) for all other purposes, 75% of the fees, collected by him under rule 32 as his share.

(2) A non-official Marriage Officer shall not be treated as an employee of the State Government and shall not be entitled to claim pension, gratuity or other retirement benefit from the State Government.

(3) The Registrar General shall issue identity card to the non-official Marriage Officers in the format mentioned in Form XIV.

(4) A non-official Marriage Officer shall have the right to issue certified copies of any document, if the original Book lies with him.

(5) A non-official Marriage Officer may distribute handbill, or display banner or signboard, or make advertisement in the mass media relating to his profession with prior approval of the contents from the Registrar General.

(6) A non-official Marriage Officer may issue summons to objector, parties, witnesses and other persons for disposal of any objection received within objection period.

(7) A non-official Marriage Officer may seek information relating to age and residential addresses of the parties from any *Gram Panchayat*, Municipal Authority or other authority, free of cost, for disposal of any objection within the objection period.

**13. Temporary closing of office of non-official Marriage Officer.** —(1) The Registrar General may, upon a written application made minimum of one week before the date of closing of office, grant permission to a non-official Marriage Officer to close his office for a period not more than seven (7) days.

(2) If a non-official Marriage Officer intends to close his office for a period exceeding seven days, he shall obtain prior permission of the Registrar General by making a written application minimum of two weeks before the date of such closing of office and shall submit all pending notices, applications and other documents immediately to the Registrar General under proper receipt.

**14. Retirement, Resignation etc. of Marriage Officer.**—(1) A non-official Marriage Officer may resign from his appointment by giving at least one month's notice to the State Government through the Registrar General.

(2) A non-official Marriage Officer shall retire from his appointment as non-official Marriage Officer on completion of sixty-five years of age irrespective of the fact whether such completion of age is within the part of a month. No notice shall be served on the non-official Marriage Officer requiring him to retire.

(3) No Marriage Officer shall function as a Marriage Officer after retirement, resignation, removal, suspension or restraining from works, as the case may be.

(4) The retirement, resignation, removal, suspension or restraining from works, as the case may be, of an *ex officio* Marriage Officer, shall not be governed by these rules.

**15. Pending work and its disposal.**—(1) A non-official Marriage Officer shall send pending notices under section 5, applications under section 15 and other documents lying with him at the time of his resignation, retirement, removal, suspension or restraining of works, as the case may be, to the Registrar General or to such Marriage Officer having jurisdiction as the Registrar General may direct.

(2) If a non-official Marriage Officer dies, or becomes incapable to perform the duties of Marriage Officer, or remains out of station for more than six months, the family members or legal representatives of such non-official Marriage Officer shall send the notice, application and documents mentioned in sub-rule (1) to the Registrar General under proper receipt.

### CHAPTER III

#### Solemnization or Registration of Marriage

**16. Filing of notice of intended marriage.**—(1) The notice of any intended marriage under section 5 of the Act shall be given, in writing in triplicate (in quadruplicate if bridegroom or bride at the time of filing notice stays abroad) with signature of both the parties to the Marriage Officer having jurisdiction, in the form specified in the Second Schedule of the Act and such notice shall be presented to the Marriage Officer in his office in person either by both the parties or by one of the parties or may be sent by registered post, along with seven sets of identical recent passport sized individual photographs of bridegroom and bride (eight sets if one of the parties to the marriage resides abroad) duly signed by the bridegroom and bride on the front side of their respective photographs and proof of age, residence (present and permanent) and marital status, if required, of both the parties to the marriage and fees as specified in rule 32.

(2) The Marriage Officer shall paste three sets of photographs on three copies of the notice (four sets if one of the parties stays abroad) and one copy on the notice book and shall keep remaining photographs with him and the extra copies shall be used during solemnization, if not barred by subsequent objection.

(3) Where the notice under section 5 is presented in person, either of the parties to the marriage shall pay the fee specified in rule 32 in cash to the Marriage Officer against issue of appropriate receipt in Form V and the Marriage Officer shall take the signature of such party/parties on both the original and carbon copies of the receipt.

(4) Where the notice under section 5 is sent by registered post,—

- (a) either of the parties to the marriage shall remit the fee as specified in rule 32, by money order to the Marriage Officer at the remitter's expenses and the original receipt issued to the remitter by the post office through which such remittance is being made, shall be attached to such notice; and
- (b) the Marriage Officer shall record acknowledgment of the notice in the authenticated Marriage Notice Book as required under section 6, subject to the conditions that the amount of the fees as per rule 32 is received by money order and after receiving such fees by money order, the Marriage Officer shall deliver the receipt of the fees realised by him to the party concerned at a later stage whenever the remitter of the fee will contact the concerned Marriage Officer and record the same with the noting 'received through money order' in the Receipt Book.

**17. Proof of age and residence of the parties.—**(1) A Marriage Officer shall require from the parties their birth certificates issued by the competent authority, Board or Council or *Madrasah* Certificates or School Leaving Certificates, in order of priority as proof of their age. If any of the parties to the marriage fails to produce such documents, the Marriage Officer shall require their Voters' Identity Cards, Permanent Account Number (PAN) Cards or any other document as proof of their age.

(2) The Marriage Officer shall, for the purpose of the proof of residence of any of the parties to the marriage, require the Voter's Identity Card, Ration Card, Driving Licence, Passport or Electricity Bill.

(3) If any of the parties to the marriage fail to produce any of the documents mentioned in sub-rule (1) and sub-rule (2), the Marriage Officer shall require such party to submit affidavit to be affirmed by their parents, or in the absence of the parents, by their guardian, showing their date of birth and residential address.

**18. Proof of Divorce.—**Where either or both of the parties to the solemnization of marriage under section 13 is a divorcee, the Marriage Officer shall, before solemnization of the marriage, satisfy himself that such party is eligible to re-marry in accordance with the provisions of section 30 and shall, for the purpose, require the party to produce certified copy of the decree of divorce of Civil Court.

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**19. Processing of notice filed under section 5.** — (1) As soon as a Marriage Officer receives the notice and necessary documents along with the prescribed fee, he shall,—

- (a) satisfy himself that the notice is in conformity with the requirements of section 4, section 5 and rule 16 and shall ascertain the police station, Block, Municipality or ward of the Corporation to which the party/parties belong to and check whether the present address and permanent address of the party or parties have been written with the name of the police station and postal code in the notice form and whether it falls within his jurisdiction;
- (b) put distinctive serial numbers on the notice, that will run annually and consecutively and shall also enter the date of receipt on each of the three/four copies of the notice and attest the serial numbers and dates by his signature and designation seal;
- (c) enter a copy of the notice in the authenticated Marriage Notice Book, as required under section 6 and shall keep such notice book available for inspection, at all reasonable time, without fee, by any person desirous of inspecting the same;
- (d) send one of the copies of the notice received in Form I by him within two working days of the receipt of such notice to the Registrar General by registered post or by speed post or by any other means that ensures acknowledgement by the Registrar General office subject to the conditions that the fees of the notice as per rule 32 has been received by the Marriage Officer either by hand or by money order;
- (e) publish one of the copies of the notice in a conspicuous place in his office under his signature and designation seal for a period of not less than thirty days, from the date of publication of such notice, for inviting objection; and
- (f) inscribe the words "Objections, if any, to the solemnization of this marriage, shall be preferred by the objector in writing to the Marriage Officer within thirty days from the date of its publication" and its Bengali version on the notice by rubber stamp.

(2) Where either of the parties to the intended marriage is permanently residing outside the jurisdiction of the Marriage Officer, he shall send one of the copies of the notice within next two working days, duly signed and affixed with photograph as specified in sub-rule (1), to the District Registrar and *ex officio* Marriage Officer of the District where such party resides, who shall cause such copy to be displayed at some conspicuous place in his office in Form I.

(3) Where either of the parties presently resides abroad, the Marriage Officer shall send a copy of the notice along with a forwarding letter in Form I addressed to the Marriage Officer of the Indian Mission within whose jurisdiction such party is resided within next two working days for its publication thereat for probable objection:

Provided that the parties to the marriage shall bear the actual expenses, for postal transmission of the notice along with Form I and for subsequent correspondence on the subject with the Marriage Officer in the Mission abroad, if any.

(4) The Marriage Officer shall preserve one copy of the notice in his file until its submission to the Registrar General subsequently in accordance with the provisions of these rules.

**20. Manner of disposal of objections.**—(1) Where any objection to the solemnization of an intended marriage has been received and recorded by the Marriage Officer, together with the fee prescribed in rule 32, the Marriage Officer shall inform the Registrar General immediately and inquire into the objection and dispose of the same within thirty days from the date of receipt of the objection, by him in accordance with the provisions of sections 7, 8, 9, 10.

(2) The burden of proof of the objection lies on the objector.

(3) The Marriage Officer shall, at the time of recording the objection, ascertain from the objector whether he has any document on which he relies or any witness whom he intends to get examined in connection with his objection and if the objector expresses his intention to produce any document or to get examined any witness, the Marriage Officer shall require the objector to produce such document or witness on the day fixed for hearing.

(4) The Marriage Officer shall send notice of hearing mentioning place and time of hearing, by registered post in Form II to the parties and to the objector at the expenses of the objector.

(5) If the objector or any of the parties to the marriage requests that summons be issued to any witnesses, the Marriage Officer shall issue summons in Form III to the witnesses by registered post at the expenses of the objector or any of the parties to the marriage, as the case may be, mentioning therein the place, date and time for appearance of the witnesses, on payment of actual expenses on account of travelling of the witness by the objector or such parties to the marriage.

(6) The enquiry relating to the objection including examination of witnesses and documents, shall be completed within thirty days from the date of receipt of such objection.

(7) If field inspection is necessary for disposal of an objection, the Marriage Officer may conduct field inspection provided the objector deposits fees for such field inspection. The Marriage Officer shall issue to the objector a receipt of the fees so taken after taking his signature on the backside of the carbon copy of the receipt retained by the Marriage Officer.

(8) A Marriage Officer shall make a note of the fact of objection on the corresponding notice for intended marriage published in his office and on other copy of such notice preserved in his file and also send an intimation to the Registrar General within next two working days in the same manner in which notice is forwarded to the Registrar General.

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(9) A Marriage Officer shall send a copy of decision of the inquiry to the Registrar General within two working days of the disposal of such objection in the same manner in which notice is forwarded to the Registrar General.

**21. Solemnization of marriage.**—(1) If there is any objection, the Marriage Officer shall dispose of the objection in accordance with the provisions of the Act and rule 20.

(2) If there is no objection, the Marriage Officer (after expiry of the objection period of thirty days and within the validity period of the notice i.e. within three calendar months from the date of receipt of the notice) shall,—

- (a) obtain photocopies (verified with original) of documents such as age proof, residence, death certificate of deceased spouse of any party, or decree of nullity of marriage or divorce of any party from the parties; and
- (b) obtain declaration under section 11 in the form specified in the Third Schedule from both the parties duly countersigned by him; and
- (c) solemnize the marriage under section 13 on fulfillment of the provision of oath taking in a language known to the parties under section 12.

(3) The Marriage Officer shall ensure that the parties to the marriage and three witnesses write their full names, complete postal address with the mentioning of name of the police station and postal code and put signature in full along with their LTI (Left Thumb Impression) in the Declaration as specified in the Third Schedule and in the Marriage Certificate Book as specified in section 13 in the Fourth Schedule. The Marriage Officer shall put his dated signature and give designation and office seal in the Marriage Certificate Book. If any party or witness cannot sign, he shall put RTI (Right Thumb Impression) instead of putting signature. The Marriage Officer shall attest such thumb impressions. The Marriage Officer shall ensure that nobody signs in block capital in the Marriage Certificate Book.

(4) The Marriage Officer shall paste two self-signed passport sized photograph of the parties and put his signature and designation seal on both the photographs in such a manner that part of the said signature and seal of the Marriage Officer shall be borne on the concerned page of the Marriage Certificate Book.

(5) The Marriage Officer shall enter the distinctive notice serial number and distinctive certificate serial number in the left margin of the certificate.

(6) The Marriage Officer shall ensure that all the relevant columns of the Marriage Certificates are correctly filled in and no relevant column is kept blank and no pages of Marriage Certificate Book are kept unused between two consecutive solemnizations.

**22. Registration of marriage already celebrated in other forms under Chapter III of Act.**—(1) The parties, residing within the jurisdiction of a Marriage Officer for a period of not less than thirty days immediately preceding the date on which an application under section 15 for registration of any marriage already



celebrated in other form may be made to the Marriage Officer, shall apply for registration of marriage in Form IV, in triplicate (in quadruplicate, in case of permanent address of either of the parties is outside the district) with fees payable under rule 32.

(2) The Marriage Officer shall —

- (a) receive the application, in triplicate or quadruplicate, along with 7 recent identical copies of joint passport sized photographs of husband and wife (eight if either of the parties presently resides abroad) duly signed by them on the front side out of which three copies shall be pasted on the copies of application under section 15, after satisfying himself that such application under section 15 is in conformity with the Act especially the marriage was validly celebrated in other form, the parties to the marriage have completed the age of twenty-one as mentioned in the said section and the parties making the application have been residing in his jurisdiction for a period of not less than 30 days and enter the same in the authenticated Application Book in a bound volume;
- (b) upon receipt of the application, put year wise distinctive serial number with mention of the year as a suffix and send one copy of such application to the Registrar General and to the District Registrar or to concerned Indian Mission, whenever necessary, in the manner in which notice under section 5 is sent;
- (c) publish a copy of the application for public notice for objection, if any, in a conspicuous place in his office, under his signature and designation seal, for a period of thirty days;
- (d) dispose of any objection in the manner objection to notices are dealt with and disposed of under rule 14;
- (e) preserve one copy of the application in his file until its submission to the Registrar General.

(3) An application for registration of marriage already celebrated in other form shall lapse after completion of six calendar months but in case of either of the parties or both the parties resided abroad, the validity period of such application shall be one calendar year from the date of submission of application to the Marriage Officer.

(4) After taking signatures with Left Thumb Impression (LTI) of both the parties to be attested by the Marriage Officer and after taking signature of three witnesses, complete present postal address with the mentioning of name of the police station and postal code of both the parties and three witnesses and entering actual place and actual time of registration of the marriage, the Marriage Officer shall register the marriage by making entries in the Marriage Certificate Book in the form specified in the Fifth Schedule. The Marriage Officer shall put his signature and give his designation seal and office seal in the Marriage Certificate Book. If any party or witness cannot

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sign, he shall put RTI (Right Thumb Impression) instead of putting signature. The Marriage Officer shall attest such thumb impressions. The Marriage Officer shall ensure that nobody signs in block capital in the Marriage Certificate Book and he shall include details of children if any born within this marriage on the basis of documentary evidences.

(5) The joint photograph duly attested by the Marriage Officer shall be pasted on the top right hand side margin and attested in such a manner that part of the signature and seal of the Marriage Officer is on the photograph and the residual part is on the Marriage Certificate Book.

(6) A consecutive year wise application serial number and certificate serial number shall be entered on the left margin of the Marriage Certificate Book and actual place and actual time of solemnization or registration of marriage shall be entered on the top left hand side of the Marriage Certificate Book.

**23. Inclusion of photograph, address of parties etc. in Marriage Certificate Book and Certificate of Marriage.**—The Marriage Officer shall ensure that present residential addresses with police station and postal code are written in the Marriage Certificate Book and in the Certificate of Marriage. The complete postal address of each of the parties and three witnesses shall be mentioned after name of each of the parties and witnesses. Two passport sized individual photographs, in case of solemnization of marriage under section 13, and one joint passport sized photograph, in case of registration of marriage under section 16, shall be pasted on the top right hand side of the concerned page of the Marriage Certificate Book and two original certificates of marriage to be issued to the parties. The actual place and actual time of solemnization or registration of marriage shall be mentioned on the top left hand side of the Marriage Certificate Book and each of the Certificates of Marriage.

**24. Solemnization or registration of marriage beyond regular working hours and outside office of Marriage Officer.**—A Marriage Officer may, on application by both the parties to the marriage, solemnize a marriage under section 13, or register a marriage under section 16, at any time beyond his regular working hours and outside of his office within the jurisdiction of the Marriage Officer, upon receipt of such fees as mentioned in rule 32.

**25. Issue of original Certificate of Marriage to parties under sections 13 and 16.**—The Marriage Officer shall enter a certificate regarding solemnization of marriage under section 13 in the authenticated Marriage Certificate Book or registration of marriage under section 16 in the authenticated Marriage Certificate Book, as the case may be. The Marriage Officer shall, after the completion of formalities of the solemnization or registration of marriage, as the case may be, issue to each of the parties to the marriage, one original certificate of marriage and shall obtain the signature of both the parties on the backside of the carbon copy of the concerned page of the receipt book as a proof of handing over of the certificate to both the parties.

**26. Issue of Certified Copies of Certificate of Marriage etc.**—(1) The

Marriage Officer or the Registrar General, in whose custody the concern Marriage Certificate Book lies, shall issue certified copy of marriage to any person who applies for such certified copy with requisite fee as per rule 32.

(2) Every Marriage Officer shall ensure that a certified copy of the entries of the Marriage Certificate Book under section 13 or under section 16, contains all particulars including actual place and actual time of solemnization or registration of the marriage, the page number of the Marriage Certificate Book, the distinctive notice or application serial number, solemnization or registration serial number and the date of solemnization or registration in the left margin of the certificate. The certified copy of Certificate of Marriage or Certificate of registration of marriage shall not contain any photograph.

(3) A Marriage Officer shall send a true copy/copies of the particulars of solemnization under section 13 or registration under section 16 and the entries made in the Marriage Certificate Book, to the Registrar General along with a weekly report in Form VII within next two working days, in the same manner in which notices and applications under sections 13 and 16 are sent to the Registrar General office. If no marriage is solemnized or registered by a Marriage Officer during a week, a nil report in Form VII shall be sent to the Registrar General.

(4) The Registrar General shall issue certified copies of notice under section 5, declaration under section 11, application under section 15, entries made in the Marriage Certificate Book under section 13 or section 16, as the case may be or other documents relating to solemnization or registration of a marriage to any person who applies for such certified copy with requisite fee as per rule 32, if original records of such documents lie in his office.

#### CHAPTER IV

##### Books and Forms

**27. Marriage Certificate Book.**—(1) The Marriage Certificate Book containing certificates of marriages solemnized under section 13 or registered under section 16, shall be as laid down in the Fourth Schedule and the Fifth Schedule, respectively. It shall be printed on azure laid/conquest paper and shall be in forma binding with machine printed 100 running serial numbers in ascending order and shall be authenticated.

(2) Every marriage certificate, entered in the Marriage Certificate Book, during each calendar year, shall be consecutively numbered in running serial starting from one. The calendar year shall be mentioned as suffix to this running certificate serial number at the left margin of the page. The Marriage Officer shall write the serial number and date of the notice under section 5 or application under section 15, as the case may be, in the left hand margin of the Certificate of Marriage.

(3) In the certified copy of the Marriage Certificate Book, the Marriage Officer shall write the serial number with year of the Marriage Certificate at the left margin of the page and shall write the serial number and date of the notice under section 5 or application under section 15, as the case may be, in the left margin of the Certified copy.



(4) The notice serial No., application serial No. and Certificate serial No. shall start from serial No. one at the beginning of each calendar year and move in ascending order.

(5) Every Marriage Officer shall ensure that the entries in Marriage Certificate Books under section 13 or section 16, as the case may be, are made according to the chronological order of dates on which the parties along with the witnesses turn up for solemnization or registration of marriage.

(6) Once the Marriage Certificate Book is filled up and signed by the Marriage Officer after solemnization or registration of a marriage, as the case may be, the Marriage Officer shall not strike out or cancel any certificate of marriages:

Provided that the Marriage Officer may make necessary correction in the Marriage Certificate Book in accordance with the provisions of section 49 and rule 43.

Provided further that the Marriage Officer may use a separate page if he detects any material error before signing the Marriage Certificate Book.

**28. Use of Government printed registers, books, forms etc.—**(1) The Marriage Officers shall use Government supplied and authenticated Notice Book, Receipt Book, Marriage Certificate Book, Cash Book and Forms.

(2) The Registrar General or any other officer authorised in this behalf, shall superscribe on the first page of the Notice Book, Receipt Book, Marriage Certificate Book and Cash Book the following words:—

(a) Certified this Book contains 100 pages serially numbered from page Sl. No. .... to ..... And this is for use of Sri/Smt ..... Marriage Officer for ..... (area of jurisdiction); or

(b) Sri/Smt ..... Marriage Officer for ..... (area of jurisdiction) is directed to record the page marking of this book from Sl. No. .... to ..... consecutively in machine numbered form and only thereafter he/she is authorized to use this book.

(3) Authentication and page marking are not necessary for Government supplied forms. The forms will be in Bengali-version and English-version in the same page. The Marriage Officer shall fill up either of Bengali-version or English-version as per choice of the parties.

(4) The Registrar General shall maintain records of the details of authentication of the Notice Book, Receipt Book, Marriage Certificate Book and Cash Book in respect of all non-official Marriage Officers.

(5) The Notice Book, Receipt Book, Marriage Certificate Book and Cash Book supplied to the *ex officio* Marriage Officers need not be authenticated.

(6) The Registrar General shall supply required numbers of Books and Forms to the non-official Marriage Officers on payment of such amount money as time to time fixed by the State Government. Books and Forms shall be supplied free of cost to the *ex-officio* Marriage Officers.

(7) If Government printed Books and Forms are not available the Registrar General may, by order in writing, allow any non-official Marriage Officer to print at his own cost the Books and Forms in conformity with the size, format and contents of Government supplied Books and Forms. The privately printed Books and Forms must be authenticated before use.

**29. Cash Book.**—(1) Every Marriage Officer shall maintain a Cash Book as given in Form VI. The Cash Book shall be in bound volume of 100 pages (left and right side bearing the same number will constitute a page) and shall be authenticated before use. The Cash Book shall be maintained day wise. All fees received under these rules shall be brought into account in the Cash Book every day by mentioning therein the date, the receipt number and particulars of transaction, and the Marriage Officer shall, after closing the day's balance and verifying the same, sign the Cash Book as a token of certifying the correctness of collection of the day's total receipt of fees and payment of the proportionate share to the Government and to himself.

(2) The Cash Book shall be of single entry nature and the closing balance of the Cash Book shall be accurately computed and written in ink pen/ball pen both in figures and in words.

**30. Size and form of Books etc., and manner of printing.**—All Books, Registers and forms, apart from the Receipt Book, shall be of 33cm.x 21cm. size and the Receipt Book shall be of 17cm. X 14 cm. and in *azure laid* papers.

## CHAPTER V

### Fees and Deposit of Government Share

**31. Receipt Book.**—(1) Every non-official Marriage Officer shall use Receipt Book as given in Form V, for the purpose of acknowledging receipt of fees from a party or other person. The Receipt Book shall be in bound volume of 200 pages bearing 100 running serial numbers each in duplicate. The Receipt Book shall be used strictly in the ascending order.

(2) Every Marriage Officer shall issue receipt against payment of fees and the party/parties present before the Hindu Marriage Registrar or the concerned person making payment (in case of certified copy) shall put their signatures on both the original and duplicate carbon copy of the receipt. The Marriage Officer shall use carbon paper on both sides or double carbon papers in such a manner that the backside of the original receipt also gets an identical impression of its front side. The original receipt shall be provided to such party/parties present before the Marriage Officer or the concerned person making payment (in case of certified copy) and the Marriage Officer shall retain the carbon copy.

(3) No Marriage Officer shall use more than one Receipt Book at a time.

**32. Fees.**—(1) The fees for various services in connection with the solemnization or registration of a marriage and other purposes shall be, as detailed below:—

Table of Fees

| Sl. No. | Particulars                                                                                                                                                                                                                                                                                                                                         | Amount of fees           |
|---------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| (i)     | For receiving a notice/application of solemnization/registration of marriage at office of the Marriage Officer                                                                                                                                                                                                                                      | Rs. 100 (One hundred);   |
| (ii)    | For receiving notice/application of solemnization/registration of Marriage outside office of the Marriage Officer at a place chosen by parties (within the jurisdiction of the Marriage Officer)                                                                                                                                                    | Rs. 200 (Two hundred);   |
| (iii)   | For receiving an objection at the office of the Marriage Officer (to be paid by the objector)                                                                                                                                                                                                                                                       | Rs. 50 (fifty);          |
| (iv)    | For holding inquiry into an objection (to be paid by the objector and the whole of fees so realized shall be retained by the Marriage Officer without any payment to the State Government)                                                                                                                                                          | Rs. 300 (three hundred); |
| (v)     | For solemnization or registration of a marriage including issue of two copies of original certificate to both of the parties                                                                                                                                                                                                                        | Rs. 400 (four hundred);  |
| (vi)    | For solemnization or registration of marriage at any time outside the office hours                                                                                                                                                                                                                                                                  | Rs. 200 (two hundred);   |
| (vii)   | For registration of a marriage in any place outside the office of a Marriage Officer but within his jurisdiction in addition to fee specified in serial No. (iv).                                                                                                                                                                                   | Rs. 400 (four hundred);  |
| (viii)  | For certified copy of entries in—<br>(a) Notice Book under section 6; or<br>(b) Marriage Certificate Book under section 13; or<br>(c) Declaration under section 11; or<br>(d) Application under section 15; or<br>(e) extract of Marriage Certificate Book under section 16; or<br>(f) other marriage related records as per the Act and the rules. | Rs. 100 (one hundred);   |
| (ix)    | for inspection of one original entry of any specific record or register—                                                                                                                                                                                                                                                                            |                          |



| Sl. No. | Particulars                                                                                                                                                                                         | Amount of fees                                                                           |
|---------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| (a)     | in case of record or register being less than one year old;                                                                                                                                         | Rs 100 (one hundred) per entry maximum of Rs.500 (five hundred) per register,            |
| (b)     | in case of record or register being one year or more old but less than five years' old;                                                                                                             | Rs 200 (two hundred) per entry maximum of Rs.1000 (one thousand) per register,           |
| (c)     | in case of record or register being more than five years' old;                                                                                                                                      | Rs. 400 (four hundred) per entry maximum of Rs.2000 (two thousand) per register;         |
| (x)     | for searching of record or register—                                                                                                                                                                |                                                                                          |
| (a)     | in case of record or register being less than one year old;                                                                                                                                         | Rs. 500 per person per day;                                                              |
| (b)     | in case of record or register being one year or more old but less than five years' old,                                                                                                             | Rs. 1000 per person per day;                                                             |
| (c)     | in case of record or register being more than five years' old,                                                                                                                                      | Rs. 2000 per person per day;                                                             |
|         |                                                                                                                                                                                                     | Note.— The expression "per day" means the period between 11.30 a.m. to 4.30 p.m.         |
| (xi)    | for correction of any document                                                                                                                                                                      | Rs.100 (one hundred) per error subject to maximum of Rs. 200 (two hundred) per document; |
| (xii)   | for authentication or verification by the Registrar General of the genuineness of original certificate or certified copies of certificates or of any entry of any record or register under the Act. | Rs. 1000 (one thousand only) per record.                                                 |

(2) A non-official Marriage Officer shall retain 100% of the fees mentioned in serial Nos. (iii) and (iv) of Table of Fees to sub-rule (1) for receiving objection and holding inquiry into an objection and 75% of all other fees mentioned in other serial Nos. of the said Table of Fees, as his remuneration. The balance amount of the fees shall be credited by such non-official Marriage Officer to the State Government under the Head of accounts mentioned in rule 33.

(3) The whole of the fees realized by an *ex officio* Marriage Officer and the Registrar General shall be credited to the State Government under the Head of accounts mentioned in rule 33.

(4) The amount of fees mentioned in Table of Fees to sub-rule (1) of rule 32, shall be reduced to half of the said amount of fees, if either of the parties to the marriage belongs to the Below Poverty Line (BPL) category and a Certificate in Form XIII in this respect of the Secretary of the *Gram Panchayat*, or the Executive Officer of a Municipality, or the Executive Engineer of the concerned Borough of a Corporation, where such party to the marriage resides, has been submitted to the Marriage Officer at the time of submission of notice or application.

**33. State Government's share of fees and its deposition.**—(1) Every non-official Marriage Officer shall, on or before the 7th day of the next month, deposit the Government share of 25% of all fees mentioned in serial Nos. (i), (ii), (v), (vi), (vii), (viii), (ix), (x) and (xi) of Table of Fees to sub-rule (1) of rule 32, collected in the previous month with the Reserve Bank of India, Kolkata, or other Treasury linked banks branches in the Kolkata or districts or sub-divisions, as the case may be, by challan in T.R. Form No.7, under the Head of account "0070-60-108-Marriage fees-001-collection under Marriage Act-12- solemnization/registration Fees", in case the total amount of fees collected by the Marriage Officer exceeds Rs. 5000:

Provided that if the total amount of fees collected by a Marriage Officer does not exceed Rs. 5,000 during three calendar months, the Marriage Officer shall, on or before the 7th day immediately after expiry of said three calendar months, deposit 25% of total amount of fees of Government share.

Provided further that if the total amount of Government share during the previous three calendar months is nil, the Marriage Officer shall, on or before the 7th day immediately after expiry of the said three calendar months, send a 'Nil' report to the Office of the Registrar General.

(2) Every *ex officio* Marriage Officer shall, immediately after collection of fees as mentioned in rule 32, deposit the same with the State Government under the Head of account mentioned in sub-rule (1) and shall maintain a Cash Book.

(3) The Registrar General shall have the right to obtain verification of particulars of such deposit free of cost from the Reserve Bank of India or treasury or sub-treasury for the purpose of reconciliation of the amount deposited and remitted through Treasury as the State Government share of fees.

## CHAPTER VI

### Report and Return

**34. Reports and returns.**—(1) Every Marriage Officer shall send to the Registrar General the following reports and returns in the manner provided in rule 19(1)(d):—

- (a) one of the notices received under section 5 or one of the application received under section 15, as the case may be, and duly processed shall be sent within two working days of its receipt;
- (b) weekly-report of marriages, solemnized under section 13 and registered under section 16, certified copies of the entries in the

Marriage Certificate Books for section 13 and section 16, together with a forwarding letter separately in Form VII by next two working days or on the following day, if that day is a holiday;

- (c) original copy of challan in T.R Form No. 7 of the Reserve Bank of India or the treasury/sub-treasury, in respect of every remittance of the State Government's share of fees, in the manner specified in rule 33, deposited with the Reserve Bank of India/Treasury banks/sub-treasury banks within the 10th of the following month, the next working day if the 10th is a holiday in Form VIII;
- (d) quarterly statement in Form IX in respect of marriages registered under the Act, by 15th of April or July or October or January, for the first or second or third or fourth Quarterly Report, respectively, of a calendar year, the next working day if the 15th is a holiday;
- (e) an annual physical statement of marriages solemnized under section 13 or registered under section 16, as the case may be, for the previous calendar year in Form X within 31st January of the current calendar year, the next working day, if the 31st January is a holiday;
- (f) an annual financial statement of marriages solemnized under section 13 or registered under section 16, as the case may be, for the previous financial year in Form XI within 30th April of the current financial year the next working day, if the 30th April is a holiday.

(2) While submitting exhausted Marriage Certificate Book or other records, the non-official Marriage Officer shall submit a forwarding letter in Form XII, in duplicate one of which will be kept at the office of the Registrar General and the other will be handed over to him after duly received.

(2) Every Marriage Officer shall, on the instruction of the Registrar General or the State Government, send such other reports, returns and statements as mentioned in such instruction, from time to time.

**35. Validity period of use of Marriage Certificate Book and their submission to Office of Registrar General.**—(1) When Marriage Certificate Book, under section 13 or section 16, as the case may be, is completed or exhausted as a result of solemnization or registration of marriages, a non-official Marriage Officer shall submit the same with the usual index attached, along with the connected notices under section 5, Notice Book under section 6, declarations under section 11, applications under section 15, Receipt Books and Cash Books, and other connected papers and documents, if any, within fifteen days from the date completion of such Marriage Certificate Book to the Registrar General in Form XII.

(2) Where a Marriage Certificate Book is not exhausted within three years of bringing the same under use, the non-official Marriage Officer shall submit the same to the Registrar General for revalidation of continuing it to use the same for another one year. The non-official Marriage Officer shall not, without obtaining such revalidation from the Registrar General, again use such Marriage Certificate Book. Such Marriage

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Marriage Certificate Books for section 13 and section 16, together with a forwarding letter separately in Form VII by next two working days or on the following day, if that day is a holiday;

- (c) original copy of challan in T.R Form No. 7 of the Reserve Bank of India or the treasury/sub-treasury, in respect of every remittance of the State Government's share of fees, in the manner specified in rule 33, deposited with the Reserve Bank of India/Treasury banks/sub-treasury banks within the 10th of the following month, the next working day if the 10th is a holiday in Form VIII;
- (d) quarterly statement in Form IX in respect of marriages registered under the Act, by 15th of April or July or October or January, for the first or second or third or fourth Quarterly Report, respectively, of a calendar year, the next working day if the 15th is a holiday;
- (e) an annual physical statement of marriages solemnized under section 13 or registered under section 16, as the case may be, for the previous calendar year in Form X within 31st January of the current calendar year, the next working day, if the 31st January is a holiday;
- (f) an annual financial statement of marriages solemnized under section 13 or registered under section 16, as the case may be, for the previous financial year in Form XI within 30th April of the current financial year the next working day, if the 30th April is a holiday.

(2) While submitting exhausted Marriage Certificate Book or other records, the non-official Marriage Officer shall submit a forwarding letter in Form XII, in duplicate one of which will be kept at the office of the Registrar General and the other will be handed over to him after duly received.

(2) Every Marriage Officer shall, on the instruction of the Registrar General or the State Government, send such other reports, returns and statements as mentioned in such instruction, from time to time.

**35. Validity period of use of Marriage Certificate Book and their submission to Office of Registrar General.**—(1) When Marriage Certificate Book, under section 13 or section 16, as the case may be, is completed or exhausted as a result of solemnization or registration of marriages, a non-official Marriage Officer shall submit the same with the usual index attached, along with the connected notices under section 5, Notice Book under section 6, declarations under section 11, applications under section 15, Receipt Books and Cash Books, and other connected papers and documents, if any, within fifteen days from the date completion of such Marriage Certificate Book to the Registrar General in Form XII.

(2) Where a Marriage Certificate Book is not exhausted within three years of bringing the same under use, the non-official Marriage Officer shall submit the same to the Registrar General for revalidation of continuing it to use the same for another one year. The non-official Marriage Officer shall not, without obtaining such revalidation from the Registrar General, again use such Marriage Certificate Book. Such Marriage

Certificate Book shall be submitted to the Registrar General after expiry of the period of such revalidation even if the same does not exhaust.

(3) The *ex officio* Marriage Officer shall use and maintain such Marriage Certificate Book as per their departmental guidelines and preserve these records in their own offices.

(4) If any Marriage Officer is required to submit any record of marriage or any other document in connection with marriage under the Act, to any court of law or any other statutory authority, he shall forthwith intimate such fact to the Registrar General. In such case, particular page of a Register or Book shall not be detached and submitted to such court or authority.

## CHAPTER VII

### General Control

**36. Control of Registrar General over Marriage Officers.** —(1) The power of supervision of the working of the Marriage Officers shall be vested in the Registrar General and the Registrar General shall be the controlling authority of all Marriage Officers.

(2) All Marriage Officers shall comply with all orders, directions and instructions given by the Registrar General or by the State Government communicated through the Registrar General.

(3) The Registrar General or any official authorized by the Registrar General may inspect the office of any Marriage Officer and may ask for the production of any records from such Marriage Officer.

(4) The Registrar General may direct any Marriage Officer to submit any Marriage Certificate Book, Receipt Book, Cash Book, Notice Book or other related documents even if such Book and documents are not exhausted.

(5) The Registrar General, or any officer or employee authorised by the Registrar General, may seize any Marriage Certificate Book, Receipt Book, Cash Book, Notice Book or other documents from the office of any Marriage Officer under proper receipt.

(6) The Registrar General may, after recording the reasons in writing, exercise the same powers of a Marriage Officer throughout the State of West Bengal, in the interest of public and in such case, the provisions of the Act and the rules made thereunder shall, *mutatis mutandis*, apply.

(7) The Registrar General may—

- (a) report to the police against a Marriage Official on reasonable suspicion based on *prima facie* documentary evidences for establishing commission of an offence of forgery of documents relating to registration of marriage or defalcation of share of the State Government;
- (b) refer any record and document to different wings of the State

Government including the State Forensic Science Laboratory for verification of genuineness of any document.

**37. Disposal of Public grievance petition by Registrar General.**—(1) In cases where the Registrar General or any officer duly authorized by the Registrar General would feel it necessary to contact such civil offices of the Government of West Bengal or police stations as would be felt necessary to complete the enquiry into the public grievance or misconduct or gross misconduct to unearth the truth, such civil and police official shall render all necessary and lawful assistance to the Registrar General or any officer duly authorized by the Registrar General in the matter.

#### CHAPTER VIII

##### Penalty and Appeal against order of Disciplinary Authority

**38. Misconduct and gross misconduct.**—(1) If any Marriage Officer—

- (a) starts functioning as non-official Marriage Officer without display of his office signboard or without submitting information to the Registrar General as required under sub-rule (3) of rule 11; or
- (b) does not display Table of fees in a conspicuous place in his office as mentioned in sub-rule (5) of rule 11; or
- (c) does not send the weekly report, quarterly report, annual report and other reports or returns to the Registrar General properly and timely; or
- (d) does not open office during office time or does not remain present at his office without sufficient reason or violates sub-rule (5) of rule 9; or
- (e) opens any branch office or works through any agent in violation of sub-rule (2) of rule 8; or
- (f) changes office without approval of the Registrar General or the State Government; or
- (g) uses unauthenticated Notice Book, Receipt Book, Cash Book and Marriage Certificated Book; or
- (h) uses Forms not procured through the State Government or without approval of the Registrar General; or
- (i) keeps any page of the authenticated Marriage Certificate Book or Receipt Book blank and/or uses the pages of such Books at random or without maintaining sequence of time or date; or
- (j) uses more than one Notice Book or Receipt Book or Cash Book or Marriage Certificate Book authenticated or unauthenticated simultaneously; or
- (k) violates the provisions of these rules relating to deposition of Government share of fees; or



- (l) receives fees from party or parties without its entry in the authenticated Receipt Book on that day; or
  - (m) charges more fees than the fees mentioned in rule 32; or
  - (n) does not report to the Registrar General for transfer of pending notices/ applications and papers and documents, in violation of rule 13; or
  - (o) displays his office signboard in violation of official instruction, prepares his designation seal in violation of his competence and prepares his office seals in violation of his official status or uses any letterhead paper to that effect or causes any advertisement or publicity in any manner not permitted under these rules; or
  - (p) does not comply with any orders or directions of the State Government or the Registrar General, such Marriage Officer shall commit a misconduct under the provisions of this rule.
- (2) If any Marriage Officer —
- (a) receives notice/application from parties beyond jurisdiction; or
  - (b) does not send copy of the notice or application to the Registrar General or the District Registrar or the Indian Mission wherever applicable as per Act and rules within two working days; or
  - (c) does not display the notice or application on his office notice board as per provisions of the rules; or
  - (d) does not maintain the Notice Book properly; or
  - (e) does not show the contents of notice book to any person desirous of having such information; or
  - (f) does not entertain or dispose any objection submitted before him as per Act and Rules; or
  - (g) solemnizes or registers a marriage without disposal of the objection; or
  - (h) solemnizes or registers a marriage within the objection period and beyond the validity period of the notice or application; or
  - (i) solemnizes a marriage without properly getting the Declaration Form filled in by the parties and/or without taking oath by the parties as per provision of the Act; or
  - (j) solemnizes or registers a marriage in contravention of the sequences of events to be followed for a valid solemnization or registration as mentioned in the Act and the rules made thereunder; or
  - (k) solemnizes or registers a marriage in contravention of minimum age of the party or parties; or
  - (l) enters wrong or false or incomplete marriage solemnization or registration related particulars in the Marriage Certificate Book; or

ut its entry in the authenticated

- (m) does not ensure that the party/parties who signed the notice or application signs the Certificate of marriage in the same language and marks Left Thumb Impression (LTI) thereon;
- (n) does not ensure that the party or parties who has signed the notice or application signs the Certificate of Marriage in the same language; or
- (o) does not paste photograph of the parties as mentioned in these rules; or
- (p) issues fake original certificate of marriage or fake certified copy of the original certificate of marriage to any person; or
- (q) violates the provisions of rule 33; or
- (r) fails or omits or neglects to preserve the marriage solemnization/ registration related Books or documents in legible condition till those are submitted to the Office of Registrar General; or
- (s) wilfully destructs or causes destruction of marriage solemnization or registration related records; or
- (t) violates any specific instruction of the State Government or the Registrar General; or
- (u) has been convicted for an offence involving moral turpitude by any court; or
- (v) does not submit the completed Marriage Certificate Book along with other Books or documents relating to solemnization or registration of marriage to the Office of Registrar General within period specified in these rules; or
- (w) repeatedly causes misconduct as specified in sub-rule (1), such Marriage Officer shall commit a gross misconduct under the provisions of this rule.

**39. Penalties for misconduct or gross misconduct.**—(1) A non-official Marriage Officer, who has committed misconduct specified in the sub-rule (1) of rule 38, shall be liable to any of the following penalties:—

- (a) caution; or
- (b) censor; or
- (c) suspension of works upto one year.

(2) A non-official Marriage Officer who has committed a gross misconduct specified in the sub-rule (2) of rule 38, shall be liable to any of the following penalties:—

- (a) suspension of works upto 2 years; or
- (b) removal.

(3) The penalties under this rule shall be imposed by the appointing authority. The appointing authority shall be the Disciplinary Authority.

(4) No penalty shall be imposed to an *ex officio* Marriage Officer in accordance with the provisions of these rules as such an *ex officio* Marriage Officer is a Government employee and accordingly, any kind of misconduct relating to solemnization or registration of marriages shall be governed by the West Bengal Service Rules etc.

**40. Procedure for penal action.**—(1) No penalty as specified in rule 39, shall be imposed on a non-official Marriage Officer without giving him an opportunity of being heard in a proceeding to be initiated by the Disciplinary Authority.

(2) The Registrar General may, on receiving a complaint or *suo motu*, if he has any reason to believe that a non-official Marriage Officer has *prima facie* committed a misconduct or gross misconduct under rule 38, by order, direct the said non-official Marriage Officer to show cause within a period specified in that order.

(3) If such non-official Marriage Officer fails to show the cause within the specified period in spite of proper service of the order, or has made a reply, which is not satisfactory to the Registrar General, the Registrar General may refer the matter to the Disciplinary Authority for initiating disciplinary proceedings.

(4) The Disciplinary Authority may, after giving the non-official Marriage Officer an opportunity of being heard, frame article of charges along with statement of imputations against such non-official Marriage Officer.

(5) The Disciplinary Authority shall serve the charge sheet containing article of charges directly or through the Registrar General upon such non-official Marriage Officer and shall require such non-official Marriage Officer to submit to the Disciplinary Authority within such time, as may be specified, a written statement of his defence.

(6) Upon receiving the reply to the charge sheet, the Disciplinary Authority may hold an enquiry by appointing an Inquiring Authority and a Presenting Officer.

(7) The Inquiring Authority shall submit report to the Disciplinary Authority.

(8) Upon receiving report of the Inquiring Authority, the Disciplinary Authority may, for reasons to be recorded in writing, impose penalty as specified in rule 39 against such non-official Marriage Officer.

(9) The Disciplinary Authority may, by order, suspend a non-official Marriage Officer pending the Departmental Proceeding and this suspension order shall not be treated as suspension order by way of penalty imposed through a Departmental Proceeding in accordance with the provisions of rule 40 read with rule 38.

**Explanation.**—For the purpose of this rule, the expression "Inquiring Authority" shall mean an officer not below the rank of the Deputy Secretary to the Government of West Bengal, appointed by the Disciplinary Authority for the purpose of enquiry and the expression "Presenting Officer" shall mean an employee appointed by the Disciplinary Authority for the purpose of presenting the documents in connection with such enquiry.



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**41. Restraining of works of non-official Marriage Officer.—**(1) Notwithstanding anything contained in rule 40, when the Registrar General receives credible information that a non-official Marriage Officer has committed misconduct or gross misconduct or the Registrar General has reason to believe that such non-official Marriage Officer has been committing misconduct or gross misconduct which are detrimental to public interest, particularly the interest of women, minor and other vulnerable sections of the society, and there is urgent need to stop such illegal activities of such non-official Marriage Officer, the Registrar General may, by order, direct such non-official Marriage Officer to stop work immediately and shall report the matter to the State Government and shall take necessary steps for initiating departmental proceedings against such non-official Marriage Officer.

(2) Upon receipt of the report from the Registrar General, the State Government may, by order, suspend such non-official Marriage Officer:

Provided that the order directing restraining of works under sub-rule (1), or the suspension order in contemplation of Departmental Proceedings under sub-rule (2), shall not be construed as penalty.

**42. Appeal against order of Disciplinary Authority.**—A non-official Marriage Officer may prefer an appeal before the Appellate Authority against the order of the Disciplinary Authority imposing penalty against him within a period of ninety days from the date of the said order.

## CHAPTER IX

### Miscellaneous

**43. Corrections.**—(1) The correction of errors in the Marriage Certificate Book and other connected documents by the Marriage Officer, shall be made in the manner as laid down in section 49.

(2) While making correction of any inadvertent error in any record, use of correction fluid or ink, erasures, overwriting, pasting of paper etc., shall not be made and correction of an error shall be made by the Marriage Officer by drawing a line through the erroneous words with a pen so that the words which would be penned through may remain legible even after correction. Every correction shall be made along with dated signature of the authorized person.

**44. Preservation of records in Office of Registrar General.**—(1) Subject to the other provisions of these rules, the records relating to, or in connection with, marriages solemnized or registered under the Act, shall be preserved in the Office of the Registrar General in manual form.

(2) The following records relating to, or in connection with, marriages solemnized or registered under the Act, shall be preserved in perpetuity:—

- (a) notice under section 5 or applications for registration of marriage under section 15 in original with connected enclosures;
- (b) Declaration under section 11;

- (c) Marriage Certificate Book under section 13, and Marriage Certificate Book under section 16; and
- (d) Cash Book.

(3) The following records relating to, or in connection with, marriages solemnized or registered under the Act, shall be preserved for a period of twelve years:—

- (a) Marriage Notice Book under section 6;
- (b) papers and documents relating to inquiry into objections;
- (c) Receipt Book;
- (d) copies of original T.R. Form No. 7, showing deposit of Government share.

(4) The following records relating to, or in connection with, marriages solemnized or registered under the Act, shall be preserved for five years:—

- (a) lapsed notice under section 5;
- (b) lapsed Applications under section 15;
- (c) Weekly Report, Quarterly Report and Annual Reports.

**45. Repeal and savings.**—(1) The West Bengal Special Marriage Rules, 1969, as in force in the State of West Bengal, is hereby repealed.

(2) Notwithstanding such repeal, any action taken or anything done or order issued, shall, in so far as it is not inconsistent with the provisions of these rules be construed to have been taken, done or issued under the relevant provisions of these rules.

(3) Without prejudice to the generality of the foregoing provisions of this rule, it is hereby declared that—

- (a) any Marriage Officer appointed under the provisions of the West Bengal Special Marriage Rules, 1969, shall function as Marriage Officer as if he has been appointed under these rules; and
- (b) the Disciplinary Proceeding initiated against any Marriage Officer under the provisions of the West Bengal Special Marriage Rules, 1969, shall be continued under the provisions of these rules.

**FORM I**

[See sub-rules (1), (2) and (3) of rule 19 &amp; 22]

**Forwarding Letter to Registrar General/District Registrar/Indian Mission**

OFFICE OF SRI/SMT. ....  
 THE MARRIAGE OFFICER FOR ..... (jurisdiction)

To: The Registrar General of Marriages, West Bengal,  
 P - 16, India Exchange Place, Kolkata - 700 001

The District Registrar .....

The Indian Mission .....

Subject: Notice/Application of marriage solemnization/registration dated .....  
 ..... between Sri ..... and  
 Smt. .... wide publicity thereof.

In forwarding herewith a copy of notice/application of the intended marriage or registration of marriage between above-mentioned parties under the Special Marriage Act, 1954. I have the honour to send the same to you as per sub-rule (1) of rule 19 of the West Bengal Special Marriage Rules, 2010.

OR\*

In forwarding herewith a copy of notice/application of the intended marriage or registration of marriage between the above-mentioned parties under the Special Marriage Act, 1954. I have the honour to state that since Sri ..... and/or Smt ..... is a permanent resident of ..... which falls within your jurisdiction. The said notice/application may kindly be prominently displayed in a conspicuous place as required under the Act, for a period of not less than thirty days with effect from the date of the notice/application mentioned above.

OR\*

In forwarding herewith a copy of notice/application of the intended marriage/registration of marriage between the above-mentioned parties under the Special Marriage Act, 1954. I have the honour to state that since Sri ..... and/or Smt ..... resided at ..... which falls within your jurisdiction, the said notice/application may kindly be



prominently displayed in a conspicuous place as required under the Act, for a period of not less than thirty days with effect from the date of the notice/application mentioned above.

Receipt of the same may kindly be acknowledged.

\* Strike out, whichever is not relevant.

Encl: as stated.

*Signature of the Marriage Officer with  
designation seal*

Date :

Contact number:

Office seal

## FORM II

[See sub-rule (4) of rule 20]

### Notice for Appearance of Objector/Objected to before Marriage Officer .....

In the matter of the Special Marriage Act, 1954;

And

In the matter of notice/application of marriage solemnization/registration of marriage between —

Sri ..... and,  
(name and address of the bridegroom/husband)

Smt .....  
(name and address of the bride/wife)

And

In the matter of objection preferred to the solemnization/registration of this marriage by—

Sri/Smt .....  
(name and address of the objector)

To

Sri/Smt .....  
.....  
(address)

Whereas notice/application of a marriage solemnization or registration of marriage between Sri ..... and Smt ..... was received by the undersigned on ..... ; and

Whereas Sri/Smt ..... has raised certain objections (set out overleaf) to the solemnization/registration of the marriage; and

Whereas the undersigned will hold an enquiry into the matter of the solemnization/registration of the marriage; and

Whereas the undersigned has fixed an enquiry into the matter of the said objection on ..... day of ..... 20 ....., at his office at ..... (place) at ..... (time) in which you are the objector/objected to.

NOW, THEREFORE, in exercise of the power conferred upon me by section 9 of the Act you are hereby summoned to attend the office of the undersigned mentioned above together with all document(s) which you like to furnish.

Take notice that, in default of your appearance on the aforesaid day, the enquiry will be made and decided in your absence.

Give under my hand and seal.

(Signature of the Marriage Officer  
with designation seal)

Date:

### FORM III

[See sub-rule (5) of rule 20]

#### Summons for Appearance of witnesses before Marriage Officer.....

In the matter of the Special Marriage Act, 1954;

And

In the matter of notice/application of marriage solemnization/registration of marriage between—

Sri ..... and,

(name and address of the bridegroom/husband)

Smt .....

(name and address of the bride/wife)

And

In the matter of objection preferred to the solemnization/registration of this marriage by—

Sri/Smt. ....

(name and address of the objector)

To,

Sri/Smt. ....

.....  
(address)

Whereas notice/application of a marriage solemnization or registration of marriage between Sri ..... and Smt. .... was received by the undersigned on ..... ; and

Whereas Sri/Smt. .... has raised certain objections (set out overleaf) to the solemnization/registration of the marriage; and

Whereas the undersigned will hold an enquiry into the matter of the solemnization/registration of the marriage and

Whereas the undersigned has fixed an enquiry into the matter of the said objection on ..... day of ..... 20 ....., at his office at ..... (place) at ..... (time) in which you have been cited as an witness.

Now, therefore, in exercise of the power conferred upon me by section 9 of the Act you are hereby summoned to attend the office of the undersigned mentioned above together with all document/s which you like to furnish.

Take notice that, in default of your appearance on the aforesaid day, the enquiry will be made and decided in your absence.

Give under my hand and seal.

(Signature of the Marriage Officer  
with designation seal)

Date :

**FORM IV**

[See sub-rule (1) of rule 22]

**Application for Registration of a Marriage under section 15 of the Special Marriage Act, 1954 (43 of 1954)**

1. Name of Parties—
    - (i) Husband :  
son of :
    - (ii) Wife :  
Daughter of :
  2. Age or date of birth—
    - (i) Husband :
    - (ii) Wife :
  3. Permanent dwelling place :
  4. Present dwelling place :
  5. Condition of parties before marriage for which registration is sought for —
    - (i) of Husband : Unmarried/Widower/Divorcee \*
    - (ii) of Wife : Unmarried/Widow/Divorcee \*
  6. Date and place of marriage for which registration is sought for :
  7. Schedule of children
    - (i) Son/ Daughter Born on
    - (ii) Son/Daughter Born on
    - (iii) Son/Daughter Born on
  8. We hereby declare that—
    - (a) a ceremony of marriage was performed between us on .....  
at ..... (place) and we have been living together as husband and wife since the above-referred date of marriage;
    - (b) (i) neither of us has more than one spouse living on the date mentioned in this application;  
(ii) neither of us is an idiot or lunatic;
-



1. Name of Parties—

- (i) Husband :  
son of :
- (ii) Wife :  
Daughter of :

2. Age or date of birth—

- (i) Husband :
- (ii) Wife :

3. Permanent dwelling place :

4. Present dwelling place :

5. Condition of parties before marriage for which registration is sought for —

- (i) of Husband : Unmarried/Widower/Divorcee \*
- (ii) of Wife : Unmarried/Widow/Divorcee \*

6. Date and place of marriage for which  
registration is sought for :

7. Schedule of children

- (i) Son/ Daughter Born on
- (ii) Son/Daughter Born on
- (iii) Son/Daughter Born on

8. We hereby declare that—

- (a) a ceremony of marriage was performed between us on .....  
at ..... (place) and we have been living together as husband and  
wife since the above-referred date of marriage;
  - (b) (i) neither of us has more than one spouse living on the date mentioned  
in this application;
  - (ii) neither of us is an idiot or lunatic;
-

- (iii) both of us have completed the age of twenty one years on the date of this application;
- (iv) we are not within the degree of prohibited relationship/our marriage was celebrated before the commencement of the Special Marriage Act, 1954 (43 of 1954), and according to the law, governing each of us, a marriage between us is permitted, though we are within the degree of prohibited relationship according to the Act aforesaid;
- (v) we have been residing within the jurisdiction of the Marriage Officer at ..... for a period of not less thirty days immediately preceding the date of this application.

We further declare that all the above particulars are true to the best of our knowledge and belief.

Signature with date of the Husband .....

Signature with date of the wife .....

\* Score out whichever is not applicable.

**FORM V**  
[See rule 31]  
**Receipt Book**

Date of collection:

Page No .....

(to be machine numbered)

OFFICE OF THE MARRIAGE OFFICER, FOR (Affix the designation seal)

.....  
.....

Received the following fees from Sri/Smt. ....  
on account of —

| Item                                                | Rupees |
|-----------------------------------------------------|--------|
| (a) Notice/Application from .....                   |        |
| (name of either of the parties)                     |        |
| (b) Solemnization/Registration of marriage of ..... |        |
| (name of both the parties)                          |        |



Total receipt ..... - Total payments .....  
 Opening balance ..... Balance in hand .....  
 (in words) .....  
 Grand total ..... Grand total .....

*Signature of the Marriage Officer with designation seal.*

### FORM VII

[See clause (b) of sub-rule (1) of rule 34]

**Forwarding letter on weekly report of marriages solemnized or registered under section 13 and section 16 of the Special Marriage Act, 1954.**

OFFICE OF THE MARRIAGE OFFICER FOR .....

To

The Registrar General of Marriages, West Bengal.

The enclosed true copies from the Marriage Certified Book (under section 13 or section 16) bearing certificate serial No ..... to ..... containing ..... number of sheets, being the copies of all the entries in respect of solemnization/registration made by me during the week stating from the ..... of ..... 20 ..... to the ..... of ..... 20 ..... (Sunday)  
 (Saturday)

OR

That no entries have been made in the Marriage Certificate Book (under section 13/16) in this office during the week stating from the ..... of ..... 20 ..... to ..... of ..... 20 .....  
 (Sunday) (Saturday)  
 (Sunday) (Saturday)

Station:

Date :

*Signature and designation seal of the  
 Marriage Officer*

**Contact No.**

**Enlo: as stated**

\*Strike out whichever is not applicable.



**FORM VIII**

[See sub-rule (1) of Rule 33]

**Monthly Statement of remittance of State Government's share of fees deposited with the Reserve Bank of India or Treasury or Sub- Treasury linked Banks for the month of ..... 20 .....**

Or

**Periodic Statement of remittance of State Govt's share of fees deposited with the Reserve Bank of India or Treasury or Sub- Treasury linked Banks for the period ..... of ..... 20 ..... to ..... of ..... 20 .....**

| Sl. No. | For the month of .....20..... or for the period..... to ..... | Date of deposit | Amount of deposit | Cash Book Reference (page No. ) | Challan No. through which deposited | Cumulative deposit already made in the current financial year up to last quarter (w.e.f. 1st day of April, .....) | Remarks |
|---------|---------------------------------------------------------------|-----------------|-------------------|---------------------------------|-------------------------------------|-------------------------------------------------------------------------------------------------------------------|---------|
|         |                                                               |                 |                   |                                 |                                     |                                                                                                                   |         |

Enclo : Total number of original challans

(in figure) :

(in words) :

*Signature and Designation seal  
of Marriage Officer*

Contact No. :

**FORM IX**

[See clause (d) sub-rule (1) of rule 34]

**Quarterly report of Solemnization of marriages under section 13 for the-**

- \* First quarter January to March, 20.....
- \* Second quarter April to June 20.....
- \* Third quarter July to September 20.....
- \* Fourth quarter October to December 20.....

Or

**Quarterly report of Registration of marriages under section 16 for the-**

- \* First quarter January to March, 20.....
- \* Second quarter April to June 20.....
- \* Third quarter July to September 20.....
- \* Fourth quarter October to December 20.....

| Cert. Sl. No. & Dt. | Name of parties | Marital status | Age | Occupation | Present address | Permanent address | Notice / Application sl. No. | Cumulative figure upto last quarter of this calendar year |
|---------------------|-----------------|----------------|-----|------------|-----------------|-------------------|------------------------------|-----------------------------------------------------------|
|                     |                 |                |     |            |                 |                   |                              |                                                           |

**Date :-**

*Signature and designation seal of the  
Marriage Officer.*

**Contact No:-**

## FORM X

[See clause (e) of sub-rule (1) of rule 34]

Annual Report of marriages solemnized under section 13 or registered under section 16 for Sri ..... Marriage Officer for ..... district ..... of the Special Marriage Act, 1954, for the Calendar year 20.....

| Year | Number of marriages solemnized Under section 13 of the Special Marriage Act, 1954. | Number of marriages registered Under section 16 of the Special Marriage Act, 1954. | Remarks, please state previous calendar year's figure and reason for major difference in the performance |
|------|------------------------------------------------------------------------------------|------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| (1)  | (2)                                                                                | (3)                                                                                | (4)                                                                                                      |
|      |                                                                                    |                                                                                    |                                                                                                          |

Signature with designation seal  
of the Marriage Officer.

Date :

**FORM XI**

[See clause (f) sub-rule (1) of rule 34]

**Annual Report of remittance of the State Government share of fees deposited with the Reserve Bank of India or Treasury linked banks for the period ..... to ..... (financial year)**

| Deposit for the period .....<br>To..... | Date of deposit | Cash Book<br>Page No. | Amount of deposit | Challan No. | Cumulative deposit during the financial year |
|-----------------------------------------|-----------------|-----------------------|-------------------|-------------|----------------------------------------------|
|                                         |                 |                       |                   |             |                                              |

Total

*Signature with date and seal of the  
Marriage Officer*



**FORM XII**

[See sub-rule (1) of rule 35]

**Submission of records on completion of Marriage Certificate Book**

To  
The Registrar General of Marriages, West Bengal,  
P-16, India Exchange Place  
Kolkata- 700 001.

The following Marriage Certificate Book/books as mention in column 2 have been exhausted. As such the same along with related notices or applications/Declaration papers/applications and completed related Notice Book/ Application Book/Receipt Book/ Cash Book, lapsed notices and applications and other related papers are submitted to you in the detailed mentioned below:—

| Sl. No. | Marriage Certificate Book No. and pages | Number of notices Applications | Number of Declaration papers | Receipt Book | Cash Book | Notice and Application Books | Lapsed notices/ Applications |
|---------|-----------------------------------------|--------------------------------|------------------------------|--------------|-----------|------------------------------|------------------------------|
| (1)     | (2)                                     | (3)                            | (4)                          | (5)          | (6)       | (7)                          | (8)                          |
|         |                                         |                                |                              |              |           |                              |                              |

| Objection papers (9) | Others if any (10) |
|----------------------|--------------------|
|                      |                    |

Date :

*Signature and designation seal of  
Marriage officer*

Contact No.:

## FORM XIII

[See sub-rule (4) of rule 32]

**Certificate of belonging to B.P.L Category to be issued by Secretary/ Executive Assistant of Gram Panchayat or the Executive Officer of the Municipality or the Executive Engineer of the Borough Committee of the Municipal Corporation.**

**To Whom it may concern**

This is to certify that Shri/Smt. ....  
 (name of the party) son/daughter of ..... residing  
 at ..... (present address)  
 belongs to the BPL category and his/her name is recorded in serial No. .... of  
 the latest Below Poverty List published on .....

Date :

Signature, with full name, and designation seal of—

Office seal: Secretary/Executive Assistant of ..... Gram Panchayat  
 or  
 Executive Officer of ..... Municipality  
 Or  
 Executive Engineer ..... of Borough  
 No. .... of ..... Municipal Corporation.

**Form XIV**

[See sub-rule (3) of rule 12]

**Identity Card of non-official Marriage Officers**

No.

Date :

Space for affixing self signed passport photograph of  
non-official Marriage Officer  
duly attested by Gazetted Officer.

This is to certify that Sri/Smt. ...., son of/daughter  
of Sri/Smt. .... of ..... P. O. ....  
P. S. .... district ..... of whom particulars are  
given on the page opposite is a non-official Marriage Officer, appointed by the  
Government of West Bengal, for the .....  
..... (Jurisdiction) area as per section 3(1) of the  
Special Marriage Act, 1954 (Act 43 of 1954) read with rule 6 of the West Bengal  
Special Marriage Rules, 2010.

Office Seal

Signature and designation seal  
of the Registrar General  
of Marriages, West Bengal

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